

Annexure 01 – Project Details (Scope of Work)**1. Broad Scope of work:**

BarodaSun Technologies Limited (“BSTL” or “the Company”), a public sector technology services company, proposes to select a Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

BSTL for this purpose, invites proposal from prospective bidders. Bidder who is interested in participating in this RFP must fulfil the eligibility criteria mentioned in the RFP and also in a position to comply with the Scope of Work in the document to provide the required solution. Apart from above the bidder must also agree to all our terms & conditions mentioned under this RFP.

The proposed Human Resource Management System (HRMS) solution should be aligned with, but not limited to, the following key features and technical and functional capabilities:

1. Employee Database Management

1.1 Digital Employee Records & Document Repository: The system should store complete digital records of every employee, including appointment letters, ID proofs, certificates, and HR documents.

1.2 Core HRMS (Organization, People, Job data, Position, Job, Contact, Dependents) & Employee Enrolment: The system should manage all Job Data actions, including person profiles, personal information, biodata, positions etc. It should have functionality to enroll and maintain complete official records such as name, employee ID, date of joining, photo, and update history. The system should have functionality to create category i.e. Department, Designation, Division, Projects, Grade, Locality etc and also generate employee, EC No., biodata and generic employee lists.

1.3 Personal Details Management: The system should capture address, contact details, emergency contacts, family information, qualifications, skills, and bank details with change history.

1.4 Alerts and Notifications: Systematic alerts and notifications in form of emails to employees and HR/administrative department to update documents, profile completion, pending updates, etc.

1.5 Multiple Employee Categories: The system should support input and storage of data for different categories of employees viz Regular, Contractual, and Deputed staff with relevant information fields.

1.6 Organization Development: The system should enable creation and management of departments, locations, positions, and job codes. It should maintain the organizational structure, hierarchy mapping, workflow mapping and reporting relationships.

2. Attendance & Leave Management

- 2.1 Biometric/Digital Attendance Integration: The system should integrate with biometric or digital attendance systems to mark attendance of the employee, which will have functionality to capture thumb impression, IRIS etc. as approved by Government of India, Government of Maharashtra.
- 2.2 Office Hours & Holiday Calendar: Maintain office timings, weekly offs, and annual holiday list.
- 2.3 Attendance & Leave Reports: There should be functionality to generate daily, monthly, and yearly attendance summaries and leave details.
- 2.4 Leave Rules Configuration & Approvals: Creates master BSTL leave rules, allows online leave application. Approval Level Creation to manage leave process. Paperless functionality for leave Application by the employees and approval by their managers with effect to automatic leave ledger update.
- 2.5 Real-Time Attendance Dashboard & Timesheet: Shows live attendance status, late marks, early exits. There should be provision for timesheet entries for employees as per projects. Allow attendance punching with In /Out daily, monthly, yearly reports.
- 2.6 Attendance Management: Defines rules for work-from-home, half-day, late marking, deductions etc as per BSTL's attendance / leave rules.

3. Payroll, Compensation and Reimbursement & Claims

- 3.1 CTC Structure & Salary Master: The system should manage employee salary components and structure.
- 3.2 Payroll Processing & Statutory Deductions: The system should have provision for automated payroll processing, tax deductions (TDS, PF, ESI etc). The system should be integrated with accounting/finance systems, leave details and attendance master for automatic salary calculations and arrears calculations.
- 3.3 Investment Declarations & Tax Computation: Allows uploading tax-proof documents and calculating monthly TDS.
- 3.4 Salary Slips & Disbursement: Generates payslips and maintains historical salary records.
- 3.5 Arrears & Adjustment Reports: Supports arrear calculations and related reporting.
- 3.6 Claims & Reimbursements – The HRMS should allow employees to submit claims including TA / DA claims and reimbursement requests as per their eligibility and policy guidelines. The system should support upload of required documents, route requests through an approval workflow, and automatically integrate approved claims with the

payroll or payment system for timely settlement. It should have provision to mark members on leave and reroute claims selectively. It should also maintain a complete record of all claims with an audit trail.

4. Employee Self Service & Manager Self Service

4.1 Web and mobile application for employees and managers.

4.2 Employee Self-Service: Employees can apply for leave, view payslips, update data, etc.

4.3 Manager Self-Service: Managers can approve leave, monitor attendance, and access reports.

4.4 Notifications: Sends alerts for approvals and pending tasks.

5. Performance Management

5.1 Goal Setting & KPI Tracking: The system should enable creation and tracking of KPIs and goals.

5.2 Appraisal Cycles & Feedback: The system should support Appraisals cycles, feedback mechanism and process performance-linked pay.

6. Recruitment & Onboarding

6.1 Job Requisition & Posting: Allows managers to raise hiring requests and HR to post jobs.

6.2 Applicant Tracking System (ATS) & Candidate Tracking: Manages online applications, candidate tracking system, shortlisting, and selection stages.

6.3 Interview Scheduling & Selection: Supports scheduling, feedback, and offer letter generation.

6.4 Onboarding Workflow: Handles document uploads, verification, and employee code generation.

7. Separation & Exit Management

7.1 Resignation Submission: Employees can submit resignations online or on other separation reasons viz. Demise, Dismissal, etc, the system should follow the exit process fully automated through workflow including requisite clearances.

7.2 Exit Forms & Clearances: System manages digital exit forms and no-dues processes.

7.3 Notice Period & Shortfall Calculation: The system should automatically calculate the notice period, shortfall days with systematic notification / alerts.

7.4 Full & Final Settlement: The system should automatically compute all dues and recoveries and calculation of full and final settlement.

7.5 Exit Interviews: Records exit feedback.

8. Analytics & Reports

8.1 HR Dashboards: Displays headcount, attendance, attrition, leave usage, etc.

8.2 The system should have ability to generate reports / MIS from system as and when required. The system should provide flexibility in choosing different headers for generating various reports.

9. Intimation / Permission:

9.1 Employee Intimation and Permission module. The system should have provision for employee to request for different types of Intimation / Permission.

10. Confirmation Process:

10.1 The system should generate the list of employees to be confirmed, automatic workflow with escalation features. On confirmation the record should be updated automatically in job data.

11. Notice Board / Circulars / Intimation

11.1 The system should have provision for Notice board / Circulars / Intimation tool – where Admin can post notices/ circulars / letters / communication etc to the target audience.

12. Full and Final Settlement

12.1 Full and Final Settlement of employees separating from BSTL and calculation of tax. The FnF should also display any pending dues of the employee. Payment of F&F records and reconciliation.

13. Technical Requirements

- Web-based and mobile-enabled architecture
- Cloud-based deployment.
- High availability, scalability, and disaster recovery support.
- Role-based access control and data security as per prevailing standards.
- Compatibility with modern browsers and operating systems.

14. Training (Offline / Online)

- User training for HR, IT, and administrative staff
- Preparation of user manuals and training materials
- Post-implementation support and capacity building

15. Support and Maintenance

- Comprehensive warranty and AMC support post go-live
- Helpdesk support (email, ticketing, remote assistance)
- Periodic upgrades, patches, and system performance reviews

2. BSTL's Project Technical and Functional Requirements:

The Bidder should submit the compliance strictly in the following format for below mentioned Functional and Technical Specification/requirement. All the Technical and Functional Specification are mandatory and need to be developed during implementation phase if not readily available. The compliance must be given for each point. No Deviation will be accepted. The necessary documents and Certificates should be submitted.

Total Marking will **40 Marks** and accordingly bidder's marks will be calculated as part of Technical Bid Evaluation.

SN	Mandatory Requirement	Readily Available- 1 Marks (Y/N)	Customizable – 0.5 Marks (Y/N)	Marks
	Functional Module:			
A	Employee database management			
1	There should be functionality to create category i.e. Department, Designation, Division, Projects, Grade, Locality etc.			
2	Systematic alerts and notifications in form of emails to employees and HR/administrative department to update documents of an employee.			

3	The system should have provisions for maintaining required details of different categories of employees viz. Contractual Employee, Regular employees etc. The system should have provision for the Organization structure and hierarchy mapping of all employees.			
B	Attendance and Leave Management			
4	Approval Level Creation for Paperless functionality for leave Application of the employee.			
5	Real-time attendance dashboards & Timesheet			
C	Payroll, Compensation and Reimbursement & Claims			
6	Payroll processing, tax deductions (TDS, PF, ESI, etc.) Arrears calculations. Integration with accounting/finance systems, leave details and attendance master for automatic salary calculations.			
D	Performance Management:			
7	Appraisal cycles and feedback mechanisms and processing performance linked pay.			
E	Recruitment and Onboarding			
8	Online application and candidate tracking system (ATS)			
F	Employee Self-Service (ESS) & Manager Self-Service (MSS)			
9	Web and mobile portals for employees and managers			
G	Separation and Exit Management			
10	Auto calculation for notice period, shortfall days with systematic notification / alerts. Update employee leaving or resignation detail. Calculation of full and final settlement			
H	Analytics and Reports			

11	Pre-built dashboards (attendance, hiring, payroll, compliance, performance).			
12	Custom report builder with filters, grouping, and export options (Excel/PDF/CSV).			
13	Automated scheduled reports (daily, weekly, monthly, Yearly).			
14	Support for advanced analytics/BI tool integration.			
Technical Requirement:				
I	System Architecture Requirements			
15	The HRMS shall be cloud-based (SaaS) with multi-tenant or dedicated architecture.			
16	The solution must support modular deployment for all functional modules i.e. Employee Database, Attendance, Leave, Payroll, Recruitment, Performance etc.			
17	The system shall provide secure web and mobile access through modern browsers and mobile applications (Android & iOS).			
18	The system shall include REST APIs / Webhooks for third-party integrations.			
J	Integration Requirements			
19	Internal Integration: The HRMS shall integrate with the organisation's existing systems, including but not limited to: • Identity Management – Office 365 ERP / Finance systems (Tally) • Email systems (Microsoft Outlook)			

20	External Integration: • Recruitment portals and job boards • Statutory compliance systems (PF, ESI, PT, LWF, Income Tax) • Data export/import through CSV, Excel, JSON, or API			
K	Data & Storage Requirements			
21	Centralised employee master database with customizable fields.			
22	Secure storage of documents (Aadhaar, PAN, certificates, contracts).			
23	Support for bulk data upload & migration.			
24	Maintain comprehensive audit logs for HRMS system access and changes.			
25	Ability to define data residency/location as per organisational or legal requirements.			
26	Configurable data retention policies.			
L	User Access & Security Requirements			
27	The system must support Role-Based Access Control (RBAC) with granular permission levels.			
28	Multi-Factor Authentication (MFA) shall be supported.			
29	SSO support through SAML, OAuth 2.0, or enterprise identity providers.			
30	IP restrictions and geo-restrictions shall be configurable.			
31	Sensitive data must be encrypted at rest and in transit (minimum TLS 1.2).			
32	Secure employee self-service (ESS) and manager self-service portals.			
M	Workflow & Automation Requirements			

33	Configurable multi-level workflows for onboarding, leaves, transfers, separations.			
34	Automated email/SMS/in-app notifications for tasks and approvals.			
35	Workflow escalation rules (time-based or hierarchy-based).			
36	Policy-based rule engine for: • Leave & attendance rules • Holiday calendars • Shift management • Overtime calculations			
37	Custom triggers for data updates (e.g., auto leave accruals, status changes).			
O	Mobile Application Requirements			
38	Works on Android & iOS (latest 2 OS versions) Lightweight app (<50MB recommended)			
39	Push notifications for approvals and tasks must be available.			
40	Mobile app security must match web standards (MFA, encrypted storage).			

Feature Status	Short form	Remarks
Readily Available	RA	The feature is already supported and included in the solution (1 Marks shall be allotted)
Customization	CU	Can be developed / customized and delivered along with the Solution, prior to implementation at no extra cost. (0.5 Marks shall be allotted)

Please Note – Bidder need to provide all the feature as part of the proposal. It should be demonstrated as mentioned by bidder in their technical proposal as “Readily Available (RA)” / Customizable (CU). During Demonstration all the features will be evaluated by BSTL based on the response provided by the bidder. If any of the required features are not demonstrated but the same feature has been mentioned as “Readily Available (RA)” as part of Technical Scoring Sheet, then the same shall be changed to “Customizable (CU)” in the Functional and Technical Scoring Sheet after due confirmation from the bidder.

3. Implementation & Customization

Bidder may require doing some customization in existing module of their software to meet the requirement of BSLT which should be cover as part of implementation. The system

should provide Confidentiality, Integrity, Authentication and Non-Repudiation as per current standard (Signing, Hashing, Time-stamping and Encryption).

Bidder as part of the implementation phase shall have to provide a comprehensive hands-on online / Offline training to BSTL officials at the location prescribed by the BSTL. The objective of training would be to make an individual familiarise with solution & to get start working on it. The training shall cover the complete process. The successful completion of the training would be deemed as executed as part of acceptance of Project Sign off.

After successful completion of the implementation phase, Bidder is liable to provide Offline / onsite training to BSTL when required during the contract period. There will not be any cost borne by BSTL for any training.

All out of pocket expenses, traveling, boarding and lodging expenses for the entire life of the contract should be a part of the commercial bid submitted by the vendor to the BSTL. No extra costs on account of any items or services or by way of any out of pocket expenses, including travel, boarding and lodging etc. will be payable by BSTL. The vendor cannot take the plea of omitting any charges or costs and later lodge a claim on the BSTL for the same.

The vendor have to arrange for customization if required in the system to meet the changes suggested by CVC/ RBI/ Govt. of India/ regulatory authorities/BSTL towards compliance without any additional cost during the contract period

However, if any changes suggested by BSTL after implementation and one time customization of the system, BSTL will freeze the manpower effort, after mutual discussion with the successful vendor.

Vendor need to freeze and sign SOW (scope of work) for customization required by BSTL on mutual discussion as a payment milestone.

4. Data Segregation and Security Audits:

BSTL's data should be completely segregated within the Cloud environment. The vendor has to submit CERT-IN empanelled auditor confirmation on BSTL's data segregation controls complying to the regulatory norms.

5. Vulnerability Assessment and Penetration Testing (VAPT):

The Vendor shall conduct quarterly vulnerability assessments (VA) on the Cloud application and its underlying infrastructure.

In addition to the above vulnerability assessments, the Vendor shall conduct Yearly comprehensive Penetration Testing (PT) on the Cloud application and its underlying infrastructure.

The Vendor shall provide to the BSTL with a detailed compliance report outlining the findings of the vulnerability assessments and Penetration Testing, including identified vulnerabilities, the associated risk level, and the remediation.

However, Bidder must support if BSTL wants to conduct the above assessment through its technical vendor as and when need arises.

6. Data Migration:

In the event of any future migration of data, the Service Provider will provide complete access and support to the BSTL. BSTL will decide migration approach. There will not be any commercial attach with the activity.

7. Data Deletion Upon Contract Termination:

Upon the conclusion or termination of this Agreement, the Vendor shall securely remove, delete, and purge all data related to the Project from the cloud environment and the vendor has to submit confirmation to the BSTL.

1. Payment Terms

The bidder must accept the payment terms proposed by BSTL. The commercial bid submitted by the bidders must be in conformity with the payment terms proposed by BSTL. Any deviation from the proposed payment terms would not be accepted. BSTL shall have the right to withhold any payment due to the bidder, in case of delays or defaults on the part of the bidder. Such withholding of payment shall not amount to a default on the part of BSTL. If any of the items / activities as mentioned in the price bid is not taken up by BSTL during the assignment, BSTL will not pay the cost of such items and professional fees quoted by the bidder in the price bid against such activity / item.

The release of payment will be as follows:

The invoices for claiming the payment should be submitted along with the following documents:

- I. Original delivery Challans and related documents dully stamped and signed by the BSTL Project Manager and vendor representative.
- II. Performance Bank Guarantee (PBG) of 5% of Contact value (As per RFP format).

a) Annual Subscription and Maintenance Cost:

100% of yearly subscription and maintenance charges plus applicable tax payable quarterly in arrears against receipt of satisfactory service report of previous quarter from the Bank's Project / Operations Manager.

b) One Time Implementation, Customization & Integration Cost:

- i. 10% Payment on submission of Performance Bank Guarantee (PBG) in accordance with RFP terms. This payment shall be released within 15 days from the date of acceptance of PBG by BSTL Officials.
- ii. 50% of Implementation, Customization & Integration Cost plus applicable tax after UAT Sign off in the form of Acceptance Test which should be signed by both BSTL's identified Project Manager & vendor representative.
- iii. 30% of Implementation, Customization & Integration Cost plus applicable tax after go-live sign off from BSTL. Go Live Sign Off in the form of Acceptance Test should be signed by both BSTL's identified Project Manager & vendor representative.
- iv. 10% of Implementation, Customization & Integration Cost plus applicable tax after Go-Live closure signoff from BSTL. Go Live Closure Sign Off in the form of Final Acceptance Test should be signed by both BSTL's identified Project Manager & vendor representative.

c) Cost of additional user licenses subscription block (Optional item):

100% of yearly subscription and maintenance charges of user license's blocks plus

applicable tax payable quarterly in arrears against receipt of satisfactory service report of previous quarter from the Bank's Project / Operations Manager.

d) Man days for additional customization (Optional item):

Changes suggested by BSTL after implementation and one time customization of the system, BSTL will freeze the manpower effort, after mutual discussion with the successful vendor. Vendor need to sign scope of work for the required changes in consultation with BSTL.

For each customization requirement payable in terms of man-days effort after successful completion of the requirement. The payment milestone for each customization will be

- SOW signoff, where man-days requirement clearly mentioned, by bidder's representative and BSTL's Project Manager.
- Work completion signoff by bidder's representative and BSTL's Project Manager.

The payment will be released as per the payment terms on submission of related documents.

Note: Payment will be released on submission of unconditional signoff from BSTL Official along with original invoice after submission of PBG and signing of SLA (including an NDA by Successful Bidder).

Price mentioned in the Price Bid shall be the firm price and shall be inclusive of all taxes, duties, charges and levies etc. and all other payments/expenditures incurred or incurable in the performance of its obligations under the Purchase Order.

Penalty, if any, shall be deducted as per the penalty clause from the amount payable.

There shall be no escalation in the prices once the prices are fixed and agreed to by BSTL and the bidder. But any benefit arising out of any subsequent reduction in the prices due to reduction in duty & taxes after the prices are fixed and before the delivery should be passed on to BSTL, payments will be released as per above payment terms on submission of relevant documents. BSTL will pay invoices within a period of 30 days from the date of receipt of accepted invoices. Any dispute regarding the invoice will be communicated to vendor within 15 days from the date of receipt of the invoice. After the dispute is resolved, BSTL shall make payment within 15 days from the date the dispute stands resolved.

Annexure 03 – Bid Evaluation Terms

1. Evaluation process

There would be a two-stage evaluation process for the selection of vendor.

- ▶ Stage 1 – Eligibility Cum Technical Bid Evaluation
- ▶ Stage 2 – Commercial Bid Evaluation

During evaluation of the Tenders, BSTL, at its discretion, may ask the Bidder for clarification in respect of its tender. The request for clarification and the response shall be in writing, and no change in the substance of the tender shall be sought, offered, or permitted. BSTL reserves the right to accept or reject any tender in whole or in parts without assigning any reason thereof. The decision of BSTL shall be final and binding on all the Bidders to this document and BSTL will not entertain any correspondence in this regard.

A. Eligibility cum Technical Bid Evaluation

Eligibility criterion for the bidder to qualify this stage is clearly mentioned below. The Bidder would need to provide valid supporting documents as part of the eligibility proof. All dates, if not specified, to be applicable from the date of the RFP.

S No	Eligibility Criteria	Complied (Yes/No)	Supporting Documents Required
A	General		
1	The bidder should be either a Government Organization / PSU / PSE / partnership firm / LLP or private / public limited company in India at least for the last 5 years (as on RFP date).		Documentary Proof to be attached (Certificate of Incorporation)
2	The bidder must not be blacklisted / debarred by any Statutory, Regulatory or Government Authorities or Public Sector Undertakings (PSUs / PSBs) within last 2 years from the RFP date.		Letter of confirmation (self-certified letter signed by authorized official of the bidder)
3	The bidder is not from such a country which shares a land border with India, in terms of the said amendments to GFR, 2017. OR The bidder is from such a country and		Undertaking as per Annexure 3A and copy of certificate of valid registration with the Competent Authority (If applicable) (signed /Digitally signed documents from authorized representative of bidder.

S No	Eligibility Criteria	Complied (Yes/No)	Supporting Documents Required
	has been registered with the Competent Authority i.e. the Registration Committee constituted by the Department for Promotion of Industry and Internal Trade, as stated under Annexure I to the said Office Memorandum / Order and we submit the proof of such registration .		
4	The bidder to provide undertaking that any of its subsidiary or associate or holding company or companies having common director/s or companies in the same group of promoters/management or partnership firms/LLPs having common partners has not participated in the bid process.		Letter of undertaking (self-certified letter signed by authorized official of the bidder)
5	The bidder to provide an undertaking that all the technical requirements highlighted as part of Technical Scope are covered in totality in the proposal submitted by them.		Letter of confirmation (self-certified letter signed by authorized official of the bidder)
B	Financial		
1	The Bidder must have registered an average annual turnover of Rs. 80 Lakhs or above during the last three completed financial years – 2022-23, 2023-24 and 2024-25*.		Audited Financial statements for the financial years 2022-23, 2023-24 and 2024-25*. Certified letter from the Chartered Accountant clearly mentioning Turnover, Net Profit and Net worth. The CA certificate in this regard should be without any riders or qualification.
2	The Bidder must be net profit-making entity continuously for the last three financial years – 2022-23, 2023-24 and 2024-25*		Audited Financial statements for the financial years 2022-23, 2023-24 and 2024-25*. Certified letter from the

S No	Eligibility Criteria	Complied (Yes/No)	Supporting Documents Required
	OR The net worth of the Bidder should be positive as on RFP date and should not have eroded by more than 30% in the last three years.		Chartered Accountant (CA) clearly mentioning Turnover, Net Profit (After Tax) and Net worth. The CA certificate in this regard should be without any riders or qualification.
* If 2024-25 Financial Statements of any bidder is unaudited, then Financial statements for 2021-22, 2022-23 and 2023-24 will be considered, along with an undertaking letter from the bidder that FY 2024-25 statements are not audited. In this scenario Audited Financial statements for the financial year 2021-22, 2022-23 and 2023-24 are to be submitted.			
C	Technical		
1	The bidder should be an OSD or their authorized partner of OSD for supply of licenses and solution implementation and maintenance support under warranty / AMC / ATS for the proposed HRMS solution in India at least from last three years from the RFP date.		Letter of confirmation from OSD needs to be submitted.
2	If OSD is bidding directly they cannot submit another bid with any Partner/bidder.		Letter of confirmation from OSD in case OSD is bidding directly
3	One bidder can bid only with one OSD and similarly one OSD can bid with only one bidder.		Letter of confirmation from the vendor and OSD
D	Experience & Support Infrastructure		
1	The bidder should not be under the category of Non-Performing Asset (NPA) with any bank or financial institution at the time of submission of the bid.		Letter of undertaking (self-certified letter signed by authorized official of the bidder)
2	Bidder should not be debarred by Bank of Baroda or its subsidiary.		Letter of undertaking (self-certified letter signed by authorized official of the bidder)

S No	Eligibility Criteria	Complied (Yes/No)	Supporting Documents Required
3	The proposed Human Resource Management System (HRMS) should have been supplied, implemented and maintained in at least -3- Financial Institution / ITeS / BFSI sector in last 5 years in India, having employee strength of at least 300.		copy of work order/letter of award for each assignment and undertaking to be furnished by the bidder along with successful implementation confirmation from concerned organization.
4	The Bidder should have processing/cloud setup of both primary and disaster recovery centre in India and business continuation plan in place as per best practices of industry for restoration of Services.		Bidder undertaking and a copy of either of the following documents: 1. Certificate from Auditing agency. OR 2. Certificate from the cloud service provider.
5	The Bidder should be ISO / IEC 27001:2022 certified for Information Security, cybersecurity and privacy protection.		Copy of the valid certificates.

Note: In case the bidding company / firm is hived off from the demerged company, the experience, eligibility etc. as per the requirement of the RFP may be considered as of the demerged company, provided the demerged company doesn't apply in the same RFP process and Novation / Other Relevant Agreement is in place. In that case, Relevant Novation / Other Relevant Agreement need to be submitted.

The technical bids of only those bidders who qualify the above-mentioned eligibility criteria will be evaluated. The Technical Proposal will be evaluated for technical suitability as per Annexure 1.

Request for Proposal for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

BarodaSun Technologies Ltd.
3rd Floor, Bank of Baroda Building No. 2, Horniman Circle, Fort
Mumbai-400 001

Bid Number: GEM/2026/B/7416997
7th April 2026

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[A] Important Dates:

A	Schedule of RFP	
A.1	RFP Issuance Date	07.04.2026
A.2	Pre-Bid Meeting details	- Pre bid meeting will be held online through BSTL's Online Meeting Platform (i.e. Microsoft Teams) 15th April, 2026 at 03:00 PM. - Bidder to submit a <u>maximum of -2- participant's</u> names, contact numbers, designations and e-mail IDs on sukhapal@bstltd.co.in by 15th April, 2026 at 12:00 PM along with pre-bid queries. <u>Meeting invite Link will be sent by BSTL to bidder's provided email IDs to join the Online Meeting as per the schedule mentioned above.</u> - Bidder representatives will have to click the BSTL provided link (provided in the e-mail) to join the On-Line Pre-bid meeting.
A.3	Last Date of Submission of RFP Response (Closing Date)	28th April, 2026 : 03:00 PM on Mode: Online (on GeM Portal)
A.4	Eligibility Cum Technical Bid Opening Date	28th April, 2026: 3.30 PM
A.5	Commercial Bid	The commercial bids of only those Bidders who qualify in eligibility cum technical evaluation will be opened.
A.6	Earnest Money Deposit	Rs. 70,000/- (Seventy thousand Only). MSE / Startups will be exempted from EMD submission as per Govt. of India guidelines.
A.7	Mode of bid submission (Eligibility cum Technical as well as commercial bids)	Mode: Online on GeM Portal
A.8	Support Contact Details of GEM PORTAL	helpdesk-gem@gov.in 1800-419-3436; 1800-102-3436
A.9	RFP Coordinator details (BSTL)	Mr. Sukhapal Singh, Chief Manager (BSTL), Contact No.: 022-69964059 Email: sukhapal@bstltd.co.in Postal Address: The Chief Manager, BarodaSun Technologies Ltd. 3rd Floor, Bank of Baroda-Bldg II,

		Horniman Circle, Fort, Mumbai – 400 001
A.10	All letters must be addressed to the	MD & CEO BarodaSun Technologies Ltd. 3rd Floor, Bank of Baroda-Bldg II, Horniman Circle, Fort, Mumbai – 400 001

[B] Important Clarifications:

Following terms are used in the document interchangeably to mean:

1. Bank, BOB means 'Bank of Baroda'
2. Recipient, Respondent, Bidder, service provider, vendor means the respondent to the RFP document
3. RFP means the Request For Proposal document
4. Proposal, Bid means "Response to the RFP Document"
5. ITeS means Information Technology enabled Services
6. SLA means Service level Agreement
7. NDA means Non-Disclosure Agreement
8. GeM – Government-e-Marketplace
9. Central Vigilance Commission (CVC)
10. One Time Cost (OTC)
11. Total Cost of Ownership (TCO)
12. EMD – Earnest Money Deposit
13. Support means Support & Services to be provided as part of the Scope of Work
14. PBG -Performance Bank Guarantee
15. NPV mean Net Present Value
16. SP means Service Provider or Vendor
17. BSTL means Baroda Sun Technologies Limited

Confidentiality:

This document is meant for the specific use by the Company / person/s interested to participate in the current tendering process. This document in its entirety is subject to Copyright Laws. BSTL expects the vendors or any person acting on behalf of the vendors strictly adhere to the instructions given in the document and maintain confidentiality of information. The vendors will be held responsible for any misuse of information contained in the document, and liable to be prosecuted by BSTL In the event that such a circumstance is brought to the notice of BSTL. By downloading the document, the interested party is subject to confidentiality clauses.

1. Introduction

BarodaSun Technologies Limited, a Public company incorporated as a wholly owned subsidiary of Bank of Baroda on July 5, 2017, classified as Union government company, is registered with the Registrar of Companies, Mumbai, Maharashtra, and having its registered office at BarodaSun Tower, C-34, G-Block, Bandra Kurla Complex, Bandra Mumbai, Maharashtra, India 400051, CIN U74999MH2017GOI296962, (**hereinafter referred to as the “BSTL”**) which expression unless repugnant to the context or meaning thereof shall mean and include its successors and assigns), intends to issue this RFP document, **hereinafter called “RFP”**, to eligible Bidders, **hereafter called as ‘Bidders’**, to participate in the competitive bidding for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system for Baroda Sun Technologies Limited.

2. Project overview

This RFP document has been prepared solely for the purpose of enabling BSTL for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

BSTL, for this purpose, invites proposal from Vendors who are interested in participating in this RFP and who fulfil the eligibility criteria mentioned under **Annexure 03** and are also in a position to comply with the requirement as mentioned in Project Scope under **Annexure 01**.

Apart from the above, vendor must also agree to all the terms & conditions mentioned under this RFP. The RFP document is not recommendation, offer or invitation to enter into a contract, agreement or any other arrangement in respect of the services. The provision of the services is subject to observance of selection process and appropriate documentation being agreed between BSTL and the successful Vendor to be identified by BSTL after completion of the selection process as detailed in this document.

BSTL having its Corporate Office at 3rd Floor, Bank of Baroda Building no. 2, Horniman Circle, Mumbai, India – 400023, provides system integrator / consultancy services on matters relating to IT enabled business solutions / IT software product implementation across various lines of business for Bank of Baroda (**hereinafter referred to as “Bank”**) and for this it needs to select a Service Provider for Supply, Implementation & Maintenance of Human Resource Management system and detailed project scope is enclosed as **Annexure 01**.

3. Scope of Work

As mentioned in the **Annexure 01**

4. Contract period

BSTL shall enter into an agreement with the selected Bidder for a period starting from date of the Purchase Order till -3- years from the Go-Live Sign-off date given by BSTL

officials. The contract will be deemed completed only when all the items and services contracted by BSTL are provided in good condition, installed, implemented, tested and accepted along with the associated documentation provided to BSTL's employees; as per the requirements of the contract executed between BSTL and the Vendor. The BSTL will have the right to renegotiate these prices at the end of the contract period and BSTL can extend the contract as per BSTL's requirement.

5. Pre-Qualification for Submission of Bid

The bidders satisfying the eligibility **conditions (mentioned under Annexure 03)** and General terms and conditions specified in this document and ready to provide the said "Services" in conformity with Scope of Work stipulated in **Annexure 01**, may submit their bid through Government e-Marketplace (GeM) on or before the time line stipulated in the **[A] Important Dates**.

BSTL will not accept the bid through any other mode except GeM Portal.

6. Bid Security (Earnest Money Deposit)

Bidders are required to give an earnest money deposit of an amount at the time of submission of the bid. The proof of same is to be submitted while opening of eligibility cum technical bid, failing of which, the bid of the concerned bidder shall be rejected. Bid Security (Earnest Money Deposit)" shall be paid through electronic mode or a Bank Guarantee (**Annexure 05 – Bid Security Form**) of an equal amount issued by a Commercial Bank (other than Bank of Baroda) located in India. This Bid-security is to be valid for 8 months and is to be submitted through the electronic mode to the below mentioned account. The details of the account are as under.

- **Title of Account:** BarodaSun Technologies Limited
- **Account Number:** 03810200001921
- **Type of Account:** Current Account
- **Account Name:** Bank of Baroda
- **Branch:** Mumbai Main Office, Fort, Mumbai
- **IFSC Code:** BARB0FORTAP

Non-submission of Earnest Money Deposit in the format prescribed in RFP will lead to outright rejection of the Offer. The EMD of unsuccessful bidders will be returned to them on completion of the procurement process and no interest shall be paid on Bid Security Money provided by the vendor. The EMD (Earnest Money Deposit) of successful bidder(s) will be returned on submission of Performance Bank Guarantee / security deposit.

The amount of Earnest money deposit would be forfeited in the following scenarios:

- a. In case the bidder withdraws the bid prior to validity period of the bid for any reason whatsoever.
- b. In case of the successful bidder, if the bidder fails or refuses to accept and sign the contract as specified in this document within 1 month of issue of contract order/letter of intent for any reason whatsoever; or

- ▶ It Fails to provide the performance guarantee within 30 days from the purchase order date, for any reason whatsoever.
- ▶ If Fails to comply with any other condition precedent to signing the contract specified in the RFP documents.

a. Exemption for EMD amount:

Exemption from submission of EMD shall be given to bidders, who are Micro, Small Enterprises (MSE) / Startups. The bidders who are MSE have to submit necessary document issued by Ministry of MSME Govt of India and the bidders who are startups have to be recognized by Department for Promotion of Industry and Internal Trade (DPIIT) to avail the exemption. To qualify for EMD exemption, firms should necessarily enclose a valid copy of registration certificate issued by Ministry of MSME Govt of India / DPIIT which are valid on last date of submission of the tender documents along with "Bid Security Declaration" accepting that if they withdraw or modify their bids during period of validity etc., they will be suspended for the time specified in the tender document. MSE/Startup firms which are in the process of obtaining MSME / DPIIT certificate will not be considered for EMD exemption.

Since RFP is being floated on GeM Portal, Bid Security related exemptions as specified in clause 4, Section xiii, Sub-section 'm' of GeM GTC are applicable as the case may be.

7. Preference to make in India initiative

Government has issued Public Procurement (Preference to Make in India) [PPP-MII] Order 2017 vide the Department for Promotion of Industry and Internal Trade (DPIIT) Order No.P-45021/2/2017-B.E.-II dated 15.06.2017 (as revised and amended from time to time) to encourage 'Make in India' and to promote manufacturing and production of goods, services and works in India with a view to enhancing income and employment.

Preference will be given with the criteria laid down by Bank and as per procedures laid down in abovesaid [PPP-MII] order 2017(as revised and amended from time to time)

The guidelines under PPP-MII 2017 order and subsequent revisions/amendment as mentioned above shall be applicable subject to bidder submitting with Class-I/Class-II local content certificate for the quoted product.

In case of two or more than two bidders complying with Preference to Make in India initiative are found eligible as per scope mentioned in **Annexure-1** of the RFP, then Commercial bids of only these bidders will be opened.

In case sufficient bidders complying with Preference to Make in India initiative are not found eligible as per scope of work mentioned in Annexure-1 of the RFP, then Commercial bids of all technically eligible bidders will be opened.

8. Performance Guarantee

The successful Bidder shall provide a Performance Guarantee within 30 days from the date of receipt of the Purchase order or signing of the contract whichever is earlier in the format mentioned under **Annexure 17** to the extent of 5% of the contract value valid for the entire period of the contract plus 3 months and such other extended period as BSTL may decide for due performance of the project obligations. The guarantee should be that of a scheduled commercial bank in India only, other than Bank of Baroda.

In the event of non-performance of obligation or failure to meet terms of this RFP or subsequent agreement, BSTL shall be entitled to invoke the performance guarantee without notice or right of demur to the Bidder. Any amount pending for payment due to non-achieving of milestone/s set under the agreement or any other reason solely attributable to the Bidder should be included in the remaining amount of the contract value.

If the Performance guarantee is not submitted within the stipulated time, BSTL reserves the right to cancel the order / contract and Bid Security / Earnest Money Deposit submitted by the Bidder shall be forfeited.

9. Delivery Timeline

The Bidder should supply and implement the solution within -6- weeks from the date of acceptance of the Purchase order. The solution as per the required scope needs to be rolled out within delivery period mentioned above.

Any deliverable has not been supplied/implemented or not operational on account of which the implementation is delayed, will be deemed/treated as non-delivery thereby excluding BSTL from all payment obligations under the terms of this contract.

Bidder will have to pay late delivery charges to BSTL @ 0.1% of the Total Contract Value inclusive of all taxes, duties, levies etc., per week or part thereof, for late implementation of the Solution beyond due date of delivery, to a maximum of 5% of the overall Contract value inclusive of all taxes, duties, levies etc. beyond that BSTL reserves the right to cancel the contract.

10. Payment Terms

The bidder must accept the payment terms proposed by BSTL. The commercial bid submitted by the bidders must be in conformity with the payment terms proposed by BSTL. Any deviation from the proposed payment terms would not be accepted. BSTL shall have the right to withhold any payment due to the bidder, in case of delays or defaults on the part of the bidder. Such withholding of payment shall not amount to a default on the part of BSTL. If any of the items / activities as mentioned in the price bid is not taken up by BSTL during the assignment, BSTL will not pay the cost of such items and professional fees quoted by the bidder in the price bid against such activity / item.

The release of payment will be as follows:

The invoices for claiming the payment should be submitted along with the following

documents:

- I. Original delivery Challans and related documents dully stamped and signed by the BSTL Project Manager and vendor representative.
- II. Performance Bank Guarantee (PBG) of 5% of Contact value (As per RFP format).

a) Annual Subscription and Maintenance Cost:

100% of yearly subscription and maintenance charges plus applicable tax payable quarterly in arrears against receipt of satisfactory service report of previous quarter from the Bank's Project / Operations Manager.

b) One Time Implementation, Customization & Integration Cost:

- i. 10% Payment on submission of Performance Bank Guarantee (PBG) in accordance with RFP terms. This payment shall be released within 15 days from the date of acceptance of PBG by BSTL Officials.
- ii. 50% of Implementation, Customization & Integration Cost plus applicable tax after UAT Sign off in the form of Acceptance Test which should be signed by both BSTL's identified Project Manager & vendor representative.
- iii. 30% of Implementation, Customization & Integration Cost plus applicable tax after go-live sign off from BSTL. Go Live Sign Off in the form of Acceptance Test should be signed by both BSTL's identified Project Manager & vendor representative.
- iv. 10% of Implementation, Customization & Integration Cost plus applicable tax after Go-Live closure signoff from BSTL. Go Live Closure Sign Off in the form of Final Acceptance Test should be signed by both BSTL's identified Project Manager & vendor representative.

c) Cost of additional user licenses subscription block (Optional item):

100% of yearly subscription and maintenance charges of user license's blocks plus applicable tax payable quarterly in arrears against receipt of satisfactory service report of previous quarter from the Bank's Project / Operations Manager.

d) Man days for additional customization (Optional item):

Changes suggested by BSTL after implementation and one time customization of the system, BSTL will freeze the manpower effort, after mutual discussion with the successful vendor. Vendor need to sign scope of work for the required changes in consultation with BSTL.

For each customization requirement payable in terms of man-days effort after successful completion of the requirement. The payment milestone for each customization will be

- SOW signoff, where man-days requirement clearly mentioned, by bidder's representative and BSTL's Project Manager.
- Work completion signoff by bidder's representative and BSTL's Project Manager.

The payment will be released as per the payment terms on submission of related documents.

Note: Payment will be released on submission of unconditional signoff from BSTL Official along with original invoice after submission of PBG and signing of SLA (including an NDA by Successful Bidder).

Price mentioned in the Price Bid shall be the firm price and shall be inclusive of all taxes, duties, charges and levies etc. and all other payments/expenditures incurred or incurable in the performance of its obligations under the Purchase Order.

Penalty, if any, shall be deducted as per the penalty clause from the amount payable.

There shall be no escalation in the prices once the prices are fixed and agreed to by BSTL and the bidder. But any benefit arising out of any subsequent reduction in the prices due to reduction in duty & taxes after the prices are fixed and before the delivery should be passed on to BSTL, payments will be released as per above payment terms on submission of relevant documents. BSTL will pay invoices within a period of 30 days from the date of receipt of accepted invoices. Any dispute regarding the invoice will be communicated to vendor within 15 days from the date of receipt of the invoice. After the dispute is resolved, BSTL shall make payment within 15 days from the date the dispute stands resolved.

11. Sub - Contracting

The selected vendor shall not subcontract or permit anyone other than its personnel / employee to perform any of the work, service or other performance required under this project. In case any particular specialized service as prescribed in the scope of work requires subcontracting, it need to be specified in the proposal/ response document with all the details of the work/ services. Please note that no work/services shall be subcontracted without the prior permission from BSTL in writing.

12. Service Level Agreement and Non-Disclosure Agreement

The successful bidder shall execute a) Service Level Agreement (SLA) and Non-Disclosure Agreement (NDA) (As per **Annexure 18**), which contains all the services and terms and conditions of the services to be extended as detailed herein. The successful bidder shall provide the same along with acceptance of Purchase Order.

All the expenses related to execution of the document such as the applicable stamp duty and registration charges if any, shall be borne by the successful bidder as per applicable Stamp Act.

13. Compliance with Laws

Compliance in obtaining approvals/permissions/licenses: The Bidder shall promptly and timely obtain all such consents, permissions, approvals, licenses, etc., as may be necessary or required for any of the purposes of this project or for the conduct of their own business under any applicable Law, Government Regulation/Guidelines and shall keep the same valid and in force during the term of the project. Also, the bidder shall comply with the provisions of code of wages, and other labor welfare legislations and in the event of any failure or omission to do so, bidder shall indemnify, keep indemnified, hold harmless, defend, protect and fully compensate BSTL and its employees/ officers/ staff/ personnel/ representatives/agents from and against all claims or demands of liability and all consequences that may occur or arise for any default or failure on its part to conform or comply with the above and all other statutory obligations arising there from. BSTL will give notice of any such claim or demand of liability within reasonable time to the Bidder.

The Bidder is not absolved from its responsibility of complying with the statutory obligations as specified above.

14. Termination

BSTL reserves the right to terminate this RFP at any stage without any notice or assigning any reason in the event of exceptional circumstances.

At any time during the course of the RFP process or before the award of contract or after execution of the contract if one or more terms and conditions laid down in this Request For Proposal has not been met by the bidder or the bidder has made material misrepresentation or has given any materially incorrect or false information, BSTL may terminate his contract and may invoke performance bank guarantee or forfeit the security deposit as the case may be. Further, BSTL may impose such restriction/s on the defaulting bidder as it may deem fit.

After the award of the contract, if the selected bidder does not perform satisfactorily or delays execution of the contract, BSTL reserves the right to get the balance contract executed by another party of its choice by giving one month notice for the same. In such an event, the bidder is bound to make good the additional expenditure which BSTL may have to incur for the execution of the balance of the contract.

Notwithstanding above, BSTL reserves the right to terminate this assignment or any subsequent agreement and / or any particular order, in whole or in part, without assigning any reason, by giving Service Provider at least 90 days prior notice in writing.

15. Grievance Redressal and Dispute Resolution

Any bidder who claims to have a grievance against a decision or action with regards to the provisions of this RFP may file a request to the MD&CEO Baroda Sun Technologies Ltd. at sanjeev@bstltd.co.in. It may please be noted that the grievance can be filed by only that bidder who has participated in Procurement proceedings in accordance with the provisions of this RFP. All letters must be addressed to the following:

MD&CEO
BarodaSun Technologies Ltd.

3rd Floor, Bank of Baroda-Bldg II,
Horniman Circle, Fort,
Mumbai – 400 001

16. Dispute Resolution

BSTL and the Bidder shall make every effort to resolve amicably, by direct informal negotiation between their respective project managers of, any disagreement or dispute arising between them under or in connection with this RFP.

If BSTL project manager and Bidder's project manager/ director are unable to resolve the dispute within 15 days from the commencement of such informal negotiations, they shall immediately escalate the dispute to the senior authorized personnel designated by the Bidder and BSTL respectively.

If within 15 days from the commencement of such negotiations between the senior authorized personnel, the parties are unable to resolve the dispute amicably, both parties may refer the dispute to Mediation by mutual consent before the proceedings of arbitration are resorted to as provided hereinafter. It is made clear that the said mediation shall be purely optional for both the parties.

Mediation

If both parties mutually agree to resort to/adopt the mediation process the request in writing would be made by both the parties to any recognised mediation centre at Mumbai.

Arbitration

In the event the dispute between the parties not getting resolved through the process mentioned hereinabove, all questions, disputes or differences arising under and out of, or in connection with the contract or carrying out of the work whether during the progress of the work or after the completion and whether before or after the determination, abandonment or breach of the contract shall be referred to arbitration by a sole Arbitrator acceptable to both parties OR the number of arbitrators shall be three, with each side to the dispute being entitled to appoint one arbitrator. The two arbitrators appointed by the parties shall appoint a third arbitrator who shall act as the chairman of the proceedings.

The seat and place of arbitration shall be Mumbai. The provisions of Arbitration and Conciliation Act 1996 or any statutory modification thereof shall apply to the arbitration proceedings.

The arbitral award shall be final and binding on the parties. Judgment upon the award may be entered by any court having jurisdiction thereof or having jurisdiction over the relevant Party.

17. Governing Laws

This RFP and the subsequent contract shall be governed and construed and enforced in accordance with the laws of India and both the Parties shall agree that in respect of any dispute arising upon, over or in respect of any of the terms of this RFP, only the

courts in Mumbai shall have exclusive jurisdiction to try and adjudicate such disputes to the exclusion of all other courts.

18.Prevention of Corrupt and Fraudulent Practices

Every Bidders / Suppliers / Contractors is expected to observe the highest standard of ethics during the procurement and execution of such contracts in pursuance of the policy:

- “Corrupt Practice” means the offering, giving, receiving or soliciting of anything of value to influence the action of an official in the procurement / bidding process or in contract execution AND
- “Fraudulent Practice” means a misrepresentation of facts in order to influence a procurement process or the execution of contract to the detriment of BSTL and includes collusive practice among Bidders (prior to or after bid submission) designed to establish bid prices at artificial non-competitive levels and to deprive BSTL of the benefits of free and open competition.

BSTL reserves the right to reject a proposal for award of contract to any successful bidder if it has prima facie found sufficient evidence/proof of such bidder having engaged in corrupt or fraudulent practices in competing for the contract in question.

BSTL further reserves the right to declare a firm ineligible, either indefinitely or for a stated period of time, to be awarded a contract if at any time it has prima facie found sufficient evidence/proof of such firm having engaged in corrupt or fraudulent practices in competing for or in executing the contract.

Successful vendor/Service Provider, to be selected according to the service/work/project for which this Request for proposal is invited shall comply with BSTL's / BOB's Code of Ethics which is available on BSTL's / BOB's website>Shareholder's Corner> Policies/Codes> Our Code of Ethics.

19.Information/Cyber-Security Measures/Controls for selected SP:

The Bidder and third party Service Provider need to provide an undertaking on their letter head as per **Annexure-15** to comply with the Information and cyber security controls, on an ongoing basis and regulatory / legal guidelines and directives related to SP / outsourcing issued by regulators / legal entities from time to time. The SP shall provide access to the regulators, legal authorities, BSTL and BSTL appointed auditors for on-site/off-site supervision.

Service providers have to ensure that outsourced critical IT service are subjected to the annual IT audit / Technology risk assessment process by an independent professional agency as approved by the local government or regulator at no extra cost to the BSTL.

The selected SP has to abide with all applicable Cyber Security Controls which will be part of the NDA/SLA signed with the BSTL at the time of award of contract.

20.Authorized Signatory

The selected Bidder shall indicate its authorized signatories who can discuss and correspond with BSTL, with regard to the obligations under the contract. The selected Bidder shall submit at the time of signing the contract, a certified copy of the resolution of their Board or a copy of the Power of Attorney, authenticated by Company Secretary/Director, authorizing an official or officials of the company or a Power of Attorney copy to discuss, sign agreements/contracts with BSTL. The Bidder shall furnish proof of signature identification for above purposes as required by BSTL.

21. The bid submission by related parties

If related parties (as defined below) submit more than one bid then both /all bids submitted by related parties are liable to be rejected at any stage at BSTL's discretion:

Bids submitted by holding company and its subsidiary company;

Bids submitted by two or more companies having common director/s

Bids submitted by partnership firms / LLPs having common partners

Bids submitted by companies in the same group of promoters/management

22. Technical Proposal Attention Items

- a. This RFP is not a contract offer. Receipt of a proposal neither commits BSTL to award a contract to any bidder, nor limits BSTL's rights to negotiate with any bidders, suppliers or contractors in BSTL's best interest. BSTL reserves the right to contract with any bidder, supplier or contractor at its own discretion.
- b. BSTL reserves the right to request additional information necessary and pertinent to the project so as to ensure the bidder's ability and qualification to perform the contract.
- c. Failure to answer any questions within stipulated timeline at any stage of this RFP may be considered non-responsive and the proposal may be disqualified.
- d. For any ambiguity, omissions or unclear content in the RFP, the bidders should request BSTL to clarify along with pre-bid queries within the time line mentioned in the "[A] Important Dates".
- e. For all technical details and relevant standards and specifications of this RFP that may not be stated in detail, bidders must provide quality services to BSTL.
- f. Expenses incurred in the preparation of proposals in response to this RFP are the sole responsibility of the bidders.
- g. BSTL reserves the right to accept or reject any and all proposals, or any part of any proposal, without penalty. Any allowance for oversight, omission, error, or mistake by the bidder made after receipt of the proposal will be at the sole discretion of BSTL.

23. Right to Reject Bids

BSTL reserves the absolute and unconditional right to reject the response to this RFP if it is not in accordance with its requirements and no correspondence will be entertained by BSTL in the matter. The bid is liable to be rejected if:

- It is not in conformity with the instructions mentioned in the RFP document.

- It is not accompanied by the requisite Earnest Money Deposit (EMD).
- It is not properly or duly signed.
- It is received through Telex / telegram / fax
- It is received after expiry of the due date and time.
- It is incomplete including non- furnishing of the required documents.
- It is evasive or contains incorrect information.
- There is canvassing of any kind.
- Submitted by related parties
- It is submitted anywhere other than the place mentioned in the RFP.

Further BSTL reserves the rights to:

- Reject any or all responses received in response to the RFP and also not to further process/open the commercial bids in terms of clause 7.
- Extend the time for submission of all proposals
- Cancel the RFP at any stage, without assigning any reason whatsoever.
- Visit the place of work of the bidder
- Conduct an audit of the services provided by the bidder.
- Ascertain information from BSTLs and other institutions to which the bidders have rendered their services for execution of similar projects.
- Revise any part of the tender document, by providing a written addendum at any stage till the award of the contract. BSTL reserves the right to issue revisions to this tender document at any time before the award date. The addendums, if any, shall be published on BSTL's website only.

24. General Terms and conditions

- 24.1 The RFP document is not recommendation offer to enter into a contract, agreement or any other arrangement, in respect of the services. The provision of the services is subject to observance of selection process and appropriate documentation being agreed between BSTL and any successful Bidder as identified by BSTL after completion of the selection process as detailed in this document.
- 24.2 *Information Provided:* The RFP document contains statements derived from information that is believed to be true and reliable at the date obtained but does not purport to provide all of the information that may be necessary or desirable to enable an intending contracting party to determine whether or not to enter into a contract or arrangement with BSTL in relation to the provision of services. Neither BSTL nor any of its directors, officers, employees, agents, representative, contractors, or advisers gives any representation or warranty (whether oral or written), express or implied as to the accuracy, updating or completeness of any writings, information or statement given or made in this RFP document.

- 24.3 *For Respondent Only:* The RFP document is intended solely for the information of the party to whom it is issued (“the Recipient” or “the Respondent”) and no other person or organization.
- 24.4 *Costs Borne by Respondents:* All costs and expenses (whether in terms of time or money) incurred by the Recipient / Respondent in any way associated with the development, preparation and submission of responses, including but not limited to attendance at meetings, discussions, demonstrations, etc. and providing any additional information required by BSTL, shall be borne entirely and exclusively by the Recipient / Respondent.
- 24.5 *No Legal Relationship:* No binding legal relationship will exist between any of the Recipients / Respondents and BSTL until execution of a contractual agreement to the full satisfaction of BSTL.
- 24.6 *Recipient Obligation to Inform Itself:* The Recipient must apply its own care and conduct its own investigation and analysis regarding any information contained in the RFP document and the meaning and impact of that information.
- 24.7 *Evaluation of Offers:* Each Recipient acknowledges and accepts that BSTL may, in its sole and absolute discretion, apply whatever criteria it deems appropriate in the selection of Bidder, not limited to those selection criteria set out in this RFP document.
- 24.8 The issuance of RFP document is merely an invitation to offer and must not be construed as any agreement or contract or arrangement. The bidders unconditionally acknowledges by submitting its response to this RFP document that it has not relied on any idea, information, statement, representation, or warranty given in this RFP document.
- 24.9 Acceptance of Terms: the bidders will, by responding to BSTL’s RFP document, be deemed to have accepted the terms as stated in this RFP document
- 24.10 Only one submission of response to RFP by each Respondent will be permitted.
- 24.11 BSTL expects the Bidder to adhere to the terms of this tender document and would not accept any deviations to the same.
- 24.12 BSTL expects that the Bidder appointed under the tender document shall have the single point responsibility for fulfilling all obligations and providing all deliverables and services required by BSTL.
- 24.13 Unless agreed to specifically by BSTL in writing for any changes to the issued tender document, the Bidder responses would not be incorporated automatically in the tender document.
- 24.14 BSTL will notify the Respondents in writing as soon as practicable after the RFP Evaluation Complete date, about the outcome of the RFP evaluation process, including whether the Respondent’s RFP response has been accepted or rejected or not processed further and BSTL shall not obliged to provide any reasons for such actions in writing.
- 24.15 All responses received after the due date/time as mentioned in “[A] Important Dates- Last Date of Submission of RFP Response (Closing Date)” would be considered late and would be liable to be rejected. E procurement portal will not

allow the lodgement of RFP response after the deadline. It should be clearly noted that BSTL has no obligation to accept or act on any reason for a late submitted response to RFP. BSTL has no liability to any Respondent who lodges a late RFP response for any reason whatsoever, including RFP responses taken to be late only because of another condition of responding.

- 24.16 BSTL has established RFP coordinators to provide a venue for managing bidder relationship and other requirements through BSTL's decision making body for contract clarification. All the queries and communication must be addressed to the RFP coordinators / contact persons from BSTL mentioned in "[A] Important Dates - RFP Coordinator"
- 24.17 Recipients are required to direct all communications for any clarification related to this RFP, to RFP Coordinator.
- 24.18 All questions relating to the RFP, technical or otherwise, must be in writing and addressed to the addresses given in point "[A] Important Dates" above. Interpersonal communications will not be entered into, and a Respondent will be disqualified if attempting to enter into such communications. BSTL will try to reply, without any obligation in respect thereof, every reasonable question raised by the Respondents in the manner specified.
- 24.19 However, BSTL may in its absolute discretion seek, but shall be under no obligation to seek, additional information or material from any Respondents after the RFP closes and all such information and material provided must be taken to form part of that Respondent's response.
- 24.20 Respondents should invariably provide details of their email address (as) as responses to queries will only be provided to the Respondent via email. If BSTL in its sole and absolute discretion deems that the originator of the query will gain an advantage by a response to a question, then BSTL reserves the right to communicate such response to all Respondents.
- 24.21 BSTL may in its absolute discretion engage in discussion or negotiation with any Respondent (or simultaneously with more than one Respondent) after the RFP closes to improve or clarify any response.
- 24.22 Bidder should submit their Eligibility Cum Technical and Commercial bids through online GeM / e-procurement portal. The bidder must register for submission of their bid as specified in this document.
- 24.23 All submissions, including any accompanying documents, will become the property of BSTL. The bidder shall be deemed to have licensed, and granted all rights to, BSTL to reproduce the whole or any portion of their submission for the purpose of evaluation, to disclose the contents of the submission to other bidders who have registered a submission and to disclose and/or use the contents of the submission as the basis for any resulting RFP process, notwithstanding any copyright or other intellectual property right of the Recipient that may subsist in the submission or accompanying documents
- 24.24 All responses should be in English language. All responses by the bidder to this tender document shall be binding on such bidder for a period of 180 days after opening of the bids.

- 24.25 The bidder may modify or withdraw its offer after submission but prior to the closing date and time as prescribed by BSTL. No offer can be modified or withdrawn by the bidder subsequent to the closing date and time for submission of the offers.
- 24.26 The bidders are required to quote for all the components/services mentioned in the “Project scope” and all other requirements of this RFP. In case the bidder does not quote for any of the components/services, the response would be deemed to include the quote for such unquoted components/service. It is mandatory to submit the details in the formats provided along with this document duly filled in, along with the offer. BSTL reserves the right not to allow / permit changes in the technical specifications and not to evaluate the offer in case of non-submission of the technical details in the required format or partial submission of technical details.
- 24.27 Based on BSTL’s requirements as listed in this document, the bidder should identify the best-suited product / solution that would meet BSTL’s requirements and quote for the same. In case the bidder quotes more than one model and they have not specified which particular model quoted by them needs to be considered, then the response would be considered as improper and the whole tender submitted by the Bidder is liable to be rejected. The Bidder is expected to provide the best option and quote for the same.
- 24.28 In the event the bidder has not quoted for any mandatory items as required by BSTL and forming a part of the tender document circulated to the Bidder’s and responded to by the bidder, the same will be deemed to be provided by the bidder at no extra cost to BSTL.
- 24.29 BSTL is not responsible for any assumptions or judgments made by the bidder for proposing the deliverables. BSTL’s interpretation will be final.
- 24.30 BSTL ascertains and concludes that everything as mentioned in the tender documents circulated to the Bidder and responded by the Bidder have been quoted for by the Bidder, and there will be no extra cost associated with the same in case the Bidder has not quoted for the same.
- 24.31 All out of pocket expenses, traveling, boarding and lodging expenses shall not be payable by BSTL to bidder. No extra costs on account of any items or services or by way of any out of pocket expenses, including travel, boarding and lodging etc. will be payable by BSTL. The Bidder cannot take the plea of omitting any charges or costs and later lodge a claim on BSTL for the same.
- 24.32 Responses to this RFP should not be construed as an obligation on the part of BSTL to award a contract / purchase contract for any services or combination of services. Failure of BSTL to select a bidder shall not result in any claim whatsoever against BSTL. BSTL reserves the right to reject any or all bids in part or in full, without assigning any reason whatsoever.
- 24.33 By submitting a proposal, the bidder agrees to contract with BSTL within the time period prescribed by BSTL. Failure on the part of the successful bidder to execute an agreement with BSTL will relieve BSTL of any obligation to the bidder, and a different bidder may be selected based on the selection process.

- 24.34 The terms and conditions as specified in the RFP and addendums (if any) thereafter are final and binding on the bidders. In the event the bidder is not willing to accept the terms and conditions of BSTL, the bidder may be disqualified. Any additional or different terms and conditions proposed by the bidder would be rejected unless expressly assented to in writing by BSTL and accepted by BSTL in writing
- 24.35 The bidder shall represent and acknowledge to BSTL that it possesses necessary experience, expertise and ability to undertake and fulfill its obligations, involved in the performance of the provisions of this RFP. The bidder represents that the proposal to be submitted in response to this RFP shall meet the proposed RFP requirement. If any services, functions or responsibilities not specifically described in this RFP are an inherent, necessary or customary part of the deliverables or services and are required for proper performance or provision of the deliverables or services in accordance with this RFP, they shall be deemed to be included within the scope of the deliverables or services, as if such services, functions or responsibilities were specifically required and described in this RFP and shall be provided by the bidder at no additional cost to BSTL. The bidder also acknowledges that BSTL relies on this statement of fact, therefore neither accepting responsibility for, nor relieving the bidder of responsibility for the performance of all provisions and terms and conditions of this RFP, BSTL expects the bidder to fulfill all the terms and conditions of this RFP.
- 24.36 The bidder covenants and represents to BSTL the following:
- ▶ It is duly incorporated, validly existing and in good standing under as per the laws of the state in which the entity is incorporated.
 - ▶ It has the corporate power and authority to enter into Agreements and perform its obligations there under.
- 24.37 The execution, delivery and performance under an Agreement by bidder:
- ▶ Will not violate or contravene any provision of its documents of incorporation;
 - ▶ Will not violate or contravene any law, statute, rule, regulation, licensing requirement, order, writ, injunction or decree of any court, governmental instrumentality or other regulatory, governmental or public body, agency or authority by which it is bound or by which any of its properties or assets are bound;
 - ▶ Except to the extent that the same have been duly and properly completed or obtained, will not require any filing with, or permit, consent or approval of or license from, or the giving of any notice to, any court, governmental instrumentality or other regulatory, governmental or public body, agency or authority, joint venture party, or any other entity or person whatsoever;
- 24.38 The bidder shall undertake to provide appropriate human as well as other resources required, to execute the various tasks assigned as part of the project, from time to time.

- 24.39 BSTL would not assume any expenses incurred by the bidder in preparation of the response to this RFP and also would not return the bid documents to the Bidders.
- 24.40 BSTL will not bear any costs incurred by the bidder for any discussion, presentation, demonstrations etc. on proposals or proposed contract or for any work performed in connection therewith.
- 24.41 BSTL reserves the right to extend the dates for submission of responses to this document.
- 24.42 *Preliminary Scrutiny* – BSTL will scrutinize the offers to determine whether they are complete, whether any errors have been made in the offer, whether required documentation has been furnished, whether the documents have been properly signed, and whether items are quoted as per the schedule. BSTL may, at its discretion, waive any minor non-conformity or any minor deficiency in an offer. This shall be binding on all bidders and BSTL reserves the right for such waivers and BSTL's decision in the matter will be final.
- 24.43 *Clarification of Offers* – To assist in the scrutiny, evaluation and comparison of offers, BSTL may, at its discretion, ask some or all bidders for clarification of their offer. BSTL has the right to disqualify the bidder whose clarification is found not suitable to the proposed project.
- 24.44 *No Commitment to Accept Lowest bid or Any Tender* – BSTL shall be under no obligation to accept the lowest price bid or any other offer received in response to this Tender notice and shall be entitled to reject any or all offers including those received late or incomplete offers without assigning any reason whatsoever. BSTL reserves the right to make any changes in the terms and conditions of procurements. BSTL will not be obliged to meet and have discussions with any Bidder, and / or to listen to any representations unless there is change in the terms and conditions of purchase
- 24.45 *Erasures or Alterations* – The offers containing erasures or alterations will not be considered. There should be no hand-written material, corrections or alterations in the offer. Technical details must be completely filled up. Correct information of the services being offered must be filled in. Filling up of the information using terms such as "OK", "accepted", "noted", "as given in brochure / manual" is not acceptable. BSTL may treat the offers not adhering to these guidelines as unacceptable.
- 24.46 *Price Discussion* – It is absolutely essential for the Bidders to quote the lowest price at the time of making the offer in their own interest. BSTL reserves the right to do price discovery and engage the successful bidder in discussions on the prices quoted.
- 24.47 If BSTL is not satisfied with the specifications as specified in the tender document and observes major deviations, the bids of such bidders will not be short-listed for further evaluation. No further discussions shall be entertained with such bidders in respect of the subject bid.
- 24.48 The Bidder shall perform its obligations under this Tender as an independent contractor, and shall not engage subcontractors to perform any of the

Deliverables or Services without the prior permission from BSTL. Neither this Tender nor the Bidder's performance of obligations under this Tender shall create an association, partnership, joint venture, or relationship of principal and agent, master and servant, or employer and employee, between BSTL and the Bidder or its employees, subcontractor; and neither Party shall have the right, power or authority (whether expressed or implied) to enter into or assume any duty or obligation on behalf of the other Party.

- 24.49 The Bidder shall solely be responsible for all payments (including any statutory payments) to its employees and / or sub-contractors and shall ensure that at no time shall its employees, personnel or agents hold themselves out as employees or agents of BSTL, nor seek to be treated as employees of BSTL for any purpose, including claims of entitlement to fringe benefits provided by BSTL, or for any kind of income or benefits. The Bidder alone shall file all applicable tax returns for all of its personnel assigned hereunder in a manner consistent with its status as an independent contractor of services; and the Bidder will make all required payments and deposits of taxes in a timely manner.
- 24.50 Successful Vendor/Service Provider/Supplier/ Consultant/Contractor, who will be selected according to the service/work/project for which the proposal or quotation is invited shall comply with BOB's / BSTL's Code of Ethics which is available on BOB's / BSTL's website>Shareholder's Corner> Policies/Codes> Our Code of Ethics and a clause to this effect shall be included in the agreement/contract.
- 24.51 Service Provider shall provide Police verification report of all the resources deployed (if any) on the BSTL project on the BSTL's premises within 1 month from the date of on boarding on the project. For subsequent deployment of resources during the contract period, on boarding of the resource to be done preferably after police verification, however not later than 1 month from the date of on boarding.

25. Information Confidentiality

This document is meant for the specific use by the Company / person/s interested to participate in the current tendering process. This document in its entirety is subject to copyright laws. BarodaSun Technologies Limited expects the bidders or any person acting on behalf of the bidders to strictly adhere to the instructions given in the document and maintain confidentiality of information. The Bidders will be held responsible for any misuse of the information contained in the document and liable to be prosecuted by BSTL, in the event of such circumstances being brought to the notice of BSTL. By downloading the document, the interested party is subject to confidentiality clauses.

26. Disclaimer

Subject to any law to the contrary, and to the maximum extent permitted by law, BSTL and its directors, officers, employees, contractors, representatives, agents, and advisors disclaim all liability from any loss, claim, expense (including, without limitation, any legal fees, costs, charges, demands, actions, liabilities, expenses or

disbursements incurred therein or incidental thereto) or damage, (whether foreseeable or not) ("Losses") suffered by any person acting on or refraining from acting because of any presumptions or information (whether oral or written and whether express or implied), including forecasts, statements, estimates, or projections contained in this RFP document or conduct ancillary to it whether or not the Losses arises in connection with any ignorance, negligence, inattention, casualness, disregard, omission, default, lack of care, immature information, falsification or misrepresentation on the part of BSTL or any of its directors, officers, employees, contractors, representatives, agents, or advisers.

Annexure 01 – Project Details (Scope of Work)

1. Broad Scope of work:

BarodaSun Technologies Limited (“BSTL” or “the Company”), a public sector technology services company, proposes to select a Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

BSTL for this purpose, invites proposal from prospective bidders. Bidder who is interested in participating in this RFP must fulfil the eligibility criteria mentioned in the RFP and also in a position to comply with the Scope of Work in the document to provide the required solution. Apart from above the bidder must also agree to all our terms & conditions mentioned under this RFP.

The proposed Human Resource Management System (HRMS) solution should be aligned with, but not limited to, the following key features and technical and functional capabilities:

1. Employee Database Management

1.1 Digital Employee Records & Document Repository: The system should store complete digital records of every employee, including appointment letters, ID proofs, certificates, and HR documents.

1.2 Core HRMS (Organization, People, Job data, Position, Job, Contact, Dependents) & Employee Enrolment: The system should manage all Job Data actions, including person profiles, personal information, biodata, positions etc. It should have functionality to enroll and maintain complete official records such as name, employee ID, date of joining, photo, and update history. The system should have functionality to create category i.e. Department, Designation, Division, Projects, Grade, Locality etc and also generate employee, EC No., biodata and generic employee lists.

1.3 Personal Details Management: The system should capture address, contact details, emergency contacts, family information, qualifications, skills, and bank details with change history.

1.4 Alerts and Notifications: Systematic alerts and notifications in form of emails to employees and HR/administrative department to update documents, profile completion, pending updates, etc.

1.5 Multiple Employee Categories: The system should support input and storage of data for different categories of employees viz Regular, Contractual, and Deputed staff with relevant information fields.

1.6 Organization Development: The system should enable creation and management of departments, locations, positions, and job codes. It should

maintain the organizational structure, hierarchy mapping , workflow mapping and reporting relationships.

2. Attendance & Leave Management

2.1 Biometric/Digital Attendance Integration: The system should integrate with biometric or digital attendance systems to mark attendance of the employee, which will have functionality to capture thumb impression, IRIS etc. as approved by Government of India, Government of Maharashtra.

2.2 Office Hours & Holiday Calendar: Maintain office timings, weekly offs, and annual holiday list.

2.3 Attendance & Leave Reports: There should be functionality to generate daily, monthly, and yearly attendance summaries and leave details.

2.4 Leave Rules Configuration & Approvals: Creates master BSTL leave rules, allows online leave application. Approval Level Creation to manage leave process. Paperless functionality for leave Application by the employees and approval by their managers with effect to automatic leave ledger update.

2.5 Real-Time Attendance Dashboard & Timesheet: Shows live attendance status, late marks, early exits. There should be provision for timesheet entries for employees as per projects. Allow attendance punching with In /Out daily, monthly, yearly reports.

2.6 Attendance Management: Defines rules for work-from-home, half-day, late marking, deductions etc as per BSTL's attendance / leave rules.

3. Payroll, Compensation and Reimbursement & Claims

3.1 CTC Structure & Salary Master: The system should manage employee salary components and structure.

3.2 Payroll Processing & Statutory Deductions: The system should have provision for automated payroll processing, tax deductions (TDS, PF, ESI etc). The system should be integrated with accounting/finance systems, leave details and attendance master for automatic salary calculations and arrears calculations.

3.3 Investment Declarations & Tax Computation: Allows uploading tax-proof documents and calculating monthly TDS.

3.4 Salary Slips & Disbursement: Generates payslips and maintains historical salary records.

3.5 Arrears & Adjustment Reports: Supports arrear calculations and related reporting.

3.6 Claims & Reimbursements – The HRMS should allow employees to submit claims including TA / DA claims and reimbursement requests as per their eligibility and policy guidelines. The system should support upload of required documents, route requests through an approval workflow, and automatically integrate approved claims with the payroll or payment system for timely settlement. It should have provision to mark members on leave and reroute claims selectively. It should also maintain a complete record of all claims with an audit trail.

4. Employee Self Service & Manager Self Service

4.1 Web and mobile application for employees and managers.

4.2 Employee Self-Service: Employees can apply for leave, view payslips, update data, etc.

4.3 Manager Self-Service: Managers can approve leave, monitor attendance, and access reports.

4.4 Notifications: Sends alerts for approvals and pending tasks.

5. Performance Management

5.1 Goal Setting & KPI Tracking: The system should enable creation and tracking of KPIs and goals.

5.2 Appraisal Cycles & Feedback: The system should support Appraisals cycles, feedback mechanism and process performance-linked pay.

6. Recruitment & Onboarding

6.1 Job Requisition & Posting: Allows managers to raise hiring requests and HR to post jobs.

6.2 Applicant Tracking System (ATS) & Candidate Tracking: Manages online applications, candidate tracking system, shortlisting, and selection stages.

6.3 Interview Scheduling & Selection: Supports scheduling, feedback, and offer letter generation.

6.4 Onboarding Workflow: Handles document uploads, verification, and employee code generation.

7. Separation & Exit Management

7.1 Resignation Submission: Employees can submit resignations online or on other separation reasons viz. Demise, Dismissal, etc, the system should follow the exit process fully automated through workflow including requisite clearances.

7.2 Exit Forms & Clearances: System manages digital exit forms and no-dues processes.

7.3 Notice Period & Shortfall Calculation: The system should automatically calculate the notice period, shortfall days with systematic notification / alerts.

7.4 Full & Final Settlement: The system should automatically compute all dues and recoveries and calculation of full and final settlement.

7.5 Exit Interviews: Records exit feedback.

8. Analytics & Reports

8.1 HR Dashboards: Displays headcount, attendance, attrition, leave usage, etc.

8.2 The system should have ability to generate reports / MIS from system as and when required. The system should provide flexibility in choosing different headers for generating various reports.

9. Intimation / Permission:

9.1 Employee Intimation and Permission module. The system should have provision for employee to request for different types of Intimation / Permission.

10. Confirmation Process:

10.1 The system should generate the list of employees to be confirmed, automatic workflow with escalation features. On confirmation the record should be updated automatically in job data.

11. Notice Board / Circulars / Intimation

11.1 The system should have provision for Notice board / Circulars / Intimation tool – where Admin can post notices/ circulars / letters / communication etc to the target audience.

12. Full and Final Settlement

12.1 Full and Final Settlement of employees separating from BSTL and calculation of tax. The FnF should also display any pending dues of the employee. Payment of F&F records and reconciliation.

13. Technical Requirements

- Web-based and mobile-enabled architecture
- Cloud-based deployment.
- High availability, scalability, and disaster recovery support.
- Role-based access control and data security as per prevailing standards.
- Compatibility with modern browsers and operating systems.

14. Training (Offline / Online)

- User training for HR, IT, and administrative staff
- Preparation of user manuals and training materials
- Post-implementation support and capacity building

15. Support and Maintenance

- Comprehensive warranty and AMC support post go-live
- Helpdesk support (email, ticketing, remote assistance)
- Periodic upgrades, patches, and system performance reviews

2. BSTL's Project Technical and Functional Requirements:

The Bidder should submit the compliance strictly in the following format for below mentioned Functional and Technical Specification/requirement. All the Technical and Functional Specification are mandatory and need to be developed during implementation phase if not readily available. The compliance must be given for each point. No Deviation will be accepted. The necessary documents and Certificates should be submitted.

Total Marking will **40 Marks** and accordingly bidder's marks will be calculated as part of Technical Bid Evaluation.

SN	Mandatory Requirement	Readily Available- 1 Marks (Y/N)	Customizable – 0.5 Marks (Y/N)	Marks
	Functional Module:			
A	Employee database management			
1	There should be functionality to create category i.e. Department, Designation, Division, Projects, Grade, Locality etc.			

2	Systematic alerts and notifications in form of emails to employees and HR/administrative department to update documents of an employee.			
3	The system should have provisions for maintaining required details of different categories of employees viz. Contractual Employee, Regular employees etc. The system should have provision for the Organization structure and hierarchy mapping of all employees.			
B	Attendance and Leave Management			
4	Approval Level Creation for Paperless functionality for leave Application of the employee.			
5	Real-time attendance dashboards & Timesheet			
C	Payroll, Compensation and Reimbursement & Claims			
6	Payroll processing, tax deductions (TDS, PF, ESI, etc.) Arrears calculations. Integration with accounting/finance systems, leave details and attendance master for automatic salary calculations.			
D	Performance Management:			
7	Appraisal cycles and feedback mechanisms and processing performance linked pay.			
E	Recruitment and Onboarding			
8	Online application and candidate tracking system (ATS)			
F	Employee Self-Service (ESS) & Manager Self-Service (MSS)			
9	Web and mobile portals for employees and managers			
G	Separation and Exit Management			

10	Auto calculation for notice period, shortfall days with systematic notification / alerts. Update employee leaving or resignation detail. Calculation of full and final settlement			
H	Analytics and Reports			
11	Pre-built dashboards (attendance, hiring, payroll, compliance, performance).			
12	Custom report builder with filters, grouping, and export options (Excel/PDF/CSV).			
13	Automated scheduled reports (daily, weekly, monthly, Yearly).			
14	Support for advanced analytics/BI tool integration.			
Technical Requirement:				
I	System Architecture Requirements			
15	The HRMS shall be cloud-based (SaaS) with multi-tenant or dedicated architecture.			
16	The solution must support modular deployment for all functional modules i.e. Employee Database, Attendance, Leave, Payroll, Recruitment, Performance etc.			
17	The system shall provide secure web and mobile access through modern browsers and mobile applications (Android & iOS).			
18	The system shall include REST APIs / Webhooks for third-party integrations.			
J	Integration Requirements			
19	Internal Integration: The HRMS shall integrate with the organisation's existing systems, including but not limited to: • Identity Management – Office 365 ERP / Finance systems (Tally) • Email systems (Microsoft Outlook)			

20	External Integration: • Recruitment portals and job boards • Statutory compliance systems (PF, ESI, PT, LWF, Income Tax) • Data export/import through CSV, Excel, JSON, or API			
K	Data & Storage Requirements			
21	Centralised employee master database with customizable fields.			
22	Secure storage of documents (Aadhaar, PAN, certificates, contracts).			
23	Support for bulk data upload & migration.			
24	Maintain comprehensive audit logs for HRMS system access and changes.			
25	Ability to define data residency/location as per organisational or legal requirements.			
26	Configurable data retention policies.			
L	User Access & Security Requirements			
27	The system must support Role-Based Access Control (RBAC) with granular permission levels.			
28	Multi-Factor Authentication (MFA) shall be supported.			
29	SSO support through SAML, OAuth 2.0, or enterprise identity providers.			
30	IP restrictions and geo-restrictions shall be configurable.			
31	Sensitive data must be encrypted at rest and in transit (minimum TLS 1.2).			
32	Secure employee self-service (ESS) and manager self-service portals.			
M	Workflow & Automation Requirements			
33	Configurable multi-level workflows for onboarding, leaves, transfers, separations.			

34	Automated email/SMS/in-app notifications for tasks and approvals.			
35	Workflow escalation rules (time-based or hierarchy-based).			
36	Policy-based rule engine for: • Leave & attendance rules • Holiday calendars • Shift management • Overtime calculations			
37	Custom triggers for data updates (e.g., auto leave accruals, status changes).			
O	Mobile Application Requirements			
38	Works on Android & iOS (latest 2 OS versions) Lightweight app (<50MB recommended)			
39	Push notifications for approvals and tasks must be available.			
40	Mobile app security must match web standards (MFA, encrypted storage).			

Feature Status	Short form	Remarks
Readily Available	RA	The feature is already supported and included in the solution (1 Marks shall be allotted)
Customization	CU	Can be developed / customized and delivered along with the Solution, prior to implementation at no extra cost. (0.5 Marks shall be allotted)

Please Note – Bidder need to provide all the feature as part of the proposal. It should be demonstrated as mentioned by bidder in their technical proposal as “Readily Available (RA)” / Customizable (CU). During Demonstration all the features will be evaluated by BSTL based on the response provided by the bidder. If any of the required features are not demonstrated but the same feature has been mentioned as “Readily Available (RA)” as part of Technical Scoring Sheet, then the same shall be changed to “Customizable (CU)” in the Functional and Technical Scoring Sheet after due confirmation from the bidder.

3. Implementation & Customization

Bidder may require doing some customization in existing module of their software to meet the requirement of BSLT which should be cover as part of implementation. The system should provide Confidentiality, Integrity, Authentication and Non-Repudiation as per current standard (Signing, Hashing, Time-stamping and Encryption).

Bidder as part of the implementation phase shall have to provide a comprehensive hands-on online / Offline training to BSTL officials at the location prescribed by the BSTL. The objective of training would be to make an individual familiarise with solution

& to get start working on it. The training shall cover the complete process. The successful completion of the training would be deemed as executed as part of acceptance of Project Sign off.

After successful completion of the implementation phase, Bidder is liable to provide Offline / onsite training to BSTL when required during the contract period. There will not be any cost borne by BSTL for any training.

All out of pocket expenses, traveling, boarding and lodging expenses for the entire life of the contract should be a part of the commercial bid submitted by the vendor to the BSTL. No extra costs on account of any items or services or by way of any out of pocket expenses, including travel, boarding and lodging etc. will be payable by BSTL. The vendor cannot take the plea of omitting any charges or costs and later lodge a claim on the BSTL for the same.

The vendor have to arrange for customization if required in the system to meet the changes suggested by CVC/ RBI/ Govt. of India/ regulatory authorities/BSTL towards compliance without any additional cost during the contract period

However, if any changes suggested by BSTL after implementation and one time customization of the system, BSTL will freeze the manpower effort, after mutual discussion with the successful vendor.

Vendor need to freeze and sign SOW (scope of work) for customization required by BSTL on mutual discussion as a payment milestone.

4. Data Segregation and Security Audits:

BSTL's data should be completely segregated within the Cloud environment. The vendor has to submit CERT-IN empanelled auditor confirmation on BSTL's data segregation controls complying to the regulatory norms.

5. Vulnerability Assessment and Penetration Testing (VAPT):

The Vendor shall conduct quarterly vulnerability assessments (VA) on the Cloud application and its underlying infrastructure.

In addition to the above vulnerability assessments, the Vendor shall conduct Yearly comprehensive Penetration Testing (PT) on the Cloud application and its underlying infrastructure.

The Vendor shall provide to the BSTL with a detailed compliance report outlining the findings of the vulnerability assessments and Penetration Testing, including identified vulnerabilities, the associated risk level, and the remediation.

However, Bidder must support if BSTL wants to conduct the above assessment through its technical vendor as and when need arises.

6. Data Migration:

In the event of any future migration of data, the Service Provider will provide complete access and support to the BSTL. BSTL will decide migration approach. There will not be any commercial attach with the activity.

7. Data Deletion Upon Contract Termination:

Upon the conclusion or termination of this Agreement, the Vendor shall securely remove, delete, and purge all data related to the Project from the cloud environment and the vendor has to submit confirmation to the BSTL.

Annexure 02 Guidelines for bid submission details

Bidders shall mandatorily upload following documents signed / digitally signed by their authorized representative.

S #	Section Heading	Performa Given
1.	Bid Evaluation Terms compliance	Annexure 03
2.	Declaration / undertaking from bidder regarding applicability of restrictions on procurement from a bidder	Annexure 03A
3.	Bid Security (Earnest Money Deposit)	Bidder to provide Transaction Details as per Annexure 04 OR Bank Guarantee as per Annexure 05. OR For Micro & Small Enterprises (MSEs) / Startups "Bid Security Declaration - As Per Annexure 04A
4.	Letter of Undertaking from the Bidder	Annexure 06
5.	Conformity Letter from Bidder	Annexure 08
6.	Undertaking of Information Security (Bidder & OSD)	Annexure 09
7.	Letter of Undertaking from OEM / OSD	Annexure 10
8.	Technical Proposal: Bidder to provide Project proposal with detailed execution plan and compliance of Project scope of work.	Bidder to provide
9.	Copy of the tender document along with annexures and addendum duly sealed and signed on all the pages of the document / digitally signed tender document.	Bidder to provide (signed /Digitally signed documents from authorized representative of bidder)
10.	Masked price bid (Please note that the masked price bid should be exact reflection of the commercial bid except that the masked price bid <u>should not contain any financial information</u>)	Annexure 11

S #	Section Heading	Performa Given
11.	Letter of authorization from the company authorizing the person to sign the tender response and related documents.	Bidder to provide
12.	A certified copy of the Board Resolution or a Power of Attorney, authenticated by Company Secretary/Director, authorizing an official/s of the company to discuss, sign agreements/contracts with BSTL.	Bidder to provide
13.	Declaration/ undertaking from bidder to comply with the Information and cyber security controls.	Annexure 15
14.	Undertaking Compliance with MeitY Data Localization and Certification Requirements.	Annexure 16
15.	Service Level And Non-Disclosure Agreement Format (without Stamp duty) from Bidder	Annexure 18
Commercial Bid should be strictly as per Commercial bid format (Annexure 12). Any commercial bid submitted not in conformity with Annexure 12 and provided along with the Eligibility cum Technical bid, then whole bid will be rejected outright.		

1. Guidelines

1.1. Support Details for GeM Portal:

Support details of Online Portal facilitator	helpdesk-gem@gov.in 1800-419-3436; 1800-102-3436
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1.2. Downloading of Tender Document

The tender document is uploaded / released on GeM Portal. Tender document and supporting documents may be downloaded from same link. Subsequently, bid has to be prepared and submitted ONLINE ONLY as per the schedule given in Notice Details. The Tender document will be available online only. Tender document will not be sold / issued manually.

Only those tender shall be accepted for evaluation for which Earnest Money Deposit (EMD) is deposited as per the terms mentioned in this RFP.

1.3. Preparation & Submission of Bids

The bids (Pre-Qualification, Eligibility, Technical as well as Commercial) shall have to be prepared and subsequently submitted online only. Bids not submitted "ONLINE" or by any other mean shall be summarily rejected. No other form of submission shall be permitted.

1.4. Do's and Don'ts for Bidder

- ▶ Registration process for new Bidders should be completed within first week of release of tender.

- ▶ The GeM Portal is open for upload of documents from the start of the bid submission date. Hence bidders are advised to start the process of upload of bid documents well in advance.
- ▶ Bidders have to prepare for submission of their bid documents online well in advance as
 - The encrypt/upload process of soft copy of the bid documents large in number to the portal may take longer time depending upon bidder's infrastructure and connectivity.
 - To avoid last minute rush & technical difficulties faced by bidders in uploading/submission of bids, bidders are required to start the uploading of all the required documents -01- week in advance for timely online submission of bid.
- ▶ Bidders to initiate uploading of few primary documents during the start of the tender submission and any request for help/support required for uploading the documents / understanding the system should be taken up with GeM authorities well in advance.
- ▶ Bidders should not raise request for extension of time on the last day of submission due to non-submission of their bids on time as BSTL will not be in a position to provide any support at the last minute as the portal is managed by GeM authorities.
- ▶ Bidder should not raise request for offline submission or late submission since ONLINE submission is accepted only.
- ▶ Partly or incomplete submission of bids by the bidders will not be processed and will be summarily rejected.

Annexure 03 – Bid Evaluation Terms

1. Evaluation process

There would be a two-stage evaluation process for the selection of vendor.

- ▶ Stage 1 – Eligibility Cum Technical Bid Evaluation
- ▶ Stage 2 – Commercial Bid Evaluation

During evaluation of the Tenders, BSTL, at its discretion, may ask the Bidder for clarification in respect of its tender. The request for clarification and the response shall be in writing, and no change in the substance of the tender shall be sought, offered, or permitted. BSTL reserves the right to accept or reject any tender in whole or in parts without assigning any reason thereof. The decision of BSTL shall be final and binding on all the Bidders to this document and BSTL will not entertain any correspondence in this regard.

A. Eligibility cum Technical Bid Evaluation

Eligibility criterion for the bidder to qualify this stage is clearly mentioned below. The Bidder would need to provide valid supporting documents as part of the eligibility proof. All dates, if not specified, to be applicable from the date of the RFP.

S No	Eligibility Criteria	Complied (Yes/No)	Supporting Documents Required
A	General		
1	The bidder should be either a Government Organization / PSU / PSE / partnership firm / LLP or private / public limited company in India at least for the last 5 years (as on RFP date).		Documentary Proof to be attached (Certificate of Incorporation)
2	The bidder must not be blacklisted / debarred by any Statutory, Regulatory or Government Authorities or Public Sector Undertakings (PSUs / PSBs) within last 2 years from the RFP date.		Letter of confirmation (self-certified letter signed by authorized official of the bidder)
3	The bidder is not from such a country which shares a land border with India, in terms of the said amendments to GFR, 2017. OR		Undertaking as per Annexure 3A and copy of certificate of valid registration with the Competent Authority (If applicable) (signed /Digitally signed

S No	Eligibility Criteria	Complied (Yes/No)	Supporting Documents Required
	The bidder is from such a country and has been registered with the Competent Authority i.e. the Registration Committee constituted by the Department for Promotion of Industry and Internal Trade, as stated under Annexure I to the said Office Memorandum / Order and we submit the proof of such registration .		documents from authorized representative of bidder.
4	The bidder to provide undertaking that any of its subsidiary or associate or holding company or companies having common director/s or companies in the same group of promoters/management or partnership firms/LLPs having common partners has not participated in the bid process.		Letter of undertaking (self-certified letter signed by authorized official of the bidder)
5	The bidder to provide an undertaking that all the technical requirements highlighted as part of Technical Scope are covered in totality in the proposal submitted by them.		Letter of confirmation (self-certified letter signed by authorized official of the bidder)
B	Financial		
1	The Bidder must have registered an average annual turnover of Rs. 80 Lakhs or above during the last three completed financial years – 2022-23, 2023-24 and 2024-25*.		Audited Financial statements for the financial years 2022-23, 2023-24 and 2024-25*. Certified letter from the Chartered Accountant clearly mentioning Turnover, Net Profit and Net worth. The CA certificate in this regard should be without any riders or qualification.

S No	Eligibility Criteria	Complied (Yes/No)	Supporting Documents Required
2	The Bidder must be net profit-making entity continuously for the last three financial years – 2022-23, 2023-24 and 2024-25* OR The net worth of the Bidder should be positive as on RFP date and should not have eroded by more than 30% in the last three years.		Audited Financial statements for the financial years 2022-23, 2023-24 and 2024-25*. Certified letter from the Chartered Accountant (CA) clearly mentioning Turnover, Net Profit (After Tax) and Net worth. The CA certificate in this regard should be without any riders or qualification.
* If 2024-25 Financial Statements of any bidder is unaudited, then Financial statements for 2021-22, 2022-23 and 2023-24 will be considered, along with an undertaking letter from the bidder that FY 2024-25 statements are not audited. In this scenario Audited Financial statements for the financial year 2021-22, 2022-23 and 2023-24 are to be submitted.			
C	Technical		
1	The bidder should be an OSD or their authorized partner of OSD for supply of licenses and solution implementation and maintenance support under warranty / AMC / ATS for the proposed HRMS solution in India at least from last three years from the RFP date.		Letter of confirmation from OSD needs to be submitted.
2	If OSD is bidding directly they cannot submit another bid with any Partner/bidder.		Letter of confirmation from OSD in case OSD is bidding directly
3	One bidder can bid only with one OSD and similarly one OSD can bid with only one bidder.		Letter of confirmation from the vendor and OSD
D	Experience & Support Infrastructure		

S No	Eligibility Criteria	Complied (Yes/No)	Supporting Documents Required
1	The bidder should not be under the category of Non-Performing Asset (NPA) with any bank or financial institution at the time of submission of the bid.		Letter of undertaking (self-certified letter signed by authorized official of the bidder)
2	Bidder should not be debarred by Bank of Baroda or its subsidiary.		Letter of undertaking (self-certified letter signed by authorized official of the bidder)
3	The proposed Human Resource Management System (HRMS) should have been supplied, implemented and maintained in at least -3- Financial Institution / ITeS / BFSI sector in last 5 years in India, having employee strength of at least 300.		copy of work order/letter of award for each assignment and undertaking to be furnished by the bidder along with successful implementation confirmation from concerned organization.
4	The Bidder should have processing/cloud setup of both primary and disaster recovery centre in India and business continuation plan in place as per best practices of industry for restoration of Services.		Bidder undertaking and a copy of either of the following documents: 1. Certificate from Auditing agency. OR 2. Certificate from the cloud service provider.
5	The Bidder should be ISO / IEC 27001:2022 certified for Information Security, cybersecurity and privacy protection.		Copy of the valid certificates.

Note: In case the bidding company / firm is hived off from the demerged company, the experience, eligibility etc. as per the requirement of the RFP may be considered as of the demerged company, provided the demerged company doesn't apply in the same RFP process and Novation / Other Relevant Agreement is in place. In that case, Relevant Novation / Other Relevant Agreement need to be submitted.

The technical bids of only those bidders who qualify the above-mentioned eligibility criteria will be evaluated. The Technical Proposal will be evaluated for technical suitability as per Annexure 1.

B. Technical Bid Evaluation

The vendor needs to achieve a cut – off score of 70 marks in this evaluation stage to be qualified for commercial bid opening. Only those vendors who achieve the specified cut – off scores would be short-listed for Commercial Bid opening. The Technical Proposal will be evaluated for technical suitability and the criteria for evaluation of technical bids are as under:

Criteria	Evaluation Parameters	Sub Scores
The number of Implementations carried out in India in Financial Institution / ITeS / BFSI sector in the last 5 years. <i>(Documentary proof: copy of work order/letter of award for each assignment to be furnished by the bidder along with successful implementation confirmation from concerned organization).</i>	For each Implementation 4 marks (Max 5 implementation)	20
Functional & Technical Specifications compliance as part of Scope of Work Annexure 1	As per Functional & Technical specification Requirement Given in Annexure 1.	40
Technical Presentation on Proposed Solution by the Bidder	Technical presentation will be evaluated on the following parameters: 1. Proposed Solution and IT architecture, approach & methodology. 2. Level of compliance, data privacy and Security Features and report generation. 3. Support & Escalation Process. 4. User Interface and Reports generation. 5. Configurable capability.	30

Product Demo Vendor is requested to demonstrate additional unique/ futuristic features, if any, offered by the product.	Demonstration of in-depth understanding of the BSTL's project technical and functional requirements. Major Criteria for demonstration (but not limited to) given in Annexure 1.	10
TOTAL MARKS		100

In case there is only one vendor having technical score of 70 or more, BSTL may, at its sole discretion, also consider the next highest technical score and qualify such vendor. In case, none of the participating vendors qualify on technical criteria and reach or exceed the cut-off score of 70, then BSTL, at its sole discretion, may qualify two vendors on the basis of the top 2 scores. However, BSTL at its discretion may reject the proposal of the Vendor or will not consider vendor below cutoff marks by relaxing as mentioned above, if in BSTL's opinion the Vendor could not present or demonstrate the proposed services/projects as described in the proposal or in case the responses received from the customer contacts / site visited are negative or the proposed solution does not meet BSTL's functional and technical requirement.

C. Commercial Bid Evaluation

The commercial bids of only those bidders who qualify in both eligibility and technical evaluation will be opened. The provision of Make in India preferences would be considered while opening and finalizing of bid as provided in this RFP. The commercial bids submitted by Bidders will be evaluated based on discounted total cost of ownership. The discount rate will be used @ 10%. The key considerations of the TCO would be the total payouts for entire project through the contract period, discounted at 10% to arrive at the present value of the future cash outflows. Accordingly, the L1 (Lowest Bidder) would be arrived at. The calculation performed by BSTL in this regard is as follows:

- The discounted rate will be calculated on yearly basis based on the formula $A/(1+i/100)^n$ where A= Total Value in each Year; i=10% and n =Year.
- The Present Value will be calculated for all components where the payment is recurring year on year. The Present Value for the component will start from the year of purchase of that component / start of the services (AMC) and shall be calculated till the end year of the contract. Further n - number of period will be '0' in the year of purchase of that component / start of the services and subsequently increased by 1 for subsequent years.

Any component / service for which the payment is a One Time Cost the NPV cost of the equipment / service for that year will be considered and the relevant year's NPV cost will be added as part of Present Value calculation for that year. Further the

payment of the OTC component / services is not recurring in nature hence the present value for that component / services will be considered in the year of purchase only and not in subsequent years.

The decision of BSTL shall be final and binding on all the bidders to this document. BSTL reserves the right to accept or reject an offer without assigning any reason whatsoever. The bidder is expected not to add any conditions / deviations in the commercial bid. Any such conditions / deviations may make the bid liable for disqualification.

The proposal of L1 (Lowest quote) bidder shall be recommended for award of contract.

2. Commercial Bids Terms

In the event BSTL has not asked for any quotes for alternative prices, and the bidder furnishes the alternative price in the Bidder's financial bid, the higher of the prices will be taken for calculating and arriving at the Total Cost of Ownership. However, payment by BSTL will be made at the lower price. BSTL in this case may also reject the offer outright.

In the event optional prices are not quoted by the bidder, for items where such prices are a must and required to be quoted for, the highest price quoted by any of the participating Bidder will be taken as the costs, for such alternatives and also for arriving at the Total Cost of Ownership for the purpose of evaluation of the Bidder. The same item has to be supplied by the Bidder free of cost.

The bidder is requested to quote in Indian Rupee (INR). Bids in currencies other than INR would not be considered. The date for opening of price bids would be communicated separately to the successful bidders post the completion of the technical evaluation (If bid opening takes place through BSTL' eProcurement portal).

The prices and other terms offered by bidders must be firm for an acceptance period of 180 days from the opening of the commercial bid.

In case of any variation (upward or down ward) in Government levies / taxes / cess / duties etc. which has been included as part of the price will be borne by the bidder. Variation would also include the introduction of any new tax / cess/ duty, etc., provided that the benefit or burden of other taxes quoted separately as part of the commercial bid like GST and any taxes introduced instead of GST and levies associated to GST or any new taxes introduced after the submission of bidder's proposal shall be passed on or adjusted to BSTL. If the Bidder makes any conditional or vague offers, without conforming to these guidelines, BSTL will treat the prices quoted as in conformity with these guidelines and proceed accordingly. Necessary documentary evidence should be produced for having paid any tax/cess/duty, if applicable, and/or other applicable levies.

If any Tax authorities of any state, including, Local authorities like Corporation, Municipality etc. or any Government authority or Statutory or autonomous or such other authority imposes any tax, charge or levy or any cess / charge other than GST and if BSTL has to pay the same for any of the items or supplies made here under by

the bidder, for any reason including the delay or failure or inability of the bidder to make payment for the same, BSTL has to be reimbursed such amounts paid, on being intimated to the Bidder along with the documentary evidence. If the Bidder does not reimburse the amount within a fortnight, BSTL shall adjust the amount out of the payments due to the Bidder from BSTL along with the interest calculated at commercial rate.

Terms of payment as indicated in the Purchase Contract that will be issued by BSTL to the selected Bidder will be final and binding on the bidder and no interest will be payable by BSTL on outstanding amounts under any circumstances. If there are any clauses in the Invoice contrary to the terms of the Purchase Contract, the bidder should give a declaration on the face of the Invoice or by a separate letter explicitly stating as follows "Clauses, if any contained in the Invoice which are contrary to the terms contained in the Purchase Contract will not hold good against BSTL and that the Invoice would be governed by the terms contained in the Contract concluded between BSTL and the bidder".

BSTL is not responsible for any assumptions or judgments made by the bidder for arriving at any type of costing. BSTL at all times will benchmark the performance of the bidder to the RFP and other documents circulated to the bidder and the expected service levels as mentioned in these documents. In the event of any deviations from the requirements of these documents, the bidder must make good the same at no extra costs to BSTL, in order to achieve the desired service levels as well as meeting the requirements of these documents. BSTL shall not be responsible for any assumptions made by the bidder and BSTL's interpretation will be final.

The Commercial Offer should give all relevant price information and should not contradict the Technical Offer in any manner. There should be no hidden costs for items quoted.

BSTL is not responsible for the arithmetical accuracy of the bid. The bidders will have to ensure all calculations are accurate. BSTL at any point in time for reasons whatsoever is not responsible for any assumptions made by the Bidder. BSTL at a later date will not accept any plea of the bidder or changes in the commercial offer for any such assumptions.

Considering the enormity of the assignment, any service which forms a part of the Project Scope that is not explicitly mentioned in scope of work as excluded would form part of this RFP, and the Bidder is expected to provide the same at no additional cost to BSTL. The Bidder needs to consider and envisage all services that would be required in the Scope and ensure the same is delivered to BSTL. BSTL will not accept any plea of the Bidder at a later date for omission of services on the pretext that the same was not explicitly mentioned in the RFP.

3. Price Comparisons

The successful bidder will be determined on the basis of bid evaluation process as mentioned under Evaluation Criteria in this RFP document.

Normalization of bids: BSTL will go through a process of evaluation and normalization of the bids to the extent possible and feasible to ensure that bidders are more or less on the same ground of evaluation. After the normalization process, if BSTL feels that any of the bids needs to be normalized and that such normalization has a bearing on the price bids; BSTL may at its discretion ask all the shortlisted bidders to resubmit the commercial bids once again for scrutiny. BSTL can repeat this normalization process at every stage of bid submission or till BSTL is satisfied. The bidders agree that they have no reservation or objection to the normalization process and all the bidders will, by responding to this RFP, agree to participate in the normalization process and extend their co-operation to BSTL during this process. The bidders, by submitting the response to this RFP, agree to the process and conditions of the normalization process.

The Price offer shall be on a fixed price basis. Bid submitted with an adjustable price quotation will be treated as non-responsive and will be liable to be rejected. The rate quoted by the bidder should necessarily include the following:

Prices quoted by the Bidder should be inclusive of all taxes, duties, levies, GST etc. The Bidder shall provide the GST amount in the commercial bids (without amounts being submitted in the technical response). There will be no price escalation during the contract period and any extension thereof.

The Bidders are expected to provide details of services which are required to be extended by the Bidder in accordance with the terms and conditions of the contract.

The Bidder must provide and quote for the required product and services as desired by BSTL as mentioned in this RFP. Any product or services not proposed to be provided by the Bidder will result in the proposal being incomplete, which may lead to disqualification of the Bidder.

Annexure 03A – Declaration/ undertaking from bidder regarding applicability of restrictions on procurement from a bidder of a country which shares a land border with India as per the order no. 6/18/2019-PPD dated 23rd July 2020 issued by Ministry of finance department of expenditure

(This letter should be on the letterhead of the Bidder duly signed by an authorized signatory)

To
MD & CEO
BarodaSun Technologies Ltd.
3rd Floor, Bank of Baroda-Bldg II,
Horniman Circle, Fort,
Mumbai – 400 001

Sir,

We, M/s ----- are a private/public limited company/LLP/Firm ~~<strike off whichever is not applicable>~~ incorporated under the provisions of the Companies Act, 1956/2013 Limited Liability Partnership Act 2008/ Indian Partnership Act 1932, having our registered office at ----- (referred to as the “Bidder”) are desirous of participating in the Tender Process in response to your captioned RFP and in this connection we hereby declare, confirm and agree as under:

We, the Bidder have read and understood the contents of the RFP and Office Memorandum & the Order (Public Procurement No.1) both bearing no. F.No.6/18/2019/PPD of 23rd July 2020 issued by Ministry of Finance, Government of India on insertion of Rule 144 (xi) in the General Financial Rules (GFRs) 2017 and the amendments & clarifications thereto, regarding restrictions on availing/procurement of goods and services, of any Bidder from a country which shares a land border with India and / or sub-contracting to contractors from such countries.

In terms of the above and after having gone through the said amendments including in particular the words defined therein (which shall have the same meaning for the purpose of this Declaration cum Undertaking), we the Bidder hereby declare and confirm that:

(Please strike off whichever is not applicable)

1. “I/ we have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India / ToT arrangement in sensitive technologies with an entity having beneficial ownership from a country which shares a land border with India; I/ we certify that _____ is not from such a country.”

OR

2. “I/ we have read the clause regarding restrictions on procurement / ToT

arrangement in sensitive technologies with an entity having beneficial ownership from a country which shares a land border with India from a bidder of a country which shares a land border with India; I/ we certify that _____ is from such a country. I hereby certify that _____ fulfills all requirements in this regard and is eligible to be considered. [Valid registration by the Competent Authority is attached.]”

In case the work awarded to us, I/ we undertake that I/ we shall not subcontract any of assigned work under this engagement without the prior permission of BSTL.

Further we undertake that I/we have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India and on sub-contracting to contractors from such countries; I certify that our subcontractor is not from such a country or, if from such a country, has been registered with the Competent Authority and will not sub-contract any work to a contractor from such countries unless such contractor is registered with the Competent Authority. I hereby certify that our subcontractor fulfills all requirements in this regard and is eligible to be considered. [Valid registration by the Competent Authority is attached herewith.]”

We, hereby confirm that we fulfill all the eligibility criteria as per the office memorandum/ order mentioned above and RFP and we are eligible to participate in the Tender process.

We also agree and accept that if our declaration and confirmation is found to be false at any point of time including after awarding the contract, BSTL shall be within its right to forthwith terminate the contract/ bid without notice to us and initiate such action including legal action in accordance with law. BSTL shall also be within its right to forfeit the security deposits/ earnest money provided by us and also recover from us the loss and damages sustained by BSTL on account of the above.

This declaration cum undertaking is executed by us or through our Authorized person, after having read and understood the terms of RFP and the Office Memorandum and Order.

Dated this.....by20

Yours faithfully,

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone #

List of documents enclosed:

1. Copy of certificate of valid registration with the Competent Authority (strike off if not applicable)

Annexure 04 – Bid Security Letter

To
MD & CEO
BarodaSun Technologies Ltd.
3rd Floor, Bank of Baroda-Bldg II,
Horniman Circle, Fort,
Mumbai – 400 001

Sir,

Sub: RFP for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

We having our registered office at (herein after called the 'BIDDER') are offering Earnest Money Deposit as per details below for consideration of the bid of the above mentioned Bidder.

Amount: Rs. _____ /- (Rupees _____ Only)

Mode: Online Transfer/Bank Guarantee

Payment Type: RTGS (Real Time Gross Settlement) / NEFT (National Electronics Fund Transfer)/ /Bank Guarantee

UTR / Txn ref. No. _____

Txn Date: _____

Remitting Bank: _____

Remitting Bank IFSC Code: _____

Beneficiary Account: BarodaSun Technologies Limited, Bank Account No. 03810200001921

Beneficiary Bank IFSC Code: BARB0FORTAP.

The details of the transaction viz. scanned copy of the receipt of making transaction or Bank Guarantee or Micro & Small Enterprises (MSEs) / Startups Certificate (if EMD not applicable) to be enclosed.

BSTL at its discretion, may reject the bid if the EMD money doesn't reflect in beneficiary account or BG not received as per details furnished above.

Account Details for refund of Bid Security (Earnest Money Deposit) as per terms & conditions mentioned in the Tender document.

We having our registered office at (herein after called the 'BIDDER') are providing our bank account details as per below to be considered as our account for refund of Bid Security (Earnest Money Deposit), wherever applicable as per terms & conditions mentioned in the Tender document.

RFP for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

A/C Name:

A/C No. (Company account details):

IFSC Code:

Bank Name:

Bank Address:

The details mentioned above is treated as final & BSTL shall not be held responsible for any wrong/failed transaction due to any discrepancy in above details.

Dated this.....by20

Yours faithfully,

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone #

Annexure 04A – Bid Security Declaration Form
(For Micro and Small Enterprises (MSE) / Startups)

To
MD & CEO
BarodaSun Technologies Ltd.
3rd Floor, Bank of Baroda-Bldg II,
Horniman Circle, Fort,
Mumbai – 400 001

Sir,

Sub: RFP for selection of Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

1. I/We, the undersigned, declare that M/s.....is a Micro and Small Enterprise and the copy of registration certificate issued by NSIC/DIPP for Micro & Small Enterprises (MSEs) / Startups which are valid on last date of submission of the tender documents are enclosed.
2. I/We understand that, according to your conditions, bids must be supported by a Bid Securing Declaration as per Rule 170 of General Financial Rules (GFRs) 2017 by Micro & Small Enterprises (MSEs).

OR

- 2A. As per the tender / RFP no:floated for at para no: a Bid Declaration Form in lieu of Bid Security is required to be submitted by me/ as per Rule 170 of General Financial Rules (GFRs) 2017 by Micro & Small Enterprises (MSEs).
3. I/We accept that I/We may be disqualified from bidding for any contract with you for a period of 6 months from the date of notification if I am /We are in a breach of any obligation under the bid conditions, because I/We
 - a) have withdrawn/modified/amended, impairs or derogates from the tender, my/our Bid during the period of bid validity specified in the form of Bid; or
 - b) having been notified of the acceptance of our Bid by the purchaser during the period of bid validity (i) fail or reuse to execute the contract, if required, or (ii) fail or refuse to furnish the Performance Security, in accordance with the Instructions to Bidders.
 4. I/We understand this Bid Securing Declaration shall cease to be valid if I am/we are not the successful Bidder, upon the earlier of (i) the receipt of your notification of the name of the successful Bidder; or (ii) thirty days after the expiration of the validity of my/our Bid.

5. I/We declare that I am the authorized person ofto make the declaration for and on behalf of Letter of Authority for executing declaration is enclosed

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone #

Signed: (insert signature of person whose name and capacity are shown)

in the capacity of : (insert legal capacity of person signing the Bid Securing Declaration)

Name: (insert complete name of person signing the Bid Securing Declaration)

Duly authorized to sign the bid for and on behalf of (insert complete name of Bidder)

Dated on _____ day of _____ (insert date of signing)
Corporate Seal (where appropriate)

(Note: in case of a Joint Venture, the Bid Securing Declaration must be in the name of all partners to the Joint Venture that submits the Bid)

Annexure 05 – Bid Security Form (Bank Guarantee)

(Pro forma for Bank Guarantee in lieu of EMD)

To
MD & CEO
BarodaSun Technologies Ltd.
3rd Floor, Bank of Baroda-Bldg II,
Horniman Circle, Fort,
Mumbai – 400 001

Dear Sir,

WHEREAS.....(Company Name) registered under the Indian Companies Act 1956 and having its Registered Office at India (hereinafter referred to as “the VENDOR”) proposes to offer its response to Bid No.. #: (RFP details) (hereinafter called the “RFP”)

AND WHEREAS, in terms of the conditions as stipulated in the RFP, the VENDOR is required to furnish a Bank Guarantee in lieu of the Earnest Money Deposit (EMD), issued by a Scheduled Commercial Bank in India in your favour to secure the order of the RFP in accordance with the RFP Document (which guarantee is hereinafter called as “BANK GUARANTEE”)

AND WHEREAS the VENDOR has approached us, for providing BSTL GUARANTEE.

AND WHEREAS at the request of the VENDOR and in consideration of the proposed RFP response to you, WE,.....having.....
... Office at....., India has agreed to issue Bank GUARANTEE.

THEREFORE, WE,, through our local office at India furnish you Bank GUARANTEE in manner hereinafter contained and agree with you as follows:

1. We....., undertake to pay the amounts due and payable under this Guarantee without any demur, merely on demand from you and undertake to indemnify you and keep you indemnified from time to time to the extent of Rs.....(Rupeesonly) an amount equivalent to the EMD against any loss or damage caused to or suffered by or that may be caused to or suffered by you on account of any breach or breaches on the part of the vender . any of the terms and conditions contained in the RFP and in the event of the VENDOR commits default or defaults in carrying out any of the work or discharging any obligation in relation thereto under the RFP or otherwise in the observance and

performance of any of the terms and conditions relating thereto in accordance with the true intent and meaning thereof, we shall forthwith on demand pay to you such sum or sums not exceeding the sum of Rs.....(Rupees..... only) as may be claimed by you on account of breach on the part of the VENDOR of their obligations in terms of the RFP.

2. Notwithstanding anything to the contrary contained herein or elsewhere, we agree that your decision as to whether the VENDOR has committed any such default or defaults and the amount or amounts to which you are entitled by reasons thereof will be binding on us and we shall not be entitled to ask you to establish your claim or claims under Bank Guarantee but will pay the same forthwith on your demand without any protest or demur.
3. This Bank Guarantee shall continue and hold good until it is released by you on the application by the VENDOR after expiry of the relative guarantee period of the RFP and after the VENDOR had discharged all his obligations under the RFP and produced a certificate of due completion of work under the said RFP and submitted a "No Demand Certificate "provided always that the guarantee shall in no event remain in force after the day of without prejudice to your claim or claims arisen and demanded from or otherwise notified to us in writing before the expiry of the said date which will be enforceable against us notwithstanding that the same is or are enforced after the said date.
4. Should it be necessary to extend Bank Guarantee on account of any reason whatsoever, we undertake to extend the period of Bank Guarantee on your request under intimation to the VENDOR till such time as may be required by you. Your decision in this respect shall be final and binding on us.
5. You will have the fullest liberty without affecting Bank Guarantee from time to time to vary any of the terms and conditions of the RFP or extend the time of performance of the RFP or to postpone any time or from time to time any of your rights or powers against the VENDOR and either to enforce or forbear to enforce any of the terms and conditions of the said RFP and we shall not be released from our liability under Bank Guarantee by exercise of your liberty with reference to matters aforesaid or by reason of any time being given to the VENDOR or any other forbearance, act or omission on your part of or any indulgence by you to the VENDOR or by any variation or modification of the RFP or any other act, matter or things whatsoever which under law relating to sureties, would but for the provisions hereof have the effect of so releasing us from our liability hereunder provided always that nothing herein contained will enlarge our liability hereunder beyond the limit of Rs.....(Rupees.....only) as aforesaid or extend the period of the guarantee beyond the said day of unless expressly agreed to by us in writing.
6. Bank Guarantee shall not in any way be affected by your taking or giving up any securities from the VENDOR or any other person, firm or company on its behalf or by the winding up, dissolution, insolvency or death as the case may be of the VENDOR.

7. In order to give full effect to the guarantee herein contained, you shall be entitled to act as if we were your principal debtors in respect of all your claims against the VENDOR hereby guaranteed by us as aforesaid and we hereby expressly waive all our rights of surety ship and other rights, if any, which are in any way inconsistent with any of the provisions of Bank Guarantee.
8. Subject to the maximum limit of our liability as aforesaid, Bank Guarantee will cover all your claim or claims against the VENDOR from time to time arising out of or in relation to the said RFP and in respect of which your claim in writing is lodged on us before expiry of Bank Guarantee.
9. Any notice by way of demand or otherwise hereunder may be sent by courier, e-mail or registered post to our local address as aforesaid and if sent accordingly it shall be deemed to have been given when the same has been posted.
10. Bank Guarantee and the powers and provisions herein contained are in addition to and not by way of limitation of or substitution for any other guarantee or guarantees here before given to you by us (whether jointly with others or alone) and now existing un-cancelled and that Bank Guarantee is not intended to and shall not revoke or limit such guarantee or guarantees.
11. Bank Guarantee shall not be affected by any change in the constitution of the Vendor or us nor shall it be affected by any change in your constitution or by any amalgamation or absorption thereof or therewith but will ensure to the benefit of and be available to and be enforceable by the absorbing or amalgamated company or concern.
12. Bank Guarantee shall come into force from the date of its execution and shall not be revoked by us any time during its currency without your previous consent in writing.
13. We further agree and undertake to pay you the amount demanded by you in writing irrespective of any dispute or controversy between you and the VENDOR.
14. Notwithstanding anything contained herein above;
 - i) our liability under this Guarantee shall not exceed Rs.....(Rupees.....only) ;
 - ii) This Bank Guarantee shall be valid up to and including the date and
 - iii) We are liable to pay the guaranteed amount or any part thereof under this Bank Guarantee only and only if you serve upon us a written claim or demand on or before the expiry of this guarantee.
15. We have the power to issue this Bank Guarantee in your favour under the Memorandum and Articles of Association of our Bank and the undersigned has full power to execute this Bank Guarantee under the Power of Attorney issued by Bank.

For and on behalf of

Branch Manager

Seal & Address

Annexure 06 – Undertaking from the Bidder

To
MD & CEO
BarodaSun Technologies Ltd.
3rd Floor, Bank of Baroda-Bldg II,
Horniman Circle, Fort,
Mumbai – 400 001

Sir,

Sub: RFP for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

1. Having examined the Tender Documents including all Annexures and Appendices, the receipt of which is hereby duly acknowledged, we, the undersigned offer to deliver all the deliverables mentioned in the 'Request for Proposal' and the other schedules of requirements and services for BSTL in conformity with the said Tender Documents in accordance with the schedule of Prices indicated in the Price Bid and made part of this Tender.
2. If our Bid is accepted, we undertake to comply with the delivery schedule as mentioned in the Tender Document.
3. Masked Commercial Bid (Annexure 11) and Commercial Bid (Annexure 12) both have been submitted as per format mentioned under this RFP document without any deviation.
4. We agree to abide by this Tender Offer for 180 days from date of bid opening and our Offer shall remain binding on us and may be accepted by BSTL any time before expiry of the offer.
5. This Bid, together with your written acceptance thereof and your notification of award, shall constitute a binding Contract between us.
6. a) We undertake that in competing for and if the award is made to us, in executing the subject Contract, we will strictly observe the laws against fraud and corruption in force in India namely "Prevention of Corruption Act 1988".
(b) Commission or gratuities, if any paid or to be paid by us to agents relating to this Bid and to Contract execution, if we are awarded the Contract are listed below.
 - i. Name and Address of the Agent -(please specify NA if not applicable)
 - ii. Amount and Currency in which Commission paid / payable -(please specify NA if not applicable)

- iii. Purpose of payment of Commission (If commission is not paid / not payable indicate the same here) -(please specify NA if not applicable)
7. We agree that BSTL is not bound to accept the lowest or any Bid BSTL may receive.
8. We certify that we have provided all the information requested by BSTL in the format requested for. We also understand that BSTL has the exclusive right to reject this offer in case BSTL is of the opinion that the required information is not provided or is provided in a different format.

Dated this.....by20

Yours faithfully,

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address:

Email and Phone #

Annexure 07 – Pre-Bid Queries Form

(Please note that **all pre-bid queried need to be send by email in excel format only**)

[Please provide your comments on the Terms & conditions in this section. You are requested to categorize your comments under appropriate headings such as those pertaining to the Scope of work, Approach, Work plan, Personnel schedule, Curriculum Vitae, Experience in related projects etc. You are also requested to provide a reference of the page number, state the clarification point and the comment/suggestion/ deviation that you propose as shown below.]

Name of the Respondent:

Contact Person from Respondent in case of need.

Name :

Tel No:

e-Mail ID:

Sr. No.	Page #	Point / Section #	Category (Eligibility/Scope/Commercial/Legal/General)	Clarification point as stated in the tender document	Comment/ Suggestion/ Deviation
1					
2					
3					
4					
5					
6					

Authorized Signatory

Name:

Designation:

Vendor's Corporate Name:

Address:

Email and Phone:

Date:

Annexure 08 – Conformity Letter

(This letter should be on the letterhead of the Bidder duly signed by an authorized signatory)

To
MD & CEO
BarodaSun Technologies Ltd.
3rd Floor, Bank of Baroda-Bldg II,
Horniman Circle, Fort,
Mumbai – 400 001

Sir,

Sub: RFP for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

Further to our proposal dated, in response to the Request for Proposal.....(BSTL's tender No. hereinafter referred to as "RFP") issued by BarodaSun Technologies Limited ("BSTL") we hereby covenant, warrant and confirm as follows:

We hereby agree to comply with all the terms and conditions / stipulations as contained in the RFP and the related addendums and other documents including the changes made to the original tender documents issued by BSTL shall form a valid and binding part of the aforesaid RFP document. BSTL is not bound by any other extraneous matters or deviations, even if mentioned by us elsewhere either in our proposal or any subsequent deviations sought by us, whether orally or in writing, and BSTL's decision not to accept any such extraneous conditions and deviations will be final and binding on us.

Yours faithfully,

Authorized Signatory

Name:

Designation:

Vendor's Corporate Name:

Address:

Email and Phone:

Date:

Annexure 09–Undertaking of Information Security

***(This letter should be on the letterhead of the Bidder as well as the OEM/ OSD
duly signed by an authorized signatory on Information security as per
regulatory requirement***

To

MD & CEO

BarodaSun Technologies Ltd.

3rd Floor, Bank of Baroda-Bldg II,

Horniman Circle, Fort,

Mumbai – 400 001

Sir,

Sub: RFP for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

We hereby undertake that the proposed hardware / software to be supplied will be free of malware, free of any obvious bugs and free of any covert channels in the code (of the version of the application being delivered as well as any subsequent versions/modifications done)

Further we undertake that the Software/ hardware and Services which will be delivered or provided under this Agreement are not infringe any IPR such as patent, utility model, industrial design, copyright, trade secret, mask work or trade mark.

Dated this.....by20

Yours faithfully,

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone

Annexure 10 - Letter of Undertaking from OEM / OSD

(This letter should be on the letterhead of the OEM / Manufacturer duly signed by an authorized signatory)

To

MD & CEO

BarodaSun Technologies Ltd.

3rd Floor, Bank of Baroda-Bldg II,

Horniman Circle, Fort,

Mumbai – 400 001

Dear Sir,

Sub: RFP for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

We (Name of the OSD / OEM) who are established and reputable manufacturers / developers of having factories at, and do hereby authorize M/s (who is the Bidder submitting its bid pursuant to the Request for Proposal issued by BSTL) to submit a Bid and negotiate and conclude a contract with you for supply of which are manufactured / developed by us against the Request for Proposal received from your Company by the Bidder and we have duly authorized the Bidder for this purpose.

We undertake to perform the obligations as set out in the RFP in respect of such services and hereby extend our support and services through M/s..... during the 3 year contract period as per terms and conditions of the RFP.

We assure you that in the event of M/s not being able to fulfill its obligation as M/s Bidder in respect of the terms defined in the RFP, (OEM / OSD Name) would continue to meet these either directly or through alternate arrangements without any additional cost to the BSTL.

Yours faithfully,

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone

Annexure 11 – Masked Commercial Bid

Amount (Rs.)								
Sl. No.	Items	OTC (One Time Cost)	Y1	Y2	Y 3	Total Amount without GST	GST Amount	TOTAL Amount Including GST
			AMT	AMT	AMT	AMT	AMT	AMT
a.	Subscription and Maintenance cost (50 no. of Users licenses) as per Scope of Work.	X	0.00	0.00	0.00	0.00	0.00	0.00
b.	One Time Implementation, Customization & Integration Cost*	0.00	X	X	X	0.00	0.00	0.00
Optional item**								
c.	Additional Licenses subscription cost for 5 block (1 block = 10 users) (including implementation and maintenance cost for further period) *** Note: Bidder need to cost for 5 blocks of "10 user license in each block" for each year.	X	0.00	0.00	0.00	0.00	0.00	0.00
d.	20 Man days per year for additional customization #	X	0.00	0.00	0.00	0.00	0.00	0.00
Total Cost of Ownership (TCO) for the period of 3 years						0.00	0.00	0.00

*One time Charges towards Implementation, Customization & Integration of Solution as per BSTL's and regulatory requirement.

**BSTL has discretion to avail the optional items services against the commercial provided. BSTL has discretion to mark these line items under optional item, if BSTL feels these items are not mandatory for the project. Cost of optional item's services will be consider for TCO calculation purpose however BSTL will place order for these optional items at BSTL's discretion as per requirement.

*** For this line item, bidder has to quote for 5 blocks for each year. 1 block will consist of 10 quantities of user licenses. The amount quoted in every year shall include license Subscription cost + implementation cost + maintenance cost for remaining duration of contract.

BSTL shall have the discretion to avail services for additional customization during the contract period, with payment to be made based on actual usage. The per man-day cost will be determined by dividing the total amount quoted for each year by 20, and this same

calculation method shall apply for any efforts exceeding 20 man-days in a given year throughout the contract period.

The license subscription cost shall be inclusive of carrying out any modifications changes / upgrades to the application and other software or equipment that is required to be made in order to comply with any statutory or regulatory requirements or any industry-wide changes (including any changes suggested in VAPT observations) arising during the subsistence of the contract / agreement, and the BSTL shall not pay any additional cost for the same.

We abide by following terms and conditions:

- a. TCO must be quoted in Indian Rupee (INR) only and should be inclusive of all taxes, duties, levies, GST etc.
- b. All Quoted Commercial Values should comprise of values only up to 2 decimal places. BSTL for evaluation purpose will consider values only up to 2 decimal places for all calculations & ignore all figures beyond 2 decimal places.
- c. If the cost for any line item is indicated as zero then it will be assumed by the Bank that the said item is provided to the Bank without any cost.
- d. All Deliverables to be supplied as per RFP requirements provided in the tender. The Service Charges need to include all services and other requirement as mentioned in the RFP.
- e. The vendor has to make sure all the arithmetical calculations are accurate. Bank will not be held responsible for any incorrect calculations however for the purpose of calculation Bank will take the corrected figures / cost.
- f. Any extra services if required for fulfilling the scope, the bidder is required to factor the same in above mentioned line items only. Vendor to factor all its expenses like travelling, boarding, lodging etc. Apart from amount specified in commercial bid, no other expenses will be paid by BSTL. The Bidder needs to clearly indicate if there are any recurring costs included in the above bid and quantify the same. In the absence of this, the Bidder would need to provide the same without any additional charge.
- g. There shall be no price escalation during the contract period and any extension thereof. Bid submitted with an adjustable price quotation will be treated as non-responsive and will be rejected.
- h. All the payments will be released as per the payment schedule mentioned on submission of invoice along with all supporting documents signed by BSTL Officials. BSTL will deduct applicable TDS, if any, as per the law of the land.
- i. BSTL reserves the right to disqualify the Bidder in case of any deviation observed in the commercial Bid.
- j. Commercial quote signed is final.

We hereby undertake to comply with the secrecy provision pursuant to provision of regulations and acts regarding secrecy and other applicable laws. Further, we confirm that we will abide by all the terms and conditions mentioned above & in the tender document.

Authorized Signatory

Name:

Designation:

Vendor's Corporate Name

Annexure 12 – Commercial Bid
Amount (Rs.)

BarodaSun Technologies Limited								
Commercial Bid - Annexure - 12								
Name of Work		Request for Proposal for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system, BID NO: XXXXXXXXXX Dated xx.04.2026						
Name of Bidder								
Please ensure that Commercial bid is not uploaded with the document of Eligibility cum Technical bid. In case any commercial details are found in the eligibility cum technical bid document set, entire bid is liable to be rejected. Please note, Commercial bid will be opened only during commercial bid evaluation in second stage. The Bidder shall quote the Prices in the format mentioned above. Prices to be filled in yellow colour boxes only (in commercial excel sheet) and nothing to be inserted in boxes where X is mentioned								
Sl. No.	Items	OTC (One Time Cost)	Y1	Y2	Y 3	Total Amount without GST	GST Amount	TOTAL Amount Including GST
			AMT (Rs.)	AMT (Rs.)	AMT (Rs.)	AMT (Rs.)	AMT (Rs.)	AMT (Rs.)
a.	Annual Subscription and Maintenance cost (50 no. of Users licenses) as per Scope of Work.	X	0.00	0.00	0.00	0.00	0.00	0.00
b.	One Time Implementation, Customization & Integration Cost*	0.00	X	X	X	0.00	0.00	0.00
Optional item**								

RFP for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

c.	Additional Licenses subscription cost for 5 block (1 block = 10 users) (including implementation and maintenance cost for further period) *** Note: Bidder need to cost for 5 blocks of "10 user license in each block" for each year.	X	0.00	0.00	0.00	0.00	0.00	0.00
d.	20 Man days per year for additional customization #	X	0.00	0.00	0.00	0.00	0.00	0.00
Total Cost of Ownership (TCO) for the period of 3 years						0.00	0.00	0.00
*One time Charges towards Implementation, Customization & Integration of Solution as per BSTL's and regulatory requirement. **BSTL has discretion to avail the optional items services against the commercial provided. BSTL has discretion to mark these line items under optional item, if BSTL feels these items are not mandatory for the project. Cost of optional item's services will be consider for TCO calculation purpose however BSTL will place order for these optional items at BSTL's discretion as per requirement. *** For this line item, bidder has to quote for 5 blocks for each year. 1 block will consist of 10 quantities of user licenses. The amount quoted in every year shall include license Subscription cost + implementation cost + maintenance cost for remaining duration of contract. # BSTL shall have the discretion to avail services for additional customization during the contract period, with payment to be made based on actual usage. The per man-day cost will be determined by dividing the total amount quoted for each year by 20, and this same calculation method shall apply for any efforts exceeding 20 man-days in a given year throughout the contract period. The license subscription cost shall be inclusive of carrying out any modifications changes / upgrades to the application and other software or equipment that is required to be made in order to comply with any statutory or regulatory requirements or any industry-wide changes (including any changes suggested in VAPT observations) arising during the subsistence of the contract / agreement, and the BSTL shall not pay any additional cost for the same.								

We abide by following terms and conditions

- a. TCO must be quoted in Indian Rupee (INR) only and should be inclusive of all taxes, duties, levies, GST etc.
- b. All Quoted Commercial Values should comprise of values only up to 2 decimal places. BSTL for evaluation purpose will consider values only up to 2 decimal places for all calculations & ignore all figures beyond 2 decimal places.
- c. If the cost for any line item is indicated as zero then it will be assumed by the Bank that the said item is provided to the Bank without any cost.
- d. All Deliverables to be supplied as per RFP requirements provided in the tender. The Service Charges need to include all services and other requirement as mentioned in the RFP.
- e. The vendor has to make sure all the arithmetical calculations are accurate. Bank will not be held responsible for any incorrect calculations however for the purpose of calculation Bank will take the corrected figures / cost.
- f. Any extra services if required for fulfilling the scope, the bidder is required to factor the same in above mentioned line items only. Vendor to factor all its expenses like travelling, boarding, lodging etc. Apart from amount specified in commercial bid, no other expenses will be paid by BSTL. The Bidder needs to clearly indicate if there are any recurring costs included in the above bid and quantify the same. In the absence of this, the Bidder would need to provide the same without any additional charge.
- g. There shall be no price escalation during the contract period and any extension thereof. Bid submitted with an adjustable price quotation will be treated as non-responsive and will be rejected.
- h. All the payments will be released as per the payment schedule mentioned on submission of invoice along with all supporting documents signed by BSTL Officials. BSTL will deduct applicable TDS, if any, as per the law of the land.
- i. BSTL reserves the right to disqualify the Bidder in case of any deviation observed in the commercial Bid.
- j. Commercial quote signed is final.

We hereby undertake to comply with the secrecy provision pursuant to provision of regulations and acts regarding secrecy and other applicable laws. Further, we confirm that we will abide by all the terms and conditions mentioned above & in the tender document.

Authorized Signatory:	
Name:	
Designation:	
Vendor's Corporate Name:	

Annexure 13 – Binding Criteria for Technical Presentation

Re: RFP for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

The following criteria must be adhered to by all bidders, in connection with the technical presentations during the bid selection process:

- At least one senior representative from bidder's organization should be present in the technical presentations
- Complete soft copies of the presentation materials should be shared with BSTL before the presentation.
- BSTL will expect and demand that the key personnel showcased by the vendor in the technical presentation should be the same ones that actively drive the project execution.
- Bidders must strictly adhere to the time slots provided (Approx. 75 Minutes) to them for the technical presentation, allowing ample time and scope for question-answers.
- Focus of the presentation should be on the specifics of the approach / methodology being proposed for BSTL.
- Both technical and administrative aspects of the project should be given suitable coverage.
- All aspects of requirements in the RFP should be covered in the presentation.
- All RFP requirements that are not covered by the proposed plan, or not adhered to, should be clearly brought out in the technical presentation, along with reasons / justification on why they will not be covered.
- Any assumption, if taken in the response to RFP document should be clearly brought out in the technical presentation, along with the justification.
- BSTL's evaluation and scoring on all aspects including technical presentation are final and non-negotiable.

Annexure 14 – Service levels.

The Vendor understands the scale of this Project and that it would require tremendous commitment of financial and technical resources for the same, for the tenure of Contract under this RFP.

BSTL expects that the successful Vendor to adhere to the following minimum Service Levels:

- Any fault/ issue/ defect failure intimated by BSTL through any mode of communication like call/e-mail/sms etc. are to be acted upon, so as to adhere to the service levels. Business/ Service Downtime and Deterioration shall be the key considerations for determining “Penalties” that would be levied on the Successful Vendor.
- The Vendor should have 24X7 Management, escalation and resolution infrastructure.
- Time bound problem addressing team (onsite/offsite) for the complete contract period.
- Vendor to arrange for updation required in the system to meet the changes suggested by RBI/ Govt. of India/ regulatory authorities towards compliance as part of support at no extra cost to BSTL for the entire contract period. Any delay in meeting the timelines would result in penalty.

Vendor will have to guarantee a minimum uptime of 99.9%, calculated on a monthly basis. Application (As a whole / any module of the application) availability will be 99.9% on 24x7x365. The penalty will be calculated as per the details given below:

Uptime percentage - 100% less Downtime Percentage

Downtime percentage - Unavailable Time divided by Total Available Time, calculated on a monthly basis.

Total Available Time – 24 hrs per day for seven days a week excluding planned downtime.

Unavailable Time - Time involved while the solution is inoperative or operates inconsistently or erratically.

Uptime Percentage	Penalty Details
A >= 99.9%	No Penalty
99.9% > A >=99.5%	2% of cost of monthly Subscription charges
99.5% > A >= 99.0%	5% of cost of monthly Subscription charges
99.0% > A	Penalty at an incremental rate of 1% (in addition to a base of 5%) of cost of monthly Subscription charges for every 0.1% lower than the stipulated uptime.

The uptime percentage would be calculated on monthly basis and the calculated amount would be adjusted from every subsequent quarterly payment. The SLA charges will be subject to an overall cap of 10% of the Yearly subscription Charges and thereafter, Bank has the discretion to cancel the contract. If Vendor materially fails to meet an uptime of 99.9% for three (3) consecutive months, the Bank may have the right to terminate the contract. In case if there is no pending invoices to be paid by the Bank to the vendor, the vendor has to submit a pay order / cheque payable at Mumbai

in favour of Bank of Baroda for the same within 15 days from the notice period from the Bank. Solution downtime occurring due to factors attributable to the Bank and acknowledged by Bank will not impact the SLA.

Annexure 15 – Declaration/ undertaking from bidder to comply with the Information and cyber security controls

(This letter should be on the letterhead of the Bidder duly signed by an authorized signatory)

To
MD & CEO
BarodaSun Technologies Ltd.
3rd Floor, Bank of Baroda-Bldg II,
Horniman Circle, Fort,
Mumbai – 400 001

Sir,

Sub: Request for Proposal for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

Further to our proposal dated, in response to the Request for Proposal..... (BSTL's tender No. hereinafter referred to as "RFP") issued by Baroda Sun Technologies Ltd ("BSTL") we hereby covenant, warrant and confirm as follows:

We hereby agree to comply with the Information and cyber security controls as per BSTL's and Regulatory Authorities IT Security Guidelines on an ongoing basis and regulatory / legal guidelines and directives related to SP / outsourcing issued by regulators / legal entities from time to time. The SP shall provide access to the regulators, legal authorities, BSTL and BSTL appointed auditors for on-site/off-site supervision.

We ensure that outsourced critical IT service are subjected to the annual IT audit / Technology risk assessment process by an independent professional agency as approved by the local government or regulator at no extra cost to the BSTL

We abide with all clauses of applicable Cyber Security Controls which will be part of the NDA/SLA signed with the BSTL at the time of award of contract.

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone

Annexure 16 – Undertaking of Compliance with MeitY Data Localization and Certification Requirements.

(This letter should be on the letterhead of the Bidder duly signed by an authorized signatory)

To
MD & CEO
BarodaSun Technologies Ltd.
3rd Floor, Bank of Baroda-Bldg II,
Horniman Circle, Fort,
Mumbai – 400 001

Sir,

Sub: Request for Proposal for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

We, _____, hereby confirm that all Services provided under this RFP will fully comply with the MeitY guidelines on data localization. We further confirm that all data centres utilized will be within India and will exclusively rely on MeitY's empaneled Cloud Service Providers. We, _____, is committed to ensuring that our services adhere to all relevant legal and regulatory guidelines as stipulated by MeitY, as applicable to data localization requirements for the entire contract duration.

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone #

Annexure 17 – Performance Guarantee

BANK GUARANTEE

(FORMAT OF PERFORMANCE BANK GUARANTEE)

To
MD & CEO
BarodaSun Technologies Ltd.
3rd Floor, Bank of Baroda-Bldg II,
Horniman Circle, Fort,
Mumbai – 400 001

WHEREAS M/S (Name of Bidder) a Company registered under the Indian Companies Act, 1956 and having its Registered Office at, (Please provide complete address) (hereinafter referred to as "Bidder") was awarded a contract by BarodaSun Technologies Limited (BSTL) vide their Purchase Order no. dated (hereinafter referred to as "PO") for
.....

AND WHEREAS, in terms of the conditions as stipulated in the PO and the Request for Proposal document No. Dated for (hereinafter referred to as "RFP"), the Bidder is required to furnish a Performance Bank Guarantee issued by a Public Sector Bank/ schedule commercial bank in India other than Bank of Baroda in your favour for Rs...../- towards due performance of the contract in accordance with the specifications, terms and conditions of the purchase order and RFP document (which guarantee is hereinafter called as "BANK GUARANTEE").

AND WHEREAS the Bidder has approached us for providing BANK GUARANTEE.

AND WHEREAS at the request of the Bidder, WE,, a body corporate in terms of Banking Companies Acquisition and Transfer of Undertakings Act, 1970/1980 having its Office at and a branch interalia at India have agreed to issue BANK GUARANTEE.

THEREFORE, WE, (name of Bank and its address) through our local office at India furnish you BANK GUARANTEE in manner hereinafter contained and agree with you as follows:

1. We do hereby expressly, irrevocably and unconditionally

undertake to pay the amounts due and payable under this Guarantee without any demur, merely on demand from you and undertake to indemnify you and keep you indemnified from time to time and at all times to the extent of Rs./-(Rupees

.....only) against any loss or damage caused to or suffered by or that may be caused to or suffered by you on account of any breach or breaches on the part of the Bidder of any of the terms and conditions contained in the PO and RFP / SLA and in the event of the Bidder committing default or defaults in carrying out any of the work or discharging any obligation under the PO or RFP document or otherwise in the observance and performance of any of the terms and conditions relating thereto in accordance with the true intent and meaning thereof, we shall forthwith on demand pay to you such sum or sums not exceeding the sum of Rs......./-(Rupees only) as may be claimed by you on account of breach on the part of the Bidder of their obligations or default in terms of the PO and RFP.

2. Notwithstanding anything to the contrary contained herein or elsewhere, we agree that your decision as to whether the Bidder has committed any such breach/default or defaults and the amount or amounts to which you are entitled by reasons thereof will be binding on us and we shall not be entitled to ask you to establish your claim or claims under Bank Guarantee, but will pay the same forthwith on your demand without any protest or demur. Any such demand made by BarodaSun Technologies Limited shall be conclusive as regards the amount due and payable by us to you.
3. This Bank Guarantee shall continue and hold good until it is released by you on the application by the Bidder after expiry of the relative guarantee period provided always that the guarantee shall in no event remain in force after (date) without prejudice to your claim or claims arisen and demanded from or otherwise notified to us in writing before the expiry of the said date which will be enforceable against us notwithstanding that the same is or are enforced after the said date.
4. You will have the fullest liberty without our consent and without affecting our liabilities under this Bank Guarantee from time to time to vary any of the terms and conditions of the PO and RFP or extend the time of performance of the contract or to postpone for any time or from time to time any of your rights or powers against the Bidder and either to enforce or forbear to enforce any of the terms and conditions of the said PO and RFP and we shall not be released from our liability under Bank Guarantee by exercise of your liberty with reference to matters aforesaid or by reason of any time being given to the Bidder or any other forbearance, act or omission on your part or any indulgence by you to the Bidder or any other act, matter or things whatsoever which under law relating to sureties, would but for the provisions hereof have the effect of so releasing us from our liability hereunder provided always that nothing herein contained will enlarge our liability hereunder beyond the limit of Rs./-(Rupees..... only) as aforesaid or extend the period of the guarantee beyond the said (date) unless expressly

agreed to by us in writing.

5. Bank Guarantee shall not in any way be affected by your taking or giving up any securities from the Bidder or any other person, firm or company on its behalf or by the winding up, dissolution, insolvency or death as the case may be of the Bidder.
6. In order to give full effect to the guarantee herein contained, you shall be entitled to act as if we were your principal debtors in respect of all your claims against the Bidder hereby guaranteed by us as aforesaid and we hereby expressly waive all our rights of surety ship and other rights, if any, which are in any way inconsistent with any of the provisions of Bank Guarantee.
7. Subject to the maximum limit of our liability as aforesaid, Bank Guarantee will cover all your claim or claims against the Bidder from time to time arising out of or in relation to the PO and RFP and in respect of which your claim in writing is lodged on us before expiry of Bank Guarantee.
8. Any notice by way of demand or otherwise hereunder may be sent by special courier or registered post to our local address as aforesaid and if sent accordingly it shall be deemed to have been given when the same has been posted.
9. Bank Guarantee and the powers and provisions herein contained are in addition to and not by way of limitation of or substitution for any other guarantee or guarantees hereto before given to you by us (whether jointly with others or alone) and now existing enforce and this Bank Guarantee is not intended to and shall not revoke or limit such guarantee or guarantees.
10. Bank Guarantee shall not be affected by any change in the constitution of the Bidder or us nor shall it be affected by any change in your constitution or by any amalgamation or absorption thereof or therewith but will ensure to the benefit of and be available to and be enforceable by the absorbing or amalgamated company or concern.
11. Bank Guarantee shall come into force from the date of its execution and shall not be revoked by us any time during its currency without your previous consent in writing.
12. We further agree and undertake to pay you the amount demanded by you in writing irrespective of any dispute or controversy between you and the Bidder in any suit or proceeding pending before any court or Tribunal relating thereto, our liability under this present being absolute and unequivocal. The payments so made by us shall be a valid discharge of our liability for payment here under and the Bidder shall have no claim against us for making such payment.
13. Notwithstanding anything contained herein above;
 - a. our liability under this Guarantee shall not exceed Rs./- (Rupeesonly)
 - b. this Bank Guarantee shall be valid and remain in force upto and including the date and
 - c. we are liable to pay the guaranteed amount or any part thereof under this Bank Guarantee only and only if you serve upon us a written claim or demand on or before the expiry of this guarantee.
14. We have the power to issue this Bank Guarantee in your favour under the Memorandum and Articles of Association of our Bank and the undersigned has full power to execute this Bank Guarantee under the Power of Attorney issued by



Bank.

Dated this the day of, 20.....

For and on behalf of
Branch Manager
Seal and Address

Annexure 18 – SERVICE LEVEL AND NON DISCLOSURE AGREEMENT FORMAT

This Agreement is made in Mumbai on this..... Day of 2026 by and between Baroda Sun Technologies Limited, a Public company incorporated as a wholly owned subsidiary of Bank of Baroda on July 5, 2017 classified as Union government company and is registered with the Registrar of Companies, Mumbai, Maharashtra, and having its registered office at BarodaSun Tower, C-34, G-Block, Bandra Kurla Complex, Bandra Mumbai, Maharashtra, India 400051, CIN U74999MH2017GOI296962, (hereinafter referred to as the “BSTL”) which expression unless repugnant to the context or meaning thereof shall mean and include its successors and assigns) of the one Part;

AND

_____ a company incorporated under the....., having its registered office at _____ hereinafter referred to as “the Bidder” (which expression shall, unless repugnant to the context and meaning thereof include its subsidiaries, affiliates, successors and permitted assigns) of the other Part,

(BSTL and the Bidder hereinafter are individually referred to as “Party” and collectively as “Parties”)

WHEREAS

BSTL intent to Select a Service Provider for Supply, Implementation & Maintenance of Human Resource Management system to automates and streamlines HR functions.

For this purpose, BSTL had issued the RFP No. _____ Dated _____ and had invited the tenders from the eligible participant.

In response to RFP issued by BSTL, the Bidder also submitted its offer and has represented that it is engaged in the business of services related to it. It further represented to BSTL that it has the requisite skill, knowledge, experiences, experts, staff and capability to provide required service to BSTL. Relying on representations of the Service Provider and other applicable criteria, the Bidder was declared as a successful bidder in the RFP evaluation process. Accordingly BSTL has issued a _____ dated _____ to the Bidder.

It was a condition in the RFP that the Parties would enter into a Service Level and Non Disclosure Agreement which shall include all the services and terms and conditions of the services to be extended as detailed here in.

NOW, THEREFORE, THIS AGREEMENT WITNESSETH AS FOLLOWS

1. Definitions

1. Recipient, Respondent, Bidder, service provider, vendor means the respondent to the RFP document
2. RFP means the Request For Proposal document
3. Proposal, Bid means “Response to the RFP Document”
4. Support means Support & Services to be provided as part of the Scope of Work

5. SLA means Service level Agreement
6. NDA means Non-Disclosure Agreement
7. GeM – Government-e-Marketplace
8. Central Vigilance Commission (CVC)
9. One Time Cost (OTC)
10. Total Cost of Ownership (TCO)
11. EMD – Earnest Money Deposit
12. Support means Support & Services to be provided as part of the Scope of Work
13. PBG -Performance Bank Guarantee
14. NPV mean Net Present Value
15. SP means Service Provider or Vendor
16. BSTL means BARODA SUNTechnologies Limited

2. Term And Renewal

This Agreement shall come into force on (Date) and shall be in force and effect for a period of ____months, unless BSTL terminates the Agreement as per the terms of this Agreement.

Without prejudice to the right of termination, BSTL may renew or extend the term of this Agreement, for the period of ____ Months, on the same or with certain modifications in the terms and conditions of this Agreement, as per its sole discretion.

3. Scope Of Service / Deliverables And Service Levels

As per RFP document.

4. Timeline And Reporting Mechanism

As per RFP document.

5. Deliverables

As per RFP document.

6. Single Point of Contact & Direct Support

(Please incorporate following details - designation, address, email address, telephone /mobile No..

Escalation matrix for support should also be provided with full details.

7 . PAYMENT TERMS:

As per RFP document.

8. Out of pocket expenses :

As per RFP document.

9. Security deposit .

As per RFP document.

10 . Set-off

10.1 Without prejudice to other rights and remedies available to BSTL, BSTL shall be entitled to set-off or adjust any amounts due to BSTL under this agreement from the Service Provider against payments due and payable by BSTL to the Service Provider for the services rendered.

10.2 The provisions of this Clause shall survive the termination of this Agreement.

11. COVENANTS OF THE SERVICE PROVIDER:

11.1 The Service Provider shall deploy and engage suitably experienced and competent personnel as may reasonably be required for the performance of the services. During the currency of this Agreement, the Service Provider shall not substitute the key staff identified for the services mentioned in this Agreement.

11.2 The Service Provider shall forthwith discontinue / withdraw or bar any of its employee/s from the provision of the services if upon being intimated by the authorized person of the BSTL if in the opinion of BSTL:

- (i) The quality of services rendered by the said employee is not in accordance with the quality specifications stipulated by BSTL; or
- (ii) The engagement or provision of the services by any particular employee is prejudicial to the interests of BSTL.

11.3 All employees engaged by the Service Provider shall be in sole employment of the Service Provider and the Service Provider shall be solely responsible for their salaries, wages, statutory payments etc. and under no circumstances shall BSTL be liable for any payment or claim or compensation (including but not limited to compensation on account of injury /death / termination) of any nature to the employees and personnel of the Service Provider.

11.4 The Service Provider:

- shall be responsible for all negotiations with personnel relating to salaries and benefits, and shall be responsible for assessments and monitoring of performance and for all disciplinary matters.
- shall not knowingly engage any person with a criminal record/conviction and shall bar any such person from participating directly or indirectly in the provision of services under this Agreement.

- shall at all times use all reasonable efforts to maintain discipline and good order amongst its personnel.
- shall not exercise any lien on any of the assets, documents, instruments or material belonging to BSTL and in the custody of the Service Provider for any amount due or claimed to be due by the Service Provider from BSTL.
- shall regularly provide updates to BSTL with respect to the provision of the services and shall meet with the personnel designated by BSTL to discuss and review its performance at such intervals as may be agreed between the Parties.
- shall be responsible for compliance of all laws, rules, regulations and ordinances applicable in respect of its employees, sub-contractors and agents (including but not limited to Minimum Wages Act, Provident Fund laws, Workmen's Compensation Act) and shall establish and maintain all proper records including, but not limited to, accounting records required by any law, code, practice or corporate policy applicable to it from time to time, including records and returns as applicable under labour legislations.
- shall not violate any proprietary and intellectual property rights of BSTL or any third party, including without limitation, confidential relationships, patent, trade secrets, copyright and any other proprietary rights in course of providing services hereunder.
- shall ensure that the quality and standards of materials and services to be delivered or rendered hereunder, will be of the kind, quality and timeliness as designated by the BSTL and communicated to the Service Provider from time to time.
- shall not work in a manner which, in the reasonable opinion of BSTL, may be detrimental to the interests of BSTL and which may adversely affect the role, duties, functions and obligations of the Service Provider as contemplated by this Agreement.
- shall comply ESG, BRSR and other related parameters including the Declaration of Human Rights, Inclusive of those in the International Bill of Rights and Declaration of Fundamental Rights at work (1998) as per the International Labour Organization as well as the United Nations Guiding Principles on Business and Human Rights and the National Guidelines on Responsible Business Conduct
- Service Provider shall comply with BOB's / BSTL's Code of Ethics, available on BOB's / BSTL's website>Shareholder's Corner> Policies/Codes> Our Code of Ethics, during the validity period of this agreement/contract.

12. Confidentiality:

12.1 All BSTL's product and process details, documents, data, applications, software, systems, papers, statements and business/customer information which may be communicated to or come to the knowledge of the Service Provider or its employees during the course of discharging their obligations shall be treated as absolutely confidential and the Service Provider irrevocably agrees and undertakes and ensures that the Service Provider and its employees shall keep the same secret and confidential and not disclose the same, in whole or in part to any third party without the prior written permission of BSTL nor shall use or allow to be used any information other than as may be necessary for the due performance by the Service Provider of its obligations hereunder.

12.2 The Service Provider shall not make or retain any copies or record of any Confidential Information submitted by BSTL other than as may be required for the performance of the Service Provider obligation under this Agreement.

12.3 The Service Provider shall notify BSTL promptly of any unauthorized or improper use or disclosure of the Confidential Information.

12.4 The Service Provider shall return all the Confidential Information that is in its custody, upon termination / expiry of this Agreement. Also so far as it is practicable the Service Provider shall immediately expunge any Confidential Information relating to the projects from any computer, word processor or other device in possession or in the custody and control by Service Provider or its affiliates.

12.5 The Service Provider shall to the extent practicable, immediately furnish a certificate signed by its director or other responsible representative confirming that to the best of his/her knowledge, information and belief, having made all proper enquiries the requirements of this paragraph have been fully complied with.

12.6 The Service Provider hereby unconditionally agrees and undertakes that it and its employees shall not disclose the terms and conditions of this Agreement or disclose the information submitted by BSTL under this Agreement to any third party unless such disclosure is required by law or for the purpose of performing its any obligations under this Agreement.

12.7 It shall be the incumbent duty of the Service Provider to undertake not to disclose any business related information of BSTL to any third person and the Service Provider shall keep all knowledge of the business activities and affairs of BSTL strictly confidential and also to ensure that neither the Service Provider nor any of its officers, employees directly or indirectly assist any third person with the promotion of activities which may be prejudicial to the interest or in competition to the activities of BSTL.

12.8 However the confidential information will not be limited to the information mentioned above but not include the following as confidential information:

- i) Without breach of these presents, has already become or becomes and/or hereinafter will become part of the public domain;
- ii) Prior to the disclosure by BSTL was known to or in the possession of the Service Provider at the time of disclosure ;
- iii) Was disclosed or parted with the prior consent of BSTL;
- iv) Was acquired by the Service Provider from any third party under the conditions such that it does not know or have reason to know that such third party acquired directly or indirectly from BSTL.

12.9 The Service Provider agrees to take all necessary action to protect the Confidential Information against misuse, loss, destruction, deletion and/or alteration. It shall neither misuse or permit misuse directly or indirectly, nor commercially exploit the Confidential Information for economic or other benefit.

12.10 Notwithstanding the above, BSTL shall take all the reasonable care to protect all the confidential information of Service Provider delivered to BSTL while performing of the services.

12.11 The provisions of this Clause shall survive the termination of this Agreement.

13. INDEMNITY

13.1 The Service Provider shall, at its own expense, indemnify, defend and hold harmless BSTL and its officers, directors, employees, representatives, agents respective directors, and assigns from and against any and all losses and liability (including but not limited to liabilities, judgments, damages, losses, claims, costs and expenses, including attorneys fees and expenses) that may be occurring due to, arising from or relating to:

- BSTL's authorized / bona fide use of the Deliverables and /or the Services provided by Service Provider under this assignment ; and/or
- Negligence or willful misconduct of the Service Provider and/or its employees, agents, sub-contractors in performance of the obligations under this assignment; and/or
- claims made by employees or subcontractors or subcontractors' employees, who are deployed by the Service Provider, against BSTL; and/or
- claims arising out of employment, non-payment of remuneration and non-provision of statutory benefits by the Service Provider to its employees, its agents, contractors and sub-contractors; and/or
- breach of any terms, representation or false representation or inaccurate statement or assurance or covenant or warranty of the Service Provider under this

assignment; and/or

- breach of confidentiality obligations of the Service Provider; and/or
- any or all Deliverables or Services infringing any patent, trademarks, copyrights or such other Intellectual Property Rights;

BSTL shall notify the Service Provider in writing as soon as practicable when BSTL becomes aware of the claim, and shall co-operate with the Service Provider in the defense and settlement of the claims.

The Service Provider shall have sole control of the defense and all related settlement/ negotiations, and BSTL will provide the Vendor with the assistance, information and authority reasonably necessary to perform the above.

If use of deliverables is prevented by injunction or court order because of which any such claim or deliverables is likely to become subject of any such claim then the Service Provider shall without additional cost to BSTL, shall either:

- 1) replace or modify the deliverables which are functionally equivalent and without affecting the functionality in any manner, so as to avoid the infringement; or
- 2) obtain a license for BSTL to continue the use of the deliverables, as required by BSTL as per the terms and conditions of this assignment or subsequent Agreement and to meet the service levels; or

13.2 If the Service Provider fail to provide the remedy prescribed in para 1 or 2 within specified period to BSTL, in such case the Service Provider shall refund to BSTL the amount paid for the infringing deliverable's and bear the incremental costs of procuring a functionally equivalent deliverables from a third party selected by BSTL,

However, the Service Provider shall not be liable for defects or non-conformance resulting from:

- Software, hardware, interfacing, or supplies for the solution not approved by Vendor; or
- any change, not made by or on behalf of the Vendor, to some or all of the deliverables supplied by the Vendor or modification thereof, provided the infringement is solely on account of that change ;

13.3 In the event of Service Provider not fulfilling its obligations under this clause within the period specified in the notice issued by BSTL, BSTL has the right to recover the amounts by invoking the security or the amount due to it under this provision from any amount payable to the Service Provider under this project.

13.4 The indemnities under this clause are in addition to and without prejudice to the indemnities given elsewhere in this agreement.

14. PROPERTY RIGHTS

1. Each Party owns and retains all rights, title and interests in and to its respective Pre-Existing Intellectual Property and Independent Intellectual Property. Independent Intellectual Property means any Intellectual Property developed

by a Party independently of the applicable statement of work. "Pre-Existing Intellectual Property" means any Intellectual Property owned by a Party, or licensed to such Party (other than by the other Party), as at the commencement date of the applicable statement of work.

2. Whereas title to all inventions and discoveries made jointly by the parties resulting from the Work performed as per this agreement shall reside jointly between the parties. Both the parties shall mutually decide the future course of action to protect/ commercial use of such joint IPR. The Intellectual Property Rights shall be determined in accordance with Indian Laws.
3. Without prejudice to above paras all the interim/ final deliverables shall be property of BSTL. Subject to requisite payments, the service provider shall be deemed to grant exclusive, perpetual rights to use of the deliverables in favor of BSTL.

15. CONTRACT PERFORMANCE GUARANTEE

Service Provider shall provide unconditional and irrevocable Performance Bank Guarantee for Rs -----/- (Rupees _____ Only) in favour of BSTL from any Public Sector Bank other than Bank of Baroda as acceptable to BSTL towards due performance of the contract in accordance of this Agreement. The Performance Guarantee shall be valid for a period of ____ months with additional claim period of three months after expiry of validity period.

16. PENALTIES AND LIQUIDATED DAMAGES:

16.1 Service Provider shall have to pay late delivery charges to BarodaSun Technologies Limited @ 0.1% of the Total cost of the project inclusive of all taxes, duties, levies etc., per week or part thereof, for late delivery beyond due date of delivery, to a maximum of 5% of the total contract value inclusive of all taxes, duties, levies etc. beyond that BarodaSun Technologies Limited reserves the right to cancel the contract.

16.2 Both the above Penalty and Liquidated Damages are independent of each other and leviable/applicable separately and concurrently.

16.3 The Penalty and Liquidated Damages are not applicable in case the delay is for reasons attributable to the BSTL and Force Majeure. However it is the responsibility of the Service Provider to prove that the delay is attributed to BSTL and Force Majeure. The decision taken by BSTL in this regard shall be final and Service Provider shall not dispute the same.

16.4 If the Service Provider fails to perform its obligation as per this Agreement then BSTL reserves the right to get the balance work executed by another Service Provider as per choice of BSTL and Service Provider shall be liable to bear the expenditure which BSTL may incur for the execution of balance work and its completion.

17. TERMINATION

17.1 The BSTL shall have the option to terminate this agreement and/ or any particular order, in whole or in part by giving Service Provider at least 30 days prior notice in writing. In the event of any termination hereof, BSTL's sole responsibility with respect to the Service Provider's professional fees, related expenses and chargeable service tax shall be restricted to the limited extend as incurred upto the effective date of termination as mentioned in the notice of termination.

In the following events, BSTL shall terminate this assignment or cancel any particular services if Service Provider:

- breaches any of its obligations set forth in this assignment or any subsequent agreement and such breach is not cured within thirty (30) Working Days after BSTL gives written notice; or
- Failure by Service Provider to provide BSTL, within thirty (30) Working Days, with a reasonable plan to cure such breach, which is acceptable to BSTL; or
- The progress regarding execution of the contract/ services rendered by the Service Provider is not as per the prescribed time line, and found to be unsatisfactory; or
- The Service Provider commits a breach of any of the terms and conditions of this contract; or
- The Service Provider goes into liquidation voluntarily or otherwise; or
- An attachment is levied or continues to be levied for a period of 7 days upon effects of the contract.

17.2 During the period of the agreement, if the Service Provider does not perform satisfactorily or delays execution of the contract, BSTL reserves the right to cancel the contract and to get the balance contract executed by another party of its choice by giving one month's notice for the same. In this event, the Service Provider is bound to make good the additional expenditure, which the BSTL may have to incur to carry out bidding process for the selection of a new Vendor and for execution of the balance of the contract. This clause is applicable, if for any reason, the contract is terminated on the defaults mentioned above.

17.3 BSTL reserves the right to recover any dues payable by the Service Provider from any amount outstanding to the credit of the Service Provider, including the pending bills and/or invoking Bank Guarantee, if any, under this contract or any other contract/order.

17.4 It is hereby agreed and understood by the Parties that the provisions of this Clause shall not limit or restrict nor shall it preclude any Party from pursuing such further and other legal actions, against the other Party for any breach or non-compliance of the terms of this Agreement.

17.5 In the event if this Agreement is terminated for any reasons, either Party shall forthwith hand over to the other the possession of all documents, material and any other property belonging to the other that may be in the possession of the Party or any of its employees, agents or individuals.

17.6 Upon the termination or expiry of this Agreement the rights granted to the Service Provider shall immediately be terminated.

18. CORPORATE AUTHORITY

The Parties represent that they have taken all necessary corporate action and sanction to authorize the execution and consummation of this Agreement and will furnish satisfactory evidence of same upon request.

19. LAW, JURISDICTION AND DISPUTE RESOLUTION

19.1 The provisions of this Agreement shall be governed by and, construed in accordance with the Indian law and the courts in Mumbai shall have the exclusive jurisdiction to deal with any issue arising out of this Agreement.

- a) BSTL and the Service Provider shall make every effort to resolve amicably, by direct informal negotiation, any disagreement or dispute arising between them under or in connection with the contract. If after 15 days from the commencement of such informal negotiations, BSTL and the Service Provider have been unable to resolve amicably a contract dispute, either party may require that the dispute be referred for resolution by formal Mediation by mutual consent before the provisions proceedings of arbitration are resorted to as provided hereinafter. It is made clear that the said mediation shall be purely optional for both the parties.

- b) **Mediation**

If both parties mutually agree to resort to/adopt the mediation process the request in writing would be made by both the parties to any recognised mediation centre at Mumbai.

- c) **Arbitration**

In the event the dispute between the parties not getting resolved through the process mentioned hereinabove, the dispute, controversy or claims arising out of or in connection with the Agreement shall be referred to sole arbitrator to be appointed by mutual consent OR the number of arbitrators shall be three, with each Party to the dispute being entitled to appoint one arbitrator. The two arbitrators appointed by the Parties shall appoint a third arbitrator who shall act as the chairman of the proceedings.

- a) The place of arbitration shall be at Mumbai
- b) The arbitral procedure shall be conducted in the English language and any award or awards shall be rendered in English. The procedural law of the arbitration shall be the Indian law.

- c) The award of the arbitrator shall be final and conclusive and binding upon the Parties, and the Parties shall be entitled (but not obliged) to enter judgment thereon in any one or more of the highest courts having jurisdiction. The Parties further agree that such enforcement shall be subject to the provisions of the Indian Arbitration and Conciliation Act, 1996 and neither Party shall seek to resist the enforcement of any award in India on the basis that award is not subject to such provisions.
- d) The rights and obligations of the Parties under or pursuant to this Clause, including the arbitration agreement in this Clause, shall be under the exclusive jurisdiction of the courts located at Mumbai.

20. AUDIT:

20.1 BSTL reserves the right to conduct an audit/ ongoing audit of the services provided by the Service Provider.

20.2 The Service Provider should allow the Reserve Bank of India (RBI) or persons authorized by it to access BSTL documents, records or transaction or any other information given to, stored or processed by the Service Provider within a reasonable time; failing which, the Service Provider will be liable to pay any charges/ penalty levied by RBI.

21. LIMITATION OF LIABILITY

21.1 Notwithstanding the contents of para 20.2 of this Agreement, the Service Provider's aggregate liability in connection with obligations undertaken as a part of this Project whether arising under this project regardless of the form or nature of the action giving rise to such liability (whether in contract, tort or otherwise), shall be actual.

21.2 The Service Provider's liability in case of claims against BSTL resulting from its willful misconduct or gross negligence, loss suffered by BSTL due to damage to real or tangible or intangible property by Service Provider, its employees and/ or subcontractors or loss suffered by BSTL due to infringement of patents, trademarks, copyrights or such other Intellectual Property Rights or breach of confidentiality obligations shall be unlimited.

21.3 BSTL can not be held liable for and shall stand absolved of any responsibility or claim/litigation arising out of the use of any third party modules or proprietary information supplied by the Service Provider as part of this Agreement.

21.4 Under no circumstances BSTL shall be liable to the Service Provider for direct, indirect, incidental, consequential, special or exemplary damages arising from termination of this Agreement, even if BSTL has been advised of the possibility of such damages, such as, but not limited to, loss of revenue or anticipated profits or lost business.

21.6 Subject to any law to the contrary, and to the maximum extent permitted by law neither parties shall be liable to other for any consequential/ incidental, or indirect damages arising out of this agreement.

21.7. All employees engaged by the party shall be in sole employment of the party and the party shall be solely responsible for their salaries, wages, statutory payments etc. That under no circumstances shall other party be liable for any payment or claim or compensation (including but not limited to compensation on account of injury/death/termination) of any nature to the employees and personnel of the party .

22. PUBLICITY

The Service Provider shall not use the name and/or trademark/logo of BSTL, its group companies or associates in any sales or marketing publication or advertisement, or in any other manner without prior written consent of BSTL.

23. INDEPENDENT ARRANGEMENT

This Agreement is on a principal-to-principal basis between the Parties hereto. Nothing contained in this Agreement shall be construed or deemed to create any association, partnership or joint venture or employer-employee relationship or principal-agent relationship in any manner whatsoever between the parties. The Service Provider acknowledges that its rendering of services is solely within its own control, subject to the terms and conditions agreed upon and agrees not to hold it out to be an employee, agent or servant of BSTL or Affiliate thereof.

24. SUBCONTRACTING:

The Service Provider shall not subcontract or permit anyone other than its personnel to perform any of the work, service or other performance required by it under the contract without the prior written consent of the BSTL.

25. NON – SOLICITATION

The Service Provider, during the term of the contract shall not without the express written consent of BSTL, directly or indirectly: a) recruit, hire, appoint or engage or attempt to recruit, hire, appoint or engage or discuss employment with or otherwise utilize the services of any person who has been an employee or associate or engaged in any capacity by BSTL in rendering services in relation to the contract; or b) induce any person who shall have been an employee or associate of BSTL at any time to terminate his/ her relationship with the BSTL.

26. VICARIOUS LIABILITY

The Service Provider shall be the principal employer of the employees, agents, contractors, subcontractors, etc., if any, engaged by the Service Provider and shall be vicariously liable for all the acts, deeds, matters or things, whether the same is within the scope of power or outside the scope of power, vested under the contract. No right of any employment in the BSTL shall accrue or arise, by virtue of engagement of employees, agents, contractors, subcontractors etc., by the Service Provider for any assignment under the contract. All remuneration, claims, wages dues etc., of such employees, agents, contractors, subcontractors etc., of the Service Provider shall be paid by the Service Provider alone and the BSTL shall not have any direct or indirect liability or obligation, to pay any charges, claims or wages of any of the Service

Provider's employees, agents, contractors, subcontractors etc. The Service Provider shall agree to hold the BSTL, its successors, assigns and administrators fully indemnified, and harmless against loss or liability, claims, actions or proceedings, if any, of whatsoever nature that may arise or caused to the BSTL through the action of Service Provider's employees, agents, contractors, subcontractors, etc.

27. FORCE MAJEURE

26.1 The Parties shall not be liable for any failure to perform any of its obligations under this Agreement if the performance is prevented, hindered or delayed by a Force Majeure event (defined below) and in such case its obligations shall be suspended for so long as the Force Majeure Event continues (provided that this shall not prevent the accrual of interest on a principal amount which would have been payable but for this provision). Each party shall within a week inform the other of the existence of a Force Majeure Event and shall consult together to find a mutually acceptable solution.

26.2 "Force Majeure Event" means any event due to any cause beyond the reasonable control of the Party, including, without limitation, unavailability of any communication system, sabotage, fire, flood, explosion, acts of God, civil commotion, strikes or industrial action of any kind, riots, insurrection, war or acts of government.

28. NOTICES AND COMMUNICATIONS

28.1 All notices, requests, demands, and other communications to be given under this agreement and the proposals (other than routine operational communications) shall be in writing and shall be delivered either by hand, by overnight mail, by fax, or by e-mail to the address or numbers provided hereunder or such address and numbers as one Party may inform the other in writing.

28.2 Notices sent by e-mail shall also be sent by hand, overnight mail, if not acknowledged by the receiving party within two business days. All notices shall be effective on the date received.

29. MISCELLANEOUS

29.1 Any provision of this Agreement may be amended or waived of only if, such amendment or waiver is in writing and signed, in the case of an amendment by each Party, or in the case of a waiver, it is in writing and signed by the Party against whom the waiver is to be effective.

29.2 No failure or delay by any Party in exercising any right, power or privilege hereunder shall operate as a waiver thereof nor shall any single or partial exercise of any other right, power or privilege. The rights and remedies herein provided shall be cumulative and not exclusive of any rights or remedies provided by law.

29.3 This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior written agreements, understandings and negotiations, both written and oral, between the Parties with respect to the subject matter of this Agreement. No representation, inducement,

promise, understanding, condition or warranty not set forth herein has been made or relied upon by any Party hereto. In case of any contradiction in the terms of RFP, offer document and Purchase Order etc, this Agreement and the terms hereof shall prevail.

29.4 Neither this Agreement nor any provision hereof is intended to confer upon any Person other than the Parties to this Agreement any rights or remedies hereunder.

29.5 In connection with this Agreement, as well as all transactions contemplated by this Agreement, each Party agrees to execute and deliver such additional documents and to perform such additional actions as may be necessary, appropriate or reasonably requested to carry out or evidence the transactions contemplated hereby.

29.6 The invalidity or unenforceability of any provisions of this Agreement in any jurisdiction shall not affect the validity, legality or enforceability of the remainder of this Agreement in such jurisdiction or the validity, legality or enforceability of this Agreement, including any such provision, in any other jurisdiction, it being intended that all rights and obligations of the Parties hereunder shall be enforceable to the fullest extent permitted by law.

29.7 The captions herein are included for convenience of reference only and shall be ignored in the construction or interpretation hereof.

29.8 The service provider can't assign, in whole or in part, the benefits or obligations of this Agreement to any other person without the prior written consent of BSTL. However, BSTL may assign any of its rights and obligations hereunder to any of its affiliates without the prior consent of Service Provider.

IN WITNESS WHEREOF, this Agreement has been executed by the Parties hereto on the day and year first above written.

Signed and Delivered by the within named

BSTL, by the hand of Sri -----,
Limited

For Baroda Sun Technologies

its authorized official in the presence of:

1.

2.

Signed and Delivered by the within named

_____ by the hand of Sri-----,

For _____ Systems Limited.

its authorized official in the presence of:

1.

2

Request for Proposal for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

BarodaSun Technologies Ltd.
3rd Floor, Bank of Baroda Building No. 2, Horniman Circle, Fort
Mumbai-400 001

Bid Number: GEM/2026/B/7416997
7th April 2026

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[A] Important Dates:

A	Schedule of RFP	
A.1	RFP Issuance Date	07.04.2026
A.2	Pre-Bid Meeting details	- Pre bid meeting will be held online through BSTL's Online Meeting Platform (i.e. Microsoft Teams) 15th April, 2026 at 03:00 PM. - Bidder to submit a <u>maximum of -2- participant's</u> names, contact numbers, designations and e-mail IDs on sukhapal@bstltd.co.in by 15th April, 2026 at 12:00 PM along with pre-bid queries. <u>Meeting invite Link will be sent by BSTL to bidder's provided email IDs to join the Online Meeting as per the schedule mentioned above.</u> - Bidder representatives will have to click the BSTL provided link (provided in the e-mail) to join the On-Line Pre-bid meeting.
A.3	Last Date of Submission of RFP Response (Closing Date)	28th April, 2026 : 03:00 PM on Mode: Online (on GeM Portal)
A.4	Eligibility Cum Technical Bid Opening Date	28th April, 2026: 3.30 PM
A.5	Commercial Bid	The commercial bids of only those Bidders who qualify in eligibility cum technical evaluation will be opened.
A.6	Earnest Money Deposit	Rs. 70,000/- (Seventy thousand Only). MSE / Startups will be exempted from EMD submission as per Govt. of India guidelines.
A.7	Mode of bid submission (Eligibility cum Technical as well as commercial bids)	Mode: Online on GeM Portal
A.8	Support Contact Details of GEM PORTAL	helpdesk-gem@gov.in 1800-419-3436; 1800-102-3436
A.9	RFP Coordinator details (BSTL)	Mr. Sukhapal Singh, Chief Manager (BSTL), Contact No.: 022-69964059 Email: sukhapal@bstltd.co.in Postal Address: The Chief Manager, BarodaSun Technologies Ltd. 3rd Floor, Bank of Baroda-Bldg II,

		Horniman Circle, Fort, Mumbai – 400 001
A.10	All letters must be addressed to the	MD & CEO BarodaSun Technologies Ltd. 3rd Floor, Bank of Baroda-Bldg II, Horniman Circle, Fort, Mumbai – 400 001

[B] Important Clarifications:

Following terms are used in the document interchangeably to mean:

1. Bank, BOB means 'Bank of Baroda'
2. Recipient, Respondent, Bidder, service provider, vendor means the respondent to the RFP document
3. RFP means the Request For Proposal document
4. Proposal, Bid means "Response to the RFP Document"
5. ITeS means Information Technology enabled Services
6. SLA means Service level Agreement
7. NDA means Non-Disclosure Agreement
8. GeM – Government-e-Marketplace
9. Central Vigilance Commission (CVC)
10. One Time Cost (OTC)
11. Total Cost of Ownership (TCO)
12. EMD – Earnest Money Deposit
13. Support means Support & Services to be provided as part of the Scope of Work
14. PBG -Performance Bank Guarantee
15. NPV mean Net Present Value
16. SP means Service Provider or Vendor
17. BSTL means Baroda Sun Technologies Limited

Confidentiality:

This document is meant for the specific use by the Company / person/s interested to participate in the current tendering process. This document in its entirety is subject to Copyright Laws. BSTL expects the vendors or any person acting on behalf of the vendors strictly adhere to the instructions given in the document and maintain confidentiality of information. The vendors will be held responsible for any misuse of information contained in the document, and liable to be prosecuted by BSTL In the event that such a circumstance is brought to the notice of BSTL. By downloading the document, the interested party is subject to confidentiality clauses.

1. Introduction

BarodaSun Technologies Limited, a Public company incorporated as a wholly owned subsidiary of Bank of Baroda on July 5, 2017, classified as Union government company, is registered with the Registrar of Companies, Mumbai, Maharashtra, and having its registered office at BarodaSun Tower, C-34, G-Block, Bandra Kurla Complex, Bandra Mumbai, Maharashtra, India 400051, CIN U74999MH2017GOI296962, (**hereinafter referred to as the “BSTL”**) which expression unless repugnant to the context or meaning thereof shall mean and include its successors and assigns), intends to issue this RFP document, **hereinafter called “RFP”**, to eligible Bidders, **hereafter called as ‘Bidders’**, to participate in the competitive bidding for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system for Baroda Sun Technologies Limited.

2. Project overview

This RFP document has been prepared solely for the purpose of enabling BSTL for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

BSTL, for this purpose, invites proposal from Vendors who are interested in participating in this RFP and who fulfil the eligibility criteria mentioned under **Annexure 03** and are also in a position to comply with the requirement as mentioned in Project Scope under **Annexure 01**.

Apart from the above, vendor must also agree to all the terms & conditions mentioned under this RFP. The RFP document is not recommendation, offer or invitation to enter into a contract, agreement or any other arrangement in respect of the services. The provision of the services is subject to observance of selection process and appropriate documentation being agreed between BSTL and the successful Vendor to be identified by BSTL after completion of the selection process as detailed in this document.

BSTL having its Corporate Office at 3rd Floor, Bank of Baroda Building no. 2, Horniman Circle, Mumbai, India – 400023, provides system integrator / consultancy services on matters relating to IT enabled business solutions / IT software product implementation across various lines of business for Bank of Baroda (**hereinafter referred to as “Bank”**) and for this it needs to select a Service Provider for Supply, Implementation & Maintenance of Human Resource Management system and detailed project scope is enclosed as **Annexure 01**.

3. Scope of Work

As mentioned in the **Annexure 01**

4. Contract period

BSTL shall enter into an agreement with the selected Bidder for a period starting from date of the Purchase Order till -3- years from the Go-Live Sign-off date given by BSTL

officials. The contract will be deemed completed only when all the items and services contracted by BSTL are provided in good condition, installed, implemented, tested and accepted along with the associated documentation provided to BSTL's employees; as per the requirements of the contract executed between BSTL and the Vendor. The BSTL will have the right to renegotiate these prices at the end of the contract period and BSTL can extend the contract as per BSTL's requirement.

5. Pre-Qualification for Submission of Bid

The bidders satisfying the eligibility **conditions (mentioned under Annexure 03)** and General terms and conditions specified in this document and ready to provide the said "Services" in conformity with Scope of Work stipulated in **Annexure 01**, may submit their bid through Government e-Marketplace (GeM) on or before the time line stipulated in the **[A] Important Dates**.

BSTL will not accept the bid through any other mode except GeM Portal.

6. Bid Security (Earnest Money Deposit)

Bidders are required to give an earnest money deposit of an amount at the time of submission of the bid. The proof of same is to be submitted while opening of eligibility cum technical bid, failing of which, the bid of the concerned bidder shall be rejected. Bid Security (Earnest Money Deposit)" shall be paid through electronic mode or a Bank Guarantee (**Annexure 05 – Bid Security Form**) of an equal amount issued by a Commercial Bank (other than Bank of Baroda) located in India. This Bid-security is to be valid for 8 months and is to be submitted through the electronic mode to the below mentioned account. The details of the account are as under.

- **Title of Account:** BarodaSun Technologies Limited
- **Account Number:** 03810200001921
- **Type of Account:** Current Account
- **Account Name:** Bank of Baroda
- **Branch:** Mumbai Main Office, Fort, Mumbai
- **IFSC Code:** BARB0FORTAP

Non-submission of Earnest Money Deposit in the format prescribed in RFP will lead to outright rejection of the Offer. The EMD of unsuccessful bidders will be returned to them on completion of the procurement process and no interest shall be paid on Bid Security Money provided by the vendor. The EMD (Earnest Money Deposit) of successful bidder(s) will be returned on submission of Performance Bank Guarantee / security deposit.

The amount of Earnest money deposit would be forfeited in the following scenarios:

- a. In case the bidder withdraws the bid prior to validity period of the bid for any reason whatsoever.
- b. In case of the successful bidder, if the bidder fails or refuses to accept and sign the contract as specified in this document within 1 month of issue of contract order/letter of intent for any reason whatsoever; or

- ▶ It Fails to provide the performance guarantee within 30 days from the purchase order date, for any reason whatsoever.
- ▶ If Fails to comply with any other condition precedent to signing the contract specified in the RFP documents.

a. Exemption for EMD amount:

Exemption from submission of EMD shall be given to bidders, who are Micro, Small Enterprises (MSE) / Startups. The bidders who are MSE have to submit necessary document issued by Ministry of MSME Govt of India and the bidders who are startups have to be recognized by Department for Promotion of Industry and Internal Trade (DPIIT) to avail the exemption. To qualify for EMD exemption, firms should necessarily enclose a valid copy of registration certificate issued by Ministry of MSME Govt of India / DPIIT which are valid on last date of submission of the tender documents along with "Bid Security Declaration" accepting that if they withdraw or modify their bids during period of validity etc., they will be suspended for the time specified in the tender document. MSE/Startup firms which are in the process of obtaining MSME / DPIIT certificate will not be considered for EMD exemption.

Since RFP is being floated on GeM Portal, Bid Security related exemptions as specified in clause 4, Section xiii, Sub-section 'm' of GeM GTC are applicable as the case may be.

7. Preference to make in India initiative

Government has issued Public Procurement (Preference to Make in India) [PPP-MII] Order 2017 vide the Department for Promotion of Industry and Internal Trade (DPIIT) Order No.P-45021/2/2017-B.E.-II dated 15.06.2017 (as revised and amended from time to time) to encourage 'Make in India' and to promote manufacturing and production of goods, services and works in India with a view to enhancing income and employment.

Preference will be given with the criteria laid down by Bank and as per procedures laid down in abovesaid [PPP-MII] order 2017(as revised and amended from time to time)

The guidelines under PPP-MII 2017 order and subsequent revisions/amendment as mentioned above shall be applicable subject to bidder submitting with Class-I/Class-II local content certificate for the quoted product.

In case of two or more than two bidders complying with Preference to Make in India initiative are found eligible as per scope mentioned in **Annexure-1** of the RFP, then Commercial bids of only these bidders will be opened.

In case sufficient bidders complying with Preference to Make in India initiative are not found eligible as per scope of work mentioned in Annexure-1 of the RFP, then Commercial bids of all technically eligible bidders will be opened.

8. Performance Guarantee

The successful Bidder shall provide a Performance Guarantee within 30 days from the date of receipt of the Purchase order or signing of the contract whichever is earlier in the format mentioned under **Annexure 17** to the extent of 5% of the contract value valid for the entire period of the contract plus 3 months and such other extended period as BSTL may decide for due performance of the project obligations. The guarantee should be that of a scheduled commercial bank in India only, other than Bank of Baroda.

In the event of non-performance of obligation or failure to meet terms of this RFP or subsequent agreement, BSTL shall be entitled to invoke the performance guarantee without notice or right of demur to the Bidder. Any amount pending for payment due to non-achieving of milestone/s set under the agreement or any other reason solely attributable to the Bidder should be included in the remaining amount of the contract value.

If the Performance guarantee is not submitted within the stipulated time, BSTL reserves the right to cancel the order / contract and Bid Security / Earnest Money Deposit submitted by the Bidder shall be forfeited.

9. Delivery Timeline

The Bidder should supply and implement the solution within -6- weeks from the date of acceptance of the Purchase order. The solution as per the required scope needs to be rolled out within delivery period mentioned above.

Any deliverable has not been supplied/implemented or not operational on account of which the implementation is delayed, will be deemed/treated as non-delivery thereby excluding BSTL from all payment obligations under the terms of this contract.

Bidder will have to pay late delivery charges to BSTL @ 0.1% of the Total Contract Value inclusive of all taxes, duties, levies etc., per week or part thereof, for late implementation of the Solution beyond due date of delivery, to a maximum of 5% of the overall Contract value inclusive of all taxes, duties, levies etc. beyond that BSTL reserves the right to cancel the contract.

10. Payment Terms

The bidder must accept the payment terms proposed by BSTL. The commercial bid submitted by the bidders must be in conformity with the payment terms proposed by BSTL. Any deviation from the proposed payment terms would not be accepted. BSTL shall have the right to withhold any payment due to the bidder, in case of delays or defaults on the part of the bidder. Such withholding of payment shall not amount to a default on the part of BSTL. If any of the items / activities as mentioned in the price bid is not taken up by BSTL during the assignment, BSTL will not pay the cost of such items and professional fees quoted by the bidder in the price bid against such activity / item.

The release of payment will be as follows:

The invoices for claiming the payment should be submitted along with the following

documents:

- I. Original delivery Challans and related documents dully stamped and signed by the BSTL Project Manager and vendor representative.
- II. Performance Bank Guarantee (PBG) of 5% of Contact value (As per RFP format).

a) Annual Subscription and Maintenance Cost:

100% of yearly subscription and maintenance charges plus applicable tax payable quarterly in arrears against receipt of satisfactory service report of previous quarter from the Bank's Project / Operations Manager.

b) One Time Implementation, Customization & Integration Cost:

- i. 10% Payment on submission of Performance Bank Guarantee (PBG) in accordance with RFP terms. This payment shall be released within 15 days from the date of acceptance of PBG by BSTL Officials.
- ii. 50% of Implementation, Customization & Integration Cost plus applicable tax after UAT Sign off in the form of Acceptance Test which should be signed by both BSTL's identified Project Manager & vendor representative.
- iii. 30% of Implementation, Customization & Integration Cost plus applicable tax after go-live sign off from BSTL. Go Live Sign Off in the form of Acceptance Test should be signed by both BSTL's identified Project Manager & vendor representative.
- iv. 10% of Implementation, Customization & Integration Cost plus applicable tax after Go-Live closure signoff from BSTL. Go Live Closure Sign Off in the form of Final Acceptance Test should be signed by both BSTL's identified Project Manager & vendor representative.

c) Cost of additional user licenses subscription block (Optional item):

100% of yearly subscription and maintenance charges of user license's blocks plus applicable tax payable quarterly in arrears against receipt of satisfactory service report of previous quarter from the Bank's Project / Operations Manager.

d) Man days for additional customization (Optional item):

Changes suggested by BSTL after implementation and one time customization of the system, BSTL will freeze the manpower effort, after mutual discussion with the successful vendor. Vendor need to sign scope of work for the required changes in consultation with BSTL.

For each customization requirement payable in terms of man-days effort after successful completion of the requirement. The payment milestone for each customization will be

- SOW signoff, where man-days requirement clearly mentioned, by bidder's representative and BSTL's Project Manager.
- Work completion signoff by bidder's representative and BSTL's Project Manager.

The payment will be released as per the payment terms on submission of related documents.

Note: Payment will be released on submission of unconditional signoff from BSTL Official along with original invoice after submission of PBG and signing of SLA (including an NDA by Successful Bidder).

Price mentioned in the Price Bid shall be the firm price and shall be inclusive of all taxes, duties, charges and levies etc. and all other payments/expenditures incurred or incurable in the performance of its obligations under the Purchase Order.

Penalty, if any, shall be deducted as per the penalty clause from the amount payable.

There shall be no escalation in the prices once the prices are fixed and agreed to by BSTL and the bidder. But any benefit arising out of any subsequent reduction in the prices due to reduction in duty & taxes after the prices are fixed and before the delivery should be passed on to BSTL, payments will be released as per above payment terms on submission of relevant documents. BSTL will pay invoices within a period of 30 days from the date of receipt of accepted invoices. Any dispute regarding the invoice will be communicated to vendor within 15 days from the date of receipt of the invoice. After the dispute is resolved, BSTL shall make payment within 15 days from the date the dispute stands resolved.

11.Sub - Contracting

The selected vender shall not subcontract or permit anyone other than its personnel / employee to perform any of the work, service or other performance required under this project. In case any particular specialized service as prescribed in the scope of work requires subcontracting, it need to be specified in the proposal/ response document with all the details of the work/ services. Please note that no work/services shall be subcontracted without the prior permission from BSTL in writing.

12.Service Level Agreement and Non-Disclosure Agreement

The successful bidder shall execute a) Service Level Agreement (SLA) and Non-Disclosure Agreement (NDA) (As per **Annexure 18**), which contains all the services and terms and conditions of the services to be extended as detailed herein. The successful bidder shall provide the same along with acceptance of Purchase Order.

All the expenses related to execution of the document such as the applicable stamp duty and registration charges if any, shall be borne by the successful bidder as per applicable Stamp Act.

13.Compliance with Laws

Compliance in obtaining approvals/permissions/licenses: The Bidder shall promptly and timely obtain all such consents, permissions, approvals, licenses, etc., as may be necessary or required for any of the purposes of this project or for the conduct of their own business under any applicable Law, Government Regulation/Guidelines and shall keep the same valid and in force during the term of the project. Also, the bidder shall comply with the provisions of code of wages, and other labor welfare legislations and in the event of any failure or omission to do so, bidder shall indemnify, keep indemnified, hold harmless, defend, protect and fully compensate BSTL and its employees/ officers/ staff/ personnel/ representatives/agents from and against all claims or demands of liability and all consequences that may occur or arise for any default or failure on its part to conform or comply with the above and all other statutory obligations arising there from. BSTL will give notice of any such claim or demand of liability within reasonable time to the Bidder.

The Bidder is not absolved from its responsibility of complying with the statutory obligations as specified above.

14. Termination

BSTL reserves the right to terminate this RFP at any stage without any notice or assigning any reason in the event of exceptional circumstances.

At any time during the course of the RFP process or before the award of contract or after execution of the contract if one or more terms and conditions laid down in this Request For Proposal has not been met by the bidder or the bidder has made material misrepresentation or has given any materially incorrect or false information, BSTL may terminate his contract and may invoke performance bank guarantee or forfeit the security deposit as the case may be. Further, BSTL may impose such restriction/s on the defaulting bidder as it may deem fit.

After the award of the contract, if the selected bidder does not perform satisfactorily or delays execution of the contract, BSTL reserves the right to get the balance contract executed by another party of its choice by giving one month notice for the same. In such an event, the bidder is bound to make good the additional expenditure which BSTL may have to incur for the execution of the balance of the contract.

Notwithstanding above, BSTL reserves the right to terminate this assignment or any subsequent agreement and / or any particular order, in whole or in part, without assigning any reason, by giving Service Provider at least 90 days prior notice in writing.

15. Grievance Redressal and Dispute Resolution

Any bidder who claims to have a grievance against a decision or action with regards to the provisions of this RFP may file a request to the MD&CEO Baroda Sun Technologies Ltd. at sanjeev@bstltd.co.in. It may please be noted that the grievance can be filed by only that bidder who has participated in Procurement proceedings in accordance with the provisions of this RFP. All letters must be addressed to the following:

MD&CEO
BarodaSun Technologies Ltd.

3rd Floor, Bank of Baroda-Bldg II,
Horniman Circle, Fort,
Mumbai – 400 001

16. Dispute Resolution

BSTL and the Bidder shall make every effort to resolve amicably, by direct informal negotiation between their respective project managers of, any disagreement or dispute arising between them under or in connection with this RFP.

If BSTL project manager and Bidder's project manager/ director are unable to resolve the dispute within 15 days from the commencement of such informal negotiations, they shall immediately escalate the dispute to the senior authorized personnel designated by the Bidder and BSTL respectively.

If within 15 days from the commencement of such negotiations between the senior authorized personnel, the parties are unable to resolve the dispute amicably, both parties may refer the dispute to Mediation by mutual consent before the proceedings of arbitration are resorted to as provided hereinafter. It is made clear that the said mediation shall be purely optional for both the parties.

Mediation

If both parties mutually agree to resort to/adopt the mediation process the request in writing would be made by both the parties to any recognised mediation centre at Mumbai.

Arbitration

In the event the dispute between the parties not getting resolved through the process mentioned hereinabove, all questions, disputes or differences arising under and out of, or in connection with the contract or carrying out of the work whether during the progress of the work or after the completion and whether before or after the determination, abandonment or breach of the contract shall be referred to arbitration by a sole Arbitrator acceptable to both parties OR the number of arbitrators shall be three, with each side to the dispute being entitled to appoint one arbitrator. The two arbitrators appointed by the parties shall appoint a third arbitrator who shall act as the chairman of the proceedings.

The seat and place of arbitration shall be Mumbai. The provisions of Arbitration and Conciliation Act 1996 or any statutory modification thereof shall apply to the arbitration proceedings.

The arbitral award shall be final and binding on the parties. Judgment upon the award may be entered by any court having jurisdiction thereof or having jurisdiction over the relevant Party.

17. Governing Laws

This RFP and the subsequent contract shall be governed and construed and enforced in accordance with the laws of India and both the Parties shall agree that in respect of any dispute arising upon, over or in respect of any of the terms of this RFP, only the

courts in Mumbai shall have exclusive jurisdiction to try and adjudicate such disputes to the exclusion of all other courts.

18.Prevention of Corrupt and Fraudulent Practices

Every Bidders / Suppliers / Contractors is expected to observe the highest standard of ethics during the procurement and execution of such contracts in pursuance of the policy:

- “Corrupt Practice” means the offering, giving, receiving or soliciting of anything of value to influence the action of an official in the procurement / bidding process or in contract execution AND
- “Fraudulent Practice” means a misrepresentation of facts in order to influence a procurement process or the execution of contract to the detriment of BSTL and includes collusive practice among Bidders (prior to or after bid submission) designed to establish bid prices at artificial non-competitive levels and to deprive BSTL of the benefits of free and open competition.

BSTL reserves the right to reject a proposal for award of contract to any successful bidder if it has prima facie found sufficient evidence/proof of such bidder having engaged in corrupt or fraudulent practices in competing for the contract in question.

BSTL further reserves the right to declare a firm ineligible, either indefinitely or for a stated period of time, to be awarded a contract if at any time it has prima facie found sufficient evidence/proof of such firm having engaged in corrupt or fraudulent practices in competing for or in executing the contract.

Successful vendor/Service Provider, to be selected according to the service/work/project for which this Request for proposal is invited shall comply with BSTL's / BOB's Code of Ethics which is available on BSTL's / BOB's website>Shareholder's Corner> Policies/Codes> Our Code of Ethics.

19.Information/Cyber-Security Measures/Controls for selected SP:

The Bidder and third party Service Provider need to provide an undertaking on their letter head as per **Annexure-15** to comply with the Information and cyber security controls, on an ongoing basis and regulatory / legal guidelines and directives related to SP / outsourcing issued by regulators / legal entities from time to time. The SP shall provide access to the regulators, legal authorities, BSTL and BSTL appointed auditors for on-site/off-site supervision.

Service providers have to ensure that outsourced critical IT service are subjected to the annual IT audit / Technology risk assessment process by an independent professional agency as approved by the local government or regulator at no extra cost to the BSTL.

The selected SP has to abide with all applicable Cyber Security Controls which will be part of the NDA/SLA signed with the BSTL at the time of award of contract.

20.Authorized Signatory

The selected Bidder shall indicate its authorized signatories who can discuss and correspond with BSTL, with regard to the obligations under the contract. The selected Bidder shall submit at the time of signing the contract, a certified copy of the resolution of their Board or a copy of the Power of Attorney, authenticated by Company Secretary/Director, authorizing an official or officials of the company or a Power of Attorney copy to discuss, sign agreements/contracts with BSTL. The Bidder shall furnish proof of signature identification for above purposes as required by BSTL.

21. The bid submission by related parties

If related parties (as defined below) submit more than one bid then both /all bids submitted by related parties are liable to be rejected at any stage at BSTL's discretion:

Bids submitted by holding company and its subsidiary company;

Bids submitted by two or more companies having common director/s

Bids submitted by partnership firms / LLPs having common partners

Bids submitted by companies in the same group of promoters/management

22. Technical Proposal Attention Items

- a. This RFP is not a contract offer. Receipt of a proposal neither commits BSTL to award a contract to any bidder, nor limits BSTL's rights to negotiate with any bidders, suppliers or contractors in BSTL's best interest. BSTL reserves the right to contract with any bidder, supplier or contractor at its own discretion.
- b. BSTL reserves the right to request additional information necessary and pertinent to the project so as to ensure the bidder's ability and qualification to perform the contract.
- c. Failure to answer any questions within stipulated timeline at any stage of this RFP may be considered non-responsive and the proposal may be disqualified.
- d. For any ambiguity, omissions or unclear content in the RFP, the bidders should request BSTL to clarify along with pre-bid queries within the time line mentioned in the "[A] Important Dates".
- e. For all technical details and relevant standards and specifications of this RFP that may not be stated in detail, bidders must provide quality services to BSTL.
- f. Expenses incurred in the preparation of proposals in response to this RFP are the sole responsibility of the bidders.
- g. BSTL reserves the right to accept or reject any and all proposals, or any part of any proposal, without penalty. Any allowance for oversight, omission, error, or mistake by the bidder made after receipt of the proposal will be at the sole discretion of BSTL.

23. Right to Reject Bids

BSTL reserves the absolute and unconditional right to reject the response to this RFP if it is not in accordance with its requirements and no correspondence will be entertained by BSTL in the matter. The bid is liable to be rejected if:

- It is not in conformity with the instructions mentioned in the RFP document.

- It is not accompanied by the requisite Earnest Money Deposit (EMD).
- It is not properly or duly signed.
- It is received through Telex / telegram / fax
- It is received after expiry of the due date and time.
- It is incomplete including non- furnishing of the required documents.
- It is evasive or contains incorrect information.
- There is canvassing of any kind.
- Submitted by related parties
- It is submitted anywhere other than the place mentioned in the RFP.

Further BSTL reserves the rights to:

- Reject any or all responses received in response to the RFP and also not to further process/open the commercial bids in terms of clause 7.
- Extend the time for submission of all proposals
- Cancel the RFP at any stage, without assigning any reason whatsoever.
- Visit the place of work of the bidder
- Conduct an audit of the services provided by the bidder.
- Ascertain information from BSTLs and other institutions to which the bidders have rendered their services for execution of similar projects.
- Revise any part of the tender document, by providing a written addendum at any stage till the award of the contract. BSTL reserves the right to issue revisions to this tender document at any time before the award date. The addendums, if any, shall be published on BSTL's website only.

24. General Terms and conditions

- 24.1 The RFP document is not recommendation offer to enter into a contract, agreement or any other arrangement, in respect of the services. The provision of the services is subject to observance of selection process and appropriate documentation being agreed between BSTL and any successful Bidder as identified by BSTL after completion of the selection process as detailed in this document.
- 24.2 *Information Provided:* The RFP document contains statements derived from information that is believed to be true and reliable at the date obtained but does not purport to provide all of the information that may be necessary or desirable to enable an intending contracting party to determine whether or not to enter into a contract or arrangement with BSTL in relation to the provision of services. Neither BSTL nor any of its directors, officers, employees, agents, representative, contractors, or advisers gives any representation or warranty (whether oral or written), express or implied as to the accuracy, updating or completeness of any writings, information or statement given or made in this RFP document.

- 24.3 *For Respondent Only:* The RFP document is intended solely for the information of the party to whom it is issued (“the Recipient” or “the Respondent”) and no other person or organization.
- 24.4 *Costs Borne by Respondents:* All costs and expenses (whether in terms of time or money) incurred by the Recipient / Respondent in any way associated with the development, preparation and submission of responses, including but not limited to attendance at meetings, discussions, demonstrations, etc. and providing any additional information required by BSTL, shall be borne entirely and exclusively by the Recipient / Respondent.
- 24.5 *No Legal Relationship:* No binding legal relationship will exist between any of the Recipients / Respondents and BSTL until execution of a contractual agreement to the full satisfaction of BSTL.
- 24.6 *Recipient Obligation to Inform Itself:* The Recipient must apply its own care and conduct its own investigation and analysis regarding any information contained in the RFP document and the meaning and impact of that information.
- 24.7 *Evaluation of Offers:* Each Recipient acknowledges and accepts that BSTL may, in its sole and absolute discretion, apply whatever criteria it deems appropriate in the selection of Bidder, not limited to those selection criteria set out in this RFP document.
- 24.8 The issuance of RFP document is merely an invitation to offer and must not be construed as any agreement or contract or arrangement. The bidders unconditionally acknowledges by submitting its response to this RFP document that it has not relied on any idea, information, statement, representation, or warranty given in this RFP document.
- 24.9 Acceptance of Terms: the bidders will, by responding to BSTL’s RFP document, be deemed to have accepted the terms as stated in this RFP document
- 24.10 Only one submission of response to RFP by each Respondent will be permitted.
- 24.11 BSTL expects the Bidder to adhere to the terms of this tender document and would not accept any deviations to the same.
- 24.12 BSTL expects that the Bidder appointed under the tender document shall have the single point responsibility for fulfilling all obligations and providing all deliverables and services required by BSTL.
- 24.13 Unless agreed to specifically by BSTL in writing for any changes to the issued tender document, the Bidder responses would not be incorporated automatically in the tender document.
- 24.14 BSTL will notify the Respondents in writing as soon as practicable after the RFP Evaluation Complete date, about the outcome of the RFP evaluation process, including whether the Respondent’s RFP response has been accepted or rejected or not processed further and BSTL shall not obliged to provide any reasons for such actions in writing.
- 24.15 All responses received after the due date/time as mentioned in “[A] Important Dates- Last Date of Submission of RFP Response (Closing Date)” would be considered late and would be liable to be rejected. E procurement portal will not

allow the lodgement of RFP response after the deadline. It should be clearly noted that BSTL has no obligation to accept or act on any reason for a late submitted response to RFP. BSTL has no liability to any Respondent who lodges a late RFP response for any reason whatsoever, including RFP responses taken to be late only because of another condition of responding.

- 24.16 BSTL has established RFP coordinators to provide a venue for managing bidder relationship and other requirements through BSTL's decision making body for contract clarification. All the queries and communication must be addressed to the RFP coordinators / contact persons from BSTL mentioned in "[A] Important Dates - RFP Coordinator"
- 24.17 Recipients are required to direct all communications for any clarification related to this RFP, to RFP Coordinator.
- 24.18 All questions relating to the RFP, technical or otherwise, must be in writing and addressed to the addresses given in point "[A] Important Dates" above. Interpersonal communications will not be entered into, and a Respondent will be disqualified if attempting to enter into such communications. BSTL will try to reply, without any obligation in respect thereof, every reasonable question raised by the Respondents in the manner specified.
- 24.19 However, BSTL may in its absolute discretion seek, but shall be under no obligation to seek, additional information or material from any Respondents after the RFP closes and all such information and material provided must be taken to form part of that Respondent's response.
- 24.20 Respondents should invariably provide details of their email address (as) as responses to queries will only be provided to the Respondent via email. If BSTL in its sole and absolute discretion deems that the originator of the query will gain an advantage by a response to a question, then BSTL reserves the right to communicate such response to all Respondents.
- 24.21 BSTL may in its absolute discretion engage in discussion or negotiation with any Respondent (or simultaneously with more than one Respondent) after the RFP closes to improve or clarify any response.
- 24.22 Bidder should submit their Eligibility Cum Technical and Commercial bids through online GeM / e-procurement portal. The bidder must register for submission of their bid as specified in this document.
- 24.23 All submissions, including any accompanying documents, will become the property of BSTL. The bidder shall be deemed to have licensed, and granted all rights to, BSTL to reproduce the whole or any portion of their submission for the purpose of evaluation, to disclose the contents of the submission to other bidders who have registered a submission and to disclose and/or use the contents of the submission as the basis for any resulting RFP process, notwithstanding any copyright or other intellectual property right of the Recipient that may subsist in the submission or accompanying documents
- 24.24 All responses should be in English language. All responses by the bidder to this tender document shall be binding on such bidder for a period of 180 days after opening of the bids.

- 24.25 The bidder may modify or withdraw its offer after submission but prior to the closing date and time as prescribed by BSTL. No offer can be modified or withdrawn by the bidder subsequent to the closing date and time for submission of the offers.
- 24.26 The bidders are required to quote for all the components/services mentioned in the “Project scope” and all other requirements of this RFP. In case the bidder does not quote for any of the components/services, the response would be deemed to include the quote for such unquoted components/service. It is mandatory to submit the details in the formats provided along with this document duly filled in, along with the offer. BSTL reserves the right not to allow / permit changes in the technical specifications and not to evaluate the offer in case of non-submission of the technical details in the required format or partial submission of technical details.
- 24.27 Based on BSTL’s requirements as listed in this document, the bidder should identify the best-suited product / solution that would meet BSTL’s requirements and quote for the same. In case the bidder quotes more than one model and they have not specified which particular model quoted by them needs to be considered, then the response would be considered as improper and the whole tender submitted by the Bidder is liable to be rejected. The Bidder is expected to provide the best option and quote for the same.
- 24.28 In the event the bidder has not quoted for any mandatory items as required by BSTL and forming a part of the tender document circulated to the Bidder’s and responded to by the bidder, the same will be deemed to be provided by the bidder at no extra cost to BSTL.
- 24.29 BSTL is not responsible for any assumptions or judgments made by the bidder for proposing the deliverables. BSTL’s interpretation will be final.
- 24.30 BSTL ascertains and concludes that everything as mentioned in the tender documents circulated to the Bidder and responded by the Bidder have been quoted for by the Bidder, and there will be no extra cost associated with the same in case the Bidder has not quoted for the same.
- 24.31 All out of pocket expenses, traveling, boarding and lodging expenses shall not be payable by BSTL to bidder. No extra costs on account of any items or services or by way of any out of pocket expenses, including travel, boarding and lodging etc. will be payable by BSTL. The Bidder cannot take the plea of omitting any charges or costs and later lodge a claim on BSTL for the same.
- 24.32 Responses to this RFP should not be construed as an obligation on the part of BSTL to award a contract / purchase contract for any services or combination of services. Failure of BSTL to select a bidder shall not result in any claim whatsoever against BSTL. BSTL reserves the right to reject any or all bids in part or in full, without assigning any reason whatsoever.
- 24.33 By submitting a proposal, the bidder agrees to contract with BSTL within the time period prescribed by BSTL. Failure on the part of the successful bidder to execute an agreement with BSTL will relieve BSTL of any obligation to the bidder, and a different bidder may be selected based on the selection process.

- 24.34 The terms and conditions as specified in the RFP and addendums (if any) thereafter are final and binding on the bidders. In the event the bidder is not willing to accept the terms and conditions of BSTL, the bidder may be disqualified. Any additional or different terms and conditions proposed by the bidder would be rejected unless expressly assented to in writing by BSTL and accepted by BSTL in writing
- 24.35 The bidder shall represent and acknowledge to BSTL that it possesses necessary experience, expertise and ability to undertake and fulfill its obligations, involved in the performance of the provisions of this RFP. The bidder represents that the proposal to be submitted in response to this RFP shall meet the proposed RFP requirement. If any services, functions or responsibilities not specifically described in this RFP are an inherent, necessary or customary part of the deliverables or services and are required for proper performance or provision of the deliverables or services in accordance with this RFP, they shall be deemed to be included within the scope of the deliverables or services, as if such services, functions or responsibilities were specifically required and described in this RFP and shall be provided by the bidder at no additional cost to BSTL. The bidder also acknowledges that BSTL relies on this statement of fact, therefore neither accepting responsibility for, nor relieving the bidder of responsibility for the performance of all provisions and terms and conditions of this RFP, BSTL expects the bidder to fulfill all the terms and conditions of this RFP.
- 24.36 The bidder covenants and represents to BSTL the following:
- ▶ It is duly incorporated, validly existing and in good standing under as per the laws of the state in which the entity is incorporated.
 - ▶ It has the corporate power and authority to enter into Agreements and perform its obligations there under.
- 24.37 The execution, delivery and performance under an Agreement by bidder:
- ▶ Will not violate or contravene any provision of its documents of incorporation;
 - ▶ Will not violate or contravene any law, statute, rule, regulation, licensing requirement, order, writ, injunction or decree of any court, governmental instrumentality or other regulatory, governmental or public body, agency or authority by which it is bound or by which any of its properties or assets are bound;
 - ▶ Except to the extent that the same have been duly and properly completed or obtained, will not require any filing with, or permit, consent or approval of or license from, or the giving of any notice to, any court, governmental instrumentality or other regulatory, governmental or public body, agency or authority, joint venture party, or any other entity or person whatsoever;
- 24.38 The bidder shall undertake to provide appropriate human as well as other resources required, to execute the various tasks assigned as part of the project, from time to time.

- 24.39 BSTL would not assume any expenses incurred by the bidder in preparation of the response to this RFP and also would not return the bid documents to the Bidders.
- 24.40 BSTL will not bear any costs incurred by the bidder for any discussion, presentation, demonstrations etc. on proposals or proposed contract or for any work performed in connection therewith.
- 24.41 BSTL reserves the right to extend the dates for submission of responses to this document.
- 24.42 *Preliminary Scrutiny* – BSTL will scrutinize the offers to determine whether they are complete, whether any errors have been made in the offer, whether required documentation has been furnished, whether the documents have been properly signed, and whether items are quoted as per the schedule. BSTL may, at its discretion, waive any minor non-conformity or any minor deficiency in an offer. This shall be binding on all bidders and BSTL reserves the right for such waivers and BSTL's decision in the matter will be final.
- 24.43 *Clarification of Offers* – To assist in the scrutiny, evaluation and comparison of offers, BSTL may, at its discretion, ask some or all bidders for clarification of their offer. BSTL has the right to disqualify the bidder whose clarification is found not suitable to the proposed project.
- 24.44 *No Commitment to Accept Lowest bid or Any Tender* – BSTL shall be under no obligation to accept the lowest price bid or any other offer received in response to this Tender notice and shall be entitled to reject any or all offers including those received late or incomplete offers without assigning any reason whatsoever. BSTL reserves the right to make any changes in the terms and conditions of procurements. BSTL will not be obliged to meet and have discussions with any Bidder, and / or to listen to any representations unless there is change in the terms and conditions of purchase
- 24.45 *Erasures or Alterations* – The offers containing erasures or alterations will not be considered. There should be no hand-written material, corrections or alterations in the offer. Technical details must be completely filled up. Correct information of the services being offered must be filled in. Filling up of the information using terms such as "OK", "accepted", "noted", "as given in brochure / manual" is not acceptable. BSTL may treat the offers not adhering to these guidelines as unacceptable.
- 24.46 *Price Discussion* – It is absolutely essential for the Bidders to quote the lowest price at the time of making the offer in their own interest. BSTL reserves the right to do price discovery and engage the successful bidder in discussions on the prices quoted.
- 24.47 If BSTL is not satisfied with the specifications as specified in the tender document and observes major deviations, the bids of such bidders will not be short-listed for further evaluation. No further discussions shall be entertained with such bidders in respect of the subject bid.
- 24.48 The Bidder shall perform its obligations under this Tender as an independent contractor, and shall not engage subcontractors to perform any of the

Deliverables or Services without the prior permission from BSTL. Neither this Tender nor the Bidder's performance of obligations under this Tender shall create an association, partnership, joint venture, or relationship of principal and agent, master and servant, or employer and employee, between BSTL and the Bidder or its employees, subcontractor; and neither Party shall have the right, power or authority (whether expressed or implied) to enter into or assume any duty or obligation on behalf of the other Party.

- 24.49 The Bidder shall solely be responsible for all payments (including any statutory payments) to its employees and / or sub-contractors and shall ensure that at no time shall its employees, personnel or agents hold themselves out as employees or agents of BSTL, nor seek to be treated as employees of BSTL for any purpose, including claims of entitlement to fringe benefits provided by BSTL, or for any kind of income or benefits. The Bidder alone shall file all applicable tax returns for all of its personnel assigned hereunder in a manner consistent with its status as an independent contractor of services; and the Bidder will make all required payments and deposits of taxes in a timely manner.
- 24.50 Successful Vendor/Service Provider/Supplier/ Consultant/Contractor, who will be selected according to the service/work/project for which the proposal or quotation is invited shall comply with BOB's / BSTL's Code of Ethics which is available on BOB's / BSTL's website>Shareholder's Corner> Policies/Codes> Our Code of Ethics and a clause to this effect shall be included in the agreement/contract.
- 24.51 Service Provider shall provide Police verification report of all the resources deployed (if any) on the BSTL project on the BSTL's premises within 1 month from the date of on boarding on the project. For subsequent deployment of resources during the contract period, on boarding of the resource to be done preferably after police verification, however not later than 1 month from the date of on boarding.

25. Information Confidentiality

This document is meant for the specific use by the Company / person/s interested to participate in the current tendering process. This document in its entirety is subject to copyright laws. BarodaSun Technologies Limited expects the bidders or any person acting on behalf of the bidders to strictly adhere to the instructions given in the document and maintain confidentiality of information. The Bidders will be held responsible for any misuse of the information contained in the document and liable to be prosecuted by BSTL, in the event of such circumstances being brought to the notice of BSTL. By downloading the document, the interested party is subject to confidentiality clauses.

26. Disclaimer

Subject to any law to the contrary, and to the maximum extent permitted by law, BSTL and its directors, officers, employees, contractors, representatives, agents, and advisors disclaim all liability from any loss, claim, expense (including, without limitation, any legal fees, costs, charges, demands, actions, liabilities, expenses or

disbursements incurred therein or incidental thereto) or damage, (whether foreseeable or not) ("Losses") suffered by any person acting on or refraining from acting because of any presumptions or information (whether oral or written and whether express or implied), including forecasts, statements, estimates, or projections contained in this RFP document or conduct ancillary to it whether or not the Losses arises in connection with any ignorance, negligence, inattention, casualness, disregard, omission, default, lack of care, immature information, falsification or misrepresentation on the part of BSTL or any of its directors, officers, employees, contractors, representatives, agents, or advisers.

Annexure 01 – Project Details (Scope of Work)

1. Broad Scope of work:

BarodaSun Technologies Limited (“BSTL” or “the Company”), a public sector technology services company, proposes to select a Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

BSTL for this purpose, invites proposal from prospective bidders. Bidder who is interested in participating in this RFP must fulfil the eligibility criteria mentioned in the RFP and also in a position to comply with the Scope of Work in the document to provide the required solution. Apart from above the bidder must also agree to all our terms & conditions mentioned under this RFP.

The proposed Human Resource Management System (HRMS) solution should be aligned with, but not limited to, the following key features and technical and functional capabilities:

1. Employee Database Management

1.1 Digital Employee Records & Document Repository: The system should store complete digital records of every employee, including appointment letters, ID proofs, certificates, and HR documents.

1.2 Core HRMS (Organization, People, Job data, Position, Job, Contact, Dependents) & Employee Enrolment: The system should manage all Job Data actions, including person profiles, personal information, biodata, positions etc. It should have functionality to enroll and maintain complete official records such as name, employee ID, date of joining, photo, and update history. The system should have functionality to create category i.e. Department, Designation, Division, Projects, Grade, Locality etc and also generate employee, EC No., biodata and generic employee lists.

1.3 Personal Details Management: The system should capture address, contact details, emergency contacts, family information, qualifications, skills, and bank details with change history.

1.4 Alerts and Notifications: Systematic alerts and notifications in form of emails to employees and HR/administrative department to update documents, profile completion, pending updates, etc.

1.5 Multiple Employee Categories: The system should support input and storage of data for different categories of employees viz Regular, Contractual, and Deputed staff with relevant information fields.

1.6 Organization Development: The system should enable creation and management of departments, locations, positions, and job codes. It should

maintain the organizational structure, hierarchy mapping , workflow mapping and reporting relationships.

2. Attendance & Leave Management

2.1 Biometric/Digital Attendance Integration: The system should integrate with biometric or digital attendance systems to mark attendance of the employee, which will have functionality to capture thumb impression, IRIS etc. as approved by Government of India, Government of Maharashtra.

2.2 Office Hours & Holiday Calendar: Maintain office timings, weekly offs, and annual holiday list.

2.3 Attendance & Leave Reports: There should be functionality to generate daily, monthly, and yearly attendance summaries and leave details.

2.4 Leave Rules Configuration & Approvals: Creates master BSTL leave rules, allows online leave application. Approval Level Creation to manage leave process. Paperless functionality for leave Application by the employees and approval by their managers with effect to automatic leave ledger update.

2.5 Real-Time Attendance Dashboard & Timesheet: Shows live attendance status, late marks, early exits. There should be provision for timesheet entries for employees as per projects. Allow attendance punching with In /Out daily, monthly, yearly reports.

2.6 Attendance Management: Defines rules for work-from-home, half-day, late marking, deductions etc as per BSTL's attendance / leave rules.

3. Payroll, Compensation and Reimbursement & Claims

3.1 CTC Structure & Salary Master: The system should manage employee salary components and structure.

3.2 Payroll Processing & Statutory Deductions: The system should have provision for automated payroll processing, tax deductions (TDS, PF, ESI etc). The system should be integrated with accounting/finance systems, leave details and attendance master for automatic salary calculations and arrears calculations.

3.3 Investment Declarations & Tax Computation: Allows uploading tax-proof documents and calculating monthly TDS.

3.4 Salary Slips & Disbursement: Generates payslips and maintains historical salary records.

3.5 Arrears & Adjustment Reports: Supports arrear calculations and related reporting.

3.6 Claims & Reimbursements – The HRMS should allow employees to submit claims including TA / DA claims and reimbursement requests as per their eligibility and policy guidelines. The system should support upload of required documents, route requests through an approval workflow, and automatically integrate approved claims with the payroll or payment system for timely settlement. It should have provision to mark members on leave and reroute claims selectively. It should also maintain a complete record of all claims with an audit trail.

4. Employee Self Service & Manager Self Service

4.1 Web and mobile application for employees and managers.

4.2 Employee Self-Service: Employees can apply for leave, view payslips, update data, etc.

4.3 Manager Self-Service: Managers can approve leave, monitor attendance, and access reports.

4.4 Notifications: Sends alerts for approvals and pending tasks.

5. Performance Management

5.1 Goal Setting & KPI Tracking: The system should enable creation and tracking of KPIs and goals.

5.2 Appraisal Cycles & Feedback: The system should support Appraisals cycles, feedback mechanism and process performance-linked pay.

6. Recruitment & Onboarding

6.1 Job Requisition & Posting: Allows managers to raise hiring requests and HR to post jobs.

6.2 Applicant Tracking System (ATS) & Candidate Tracking: Manages online applications, candidate tracking system, shortlisting, and selection stages.

6.3 Interview Scheduling & Selection: Supports scheduling, feedback, and offer letter generation.

6.4 Onboarding Workflow: Handles document uploads, verification, and employee code generation.

7. Separation & Exit Management

7.1 Resignation Submission: Employees can submit resignations online or on other separation reasons viz. Demise, Dismissal, etc, the system should follow the exit process fully automated through workflow including requisite clearances.

7.2 Exit Forms & Clearances: System manages digital exit forms and no-dues processes.

7.3 Notice Period & Shortfall Calculation: The system should automatically calculate the notice period, shortfall days with systematic notification / alerts.

7.4 Full & Final Settlement: The system should automatically compute all dues and recoveries and calculation of full and final settlement.

7.5 Exit Interviews: Records exit feedback.

8. Analytics & Reports

8.1 HR Dashboards: Displays headcount, attendance, attrition, leave usage, etc.

8.2 The system should have ability to generate reports / MIS from system as and when required. The system should provide flexibility in choosing different headers for generating various reports.

9. Intimation / Permission:

9.1 Employee Intimation and Permission module. The system should have provision for employee to request for different types of Intimation / Permission.

10. Confirmation Process:

10.1 The system should generate the list of employees to be confirmed, automatic workflow with escalation features. On confirmation the record should be updated automatically in job data.

11. Notice Board / Circulars / Intimation

11.1 The system should have provision for Notice board / Circulars / Intimation tool – where Admin can post notices/ circulars / letters / communication etc to the target audience.

12. Full and Final Settlement

12.1 Full and Final Settlement of employees separating from BSTL and calculation of tax. The FnF should also display any pending dues of the employee. Payment of F&F records and reconciliation.

13. Technical Requirements

- Web-based and mobile-enabled architecture
- Cloud-based deployment.
- High availability, scalability, and disaster recovery support.
- Role-based access control and data security as per prevailing standards.
- Compatibility with modern browsers and operating systems.

14. Training (Offline / Online)

- User training for HR, IT, and administrative staff
- Preparation of user manuals and training materials
- Post-implementation support and capacity building

15. Support and Maintenance

- Comprehensive warranty and AMC support post go-live
- Helpdesk support (email, ticketing, remote assistance)
- Periodic upgrades, patches, and system performance reviews

2. BSTL's Project Technical and Functional Requirements:

The Bidder should submit the compliance strictly in the following format for below mentioned Functional and Technical Specification/requirement. All the Technical and Functional Specification are mandatory and need to be developed during implementation phase if not readily available. The compliance must be given for each point. No Deviation will be accepted. The necessary documents and Certificates should be submitted.

Total Marking will **40 Marks** and accordingly bidder's marks will be calculated as part of Technical Bid Evaluation.

SN	Mandatory Requirement	Readily Available- 1 Marks (Y/N)	Customizable – 0.5 Marks (Y/N)	Marks
	Functional Module:			
A	Employee database management			
1	There should be functionality to create category i.e. Department, Designation, Division, Projects, Grade, Locality etc.			

2	Systematic alerts and notifications in form of emails to employees and HR/administrative department to update documents of an employee.			
3	The system should have provisions for maintaining required details of different categories of employees viz. Contractual Employee, Regular employees etc. The system should have provision for the Organization structure and hierarchy mapping of all employees.			
B	Attendance and Leave Management			
4	Approval Level Creation for Paperless functionality for leave Application of the employee.			
5	Real-time attendance dashboards & Timesheet			
C	Payroll, Compensation and Reimbursement & Claims			
6	Payroll processing, tax deductions (TDS, PF, ESI, etc.) Arrears calculations. Integration with accounting/finance systems, leave details and attendance master for automatic salary calculations.			
D	Performance Management:			
7	Appraisal cycles and feedback mechanisms and processing performance linked pay.			
E	Recruitment and Onboarding			
8	Online application and candidate tracking system (ATS)			
F	Employee Self-Service (ESS) & Manager Self-Service (MSS)			
9	Web and mobile portals for employees and managers			
G	Separation and Exit Management			

10	Auto calculation for notice period, shortfall days with systematic notification / alerts. Update employee leaving or resignation detail. Calculation of full and final settlement			
H	Analytics and Reports			
11	Pre-built dashboards (attendance, hiring, payroll, compliance, performance).			
12	Custom report builder with filters, grouping, and export options (Excel/PDF/CSV).			
13	Automated scheduled reports (daily, weekly, monthly, Yearly).			
14	Support for advanced analytics/BI tool integration.			
Technical Requirement:				
I	System Architecture Requirements			
15	The HRMS shall be cloud-based (SaaS) with multi-tenant or dedicated architecture.			
16	The solution must support modular deployment for all functional modules i.e. Employee Database, Attendance, Leave, Payroll, Recruitment, Performance etc.			
17	The system shall provide secure web and mobile access through modern browsers and mobile applications (Android & iOS).			
18	The system shall include REST APIs / Webhooks for third-party integrations.			
J	Integration Requirements			
19	Internal Integration: The HRMS shall integrate with the organisation's existing systems, including but not limited to: • Identity Management – Office 365 ERP / Finance systems (Tally) • Email systems (Microsoft Outlook)			

20	External Integration: • Recruitment portals and job boards • Statutory compliance systems (PF, ESI, PT, LWF, Income Tax) • Data export/import through CSV, Excel, JSON, or API			
K	Data & Storage Requirements			
21	Centralised employee master database with customizable fields.			
22	Secure storage of documents (Aadhaar, PAN, certificates, contracts).			
23	Support for bulk data upload & migration.			
24	Maintain comprehensive audit logs for HRMS system access and changes.			
25	Ability to define data residency/location as per organisational or legal requirements.			
26	Configurable data retention policies.			
L	User Access & Security Requirements			
27	The system must support Role-Based Access Control (RBAC) with granular permission levels.			
28	Multi-Factor Authentication (MFA) shall be supported.			
29	SSO support through SAML, OAuth 2.0, or enterprise identity providers.			
30	IP restrictions and geo-restrictions shall be configurable.			
31	Sensitive data must be encrypted at rest and in transit (minimum TLS 1.2).			
32	Secure employee self-service (ESS) and manager self-service portals.			
M	Workflow & Automation Requirements			
33	Configurable multi-level workflows for onboarding, leaves, transfers, separations.			

34	Automated email/SMS/in-app notifications for tasks and approvals.			
35	Workflow escalation rules (time-based or hierarchy-based).			
36	Policy-based rule engine for: • Leave & attendance rules • Holiday calendars • Shift management • Overtime calculations			
37	Custom triggers for data updates (e.g., auto leave accruals, status changes).			
O	Mobile Application Requirements			
38	Works on Android & iOS (latest 2 OS versions) Lightweight app (<50MB recommended)			
39	Push notifications for approvals and tasks must be available.			
40	Mobile app security must match web standards (MFA, encrypted storage).			

Feature Status	Short form	Remarks
Readily Available	RA	The feature is already supported and included in the solution (1 Marks shall be allotted)
Customization	CU	Can be developed / customized and delivered along with the Solution, prior to implementation at no extra cost. (0.5 Marks shall be allotted)

Please Note – Bidder need to provide all the feature as part of the proposal. It should be demonstrated as mentioned by bidder in their technical proposal as “Readily Available (RA)” / Customizable (CU). During Demonstration all the features will be evaluated by BSTL based on the response provided by the bidder. If any of the required features are not demonstrated but the same feature has been mentioned as “Readily Available (RA)” as part of Technical Scoring Sheet, then the same shall be changed to “Customizable (CU)” in the Functional and Technical Scoring Sheet after due confirmation from the bidder.

3. Implementation & Customization

Bidder may require doing some customization in existing module of their software to meet the requirement of BSLT which should be cover as part of implementation. The system should provide Confidentiality, Integrity, Authentication and Non-Repudiation as per current standard (Signing, Hashing, Time-stamping and Encryption).

Bidder as part of the implementation phase shall have to provide a comprehensive hands-on online / Offline training to BSTL officials at the location prescribed by the BSTL. The objective of training would be to make an individual familiarise with solution

& to get start working on it. The training shall cover the complete process. The successful completion of the training would be deemed as executed as part of acceptance of Project Sign off.

After successful completion of the implementation phase, Bidder is liable to provide Offline / onsite training to BSTL when required during the contract period. There will not be any cost borne by BSTL for any training.

All out of pocket expenses, traveling, boarding and lodging expenses for the entire life of the contract should be a part of the commercial bid submitted by the vendor to the BSTL. No extra costs on account of any items or services or by way of any out of pocket expenses, including travel, boarding and lodging etc. will be payable by BSTL. The vendor cannot take the plea of omitting any charges or costs and later lodge a claim on the BSTL for the same.

The vendor have to arrange for customization if required in the system to meet the changes suggested by CVC/ RBI/ Govt. of India/ regulatory authorities/BSTL towards compliance without any additional cost during the contract period

However, if any changes suggested by BSTL after implementation and one time customization of the system, BSTL will freeze the manpower effort, after mutual discussion with the successful vendor.

Vendor need to freeze and sign SOW (scope of work) for customization required by BSTL on mutual discussion as a payment milestone.

4. Data Segregation and Security Audits:

BSTL's data should be completely segregated within the Cloud environment. The vendor has to submit CERT-IN empanelled auditor confirmation on BSTL's data segregation controls complying to the regulatory norms.

5. Vulnerability Assessment and Penetration Testing (VAPT):

The Vendor shall conduct quarterly vulnerability assessments (VA) on the Cloud application and its underlying infrastructure.

In addition to the above vulnerability assessments, the Vendor shall conduct Yearly comprehensive Penetration Testing (PT) on the Cloud application and its underlying infrastructure.

The Vendor shall provide to the BSTL with a detailed compliance report outlining the findings of the vulnerability assessments and Penetration Testing, including identified vulnerabilities, the associated risk level, and the remediation.

However, Bidder must support if BSTL wants to conduct the above assessment through its technical vendor as and when need arises.

6. Data Migration:

In the event of any future migration of data, the Service Provider will provide complete access and support to the BSTL. BSTL will decide migration approach. There will not be any commercial attach with the activity.

7. Data Deletion Upon Contract Termination:

Upon the conclusion or termination of this Agreement, the Vendor shall securely remove, delete, and purge all data related to the Project from the cloud environment and the vendor has to submit confirmation to the BSTL.

Annexure 02 Guidelines for bid submission details

Bidders shall mandatorily upload following documents signed / digitally signed by their authorized representative.

S #	Section Heading	Performa Given
1.	Bid Evaluation Terms compliance	Annexure 03
2.	Declaration / undertaking from bidder regarding applicability of restrictions on procurement from a bidder	Annexure 03A
3.	Bid Security (Earnest Money Deposit)	Bidder to provide Transaction Details as per Annexure 04 OR Bank Guarantee as per Annexure 05. OR For Micro & Small Enterprises (MSEs) / Startups "Bid Security Declaration - As Per Annexure 04A
4.	Letter of Undertaking from the Bidder	Annexure 06
5.	Conformity Letter from Bidder	Annexure 08
6.	Undertaking of Information Security (Bidder & OSD)	Annexure 09
7.	Letter of Undertaking from OEM / OSD	Annexure 10
8.	Technical Proposal: Bidder to provide Project proposal with detailed execution plan and compliance of Project scope of work.	Bidder to provide
9.	Copy of the tender document along with annexures and addendum duly sealed and signed on all the pages of the document / digitally signed tender document.	Bidder to provide (signed /Digitally signed documents from authorized representative of bidder)
10.	Masked price bid (Please note that the masked price bid should be exact reflection of the commercial bid except that the masked price bid <u>should not contain any financial information</u>)	Annexure 11

S #	Section Heading	Performa Given
11.	Letter of authorization from the company authorizing the person to sign the tender response and related documents.	Bidder to provide
12.	A certified copy of the Board Resolution or a Power of Attorney, authenticated by Company Secretary/Director, authorizing an official/s of the company to discuss, sign agreements/contracts with BSTL.	Bidder to provide
13.	Declaration/ undertaking from bidder to comply with the Information and cyber security controls.	Annexure 15
14.	Undertaking Compliance with MeitY Data Localization and Certification Requirements.	Annexure 16
15.	Service Level And Non-Disclosure Agreement Format (without Stamp duty) from Bidder	Annexure 18
Commercial Bid should be strictly as per Commercial bid format (Annexure 12). Any commercial bid submitted not in conformity with Annexure 12 and provided along with the Eligibility cum Technical bid, then whole bid will be rejected outright.		

1. Guidelines

1.1. Support Details for GeM Portal:

Support details of Online Portal facilitator	helpdesk-gem@gov.in 1800-419-3436; 1800-102-3436
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1.2. Downloading of Tender Document

The tender document is uploaded / released on GeM Portal. Tender document and supporting documents may be downloaded from same link. Subsequently, bid has to be prepared and submitted ONLINE ONLY as per the schedule given in Notice Details. The Tender document will be available online only. Tender document will not be sold / issued manually.

Only those tender shall be accepted for evaluation for which Earnest Money Deposit (EMD) is deposited as per the terms mentioned in this RFP.

1.3. Preparation & Submission of Bids

The bids (Pre-Qualification, Eligibility, Technical as well as Commercial) shall have to be prepared and subsequently submitted online only. Bids not submitted "ONLINE" or by any other mean shall be summarily rejected. No other form of submission shall be permitted.

1.4. Do's and Don'ts for Bidder

- ▶ Registration process for new Bidders should be completed within first week of release of tender.

- ▶ The GeM Portal is open for upload of documents from the start of the bid submission date. Hence bidders are advised to start the process of upload of bid documents well in advance.
- ▶ Bidders have to prepare for submission of their bid documents online well in advance as
 - The encrypt/upload process of soft copy of the bid documents large in number to the portal may take longer time depending upon bidder's infrastructure and connectivity.
 - To avoid last minute rush & technical difficulties faced by bidders in uploading/submission of bids, bidders are required to start the uploading of all the required documents -01- week in advance for timely online submission of bid.
- ▶ Bidders to initiate uploading of few primary documents during the start of the tender submission and any request for help/support required for uploading the documents / understanding the system should be taken up with GeM authorities well in advance.
- ▶ Bidders should not raise request for extension of time on the last day of submission due to non-submission of their bids on time as BSTL will not be in a position to provide any support at the last minute as the portal is managed by GeM authorities.
- ▶ Bidder should not raise request for offline submission or late submission since ONLINE submission is accepted only.
- ▶ Partly or incomplete submission of bids by the bidders will not be processed and will be summarily rejected.

Annexure 03 – Bid Evaluation Terms

1. Evaluation process

There would be a two-stage evaluation process for the selection of vendor.

- ▶ Stage 1 – Eligibility Cum Technical Bid Evaluation
- ▶ Stage 2 – Commercial Bid Evaluation

During evaluation of the Tenders, BSTL, at its discretion, may ask the Bidder for clarification in respect of its tender. The request for clarification and the response shall be in writing, and no change in the substance of the tender shall be sought, offered, or permitted. BSTL reserves the right to accept or reject any tender in whole or in parts without assigning any reason thereof. The decision of BSTL shall be final and binding on all the Bidders to this document and BSTL will not entertain any correspondence in this regard.

A. Eligibility cum Technical Bid Evaluation

Eligibility criterion for the bidder to qualify this stage is clearly mentioned below. The Bidder would need to provide valid supporting documents as part of the eligibility proof. All dates, if not specified, to be applicable from the date of the RFP.

S No	Eligibility Criteria	Complied (Yes/No)	Supporting Documents Required
A	General		
1	The bidder should be either a Government Organization / PSU / PSE / partnership firm / LLP or private / public limited company in India at least for the last 5 years (as on RFP date).		Documentary Proof to be attached (Certificate of Incorporation)
2	The bidder must not be blacklisted / debarred by any Statutory, Regulatory or Government Authorities or Public Sector Undertakings (PSUs / PSBs) within last 2 years from the RFP date.		Letter of confirmation (self-certified letter signed by authorized official of the bidder)
3	The bidder is not from such a country which shares a land border with India, in terms of the said amendments to GFR, 2017. OR		Undertaking as per Annexure 3A and copy of certificate of valid registration with the Competent Authority (If applicable) (signed /Digitally signed

S No	Eligibility Criteria	Complied (Yes/No)	Supporting Documents Required
	The bidder is from such a country and has been registered with the Competent Authority i.e. the Registration Committee constituted by the Department for Promotion of Industry and Internal Trade, as stated under Annexure I to the said Office Memorandum / Order and we submit the proof of such registration .		documents from authorized representative of bidder.
4	The bidder to provide undertaking that any of its subsidiary or associate or holding company or companies having common director/s or companies in the same group of promoters/management or partnership firms/LLPs having common partners has not participated in the bid process.		Letter of undertaking (self-certified letter signed by authorized official of the bidder)
5	The bidder to provide an undertaking that all the technical requirements highlighted as part of Technical Scope are covered in totality in the proposal submitted by them.		Letter of confirmation (self-certified letter signed by authorized official of the bidder)
B	Financial		
1	The Bidder must have registered an average annual turnover of Rs. 80 Lakhs or above during the last three completed financial years – 2022-23, 2023-24 and 2024-25*.		Audited Financial statements for the financial years 2022-23, 2023-24 and 2024-25*. Certified letter from the Chartered Accountant clearly mentioning Turnover, Net Profit and Net worth. The CA certificate in this regard should be without any riders or qualification.

S No	Eligibility Criteria	Complied (Yes/No)	Supporting Documents Required
2	The Bidder must be net profit-making entity continuously for the last three financial years – 2022-23, 2023-24 and 2024-25* OR The net worth of the Bidder should be positive as on RFP date and should not have eroded by more than 30% in the last three years.		Audited Financial statements for the financial years 2022-23, 2023-24 and 2024-25*. Certified letter from the Chartered Accountant (CA) clearly mentioning Turnover, Net Profit (After Tax) and Net worth. The CA certificate in this regard should be without any riders or qualification.
* If 2024-25 Financial Statements of any bidder is unaudited, then Financial statements for 2021-22, 2022-23 and 2023-24 will be considered, along with an undertaking letter from the bidder that FY 2024-25 statements are not audited. In this scenario Audited Financial statements for the financial year 2021-22, 2022-23 and 2023-24 are to be submitted.			
C	Technical		
1	The bidder should be an OSD or their authorized partner of OSD for supply of licenses and solution implementation and maintenance support under warranty / AMC / ATS for the proposed HRMS solution in India at least from last three years from the RFP date.		Letter of confirmation from OSD needs to be submitted.
2	If OSD is bidding directly they cannot submit another bid with any Partner/bidder.		Letter of confirmation from OSD in case OSD is bidding directly
3	One bidder can bid only with one OSD and similarly one OSD can bid with only one bidder.		Letter of confirmation from the vendor and OSD
D	Experience & Support Infrastructure		

S No	Eligibility Criteria	Complied (Yes/No)	Supporting Documents Required
1	The bidder should not be under the category of Non-Performing Asset (NPA) with any bank or financial institution at the time of submission of the bid.		Letter of undertaking (self-certified letter signed by authorized official of the bidder)
2	Bidder should not be debarred by Bank of Baroda or its subsidiary.		Letter of undertaking (self-certified letter signed by authorized official of the bidder)
3	The proposed Human Resource Management System (HRMS) should have been supplied, implemented and maintained in at least -3- Financial Institution / ITeS / BFSI sector in last 5 years in India, having employee strength of at least 300.		copy of work order/letter of award for each assignment and undertaking to be furnished by the bidder along with successful implementation confirmation from concerned organization.
4	The Bidder should have processing/cloud setup of both primary and disaster recovery centre in India and business continuation plan in place as per best practices of industry for restoration of Services.		Bidder undertaking and a copy of either of the following documents: 1. Certificate from Auditing agency. OR 2. Certificate from the cloud service provider.
5	The Bidder should be ISO / IEC 27001:2022 certified for Information Security, cybersecurity and privacy protection.		Copy of the valid certificates.

Note: In case the bidding company / firm is hived off from the demerged company, the experience, eligibility etc. as per the requirement of the RFP may be considered as of the demerged company, provided the demerged company doesn't apply in the same RFP process and Novation / Other Relevant Agreement is in place. In that case, Relevant Novation / Other Relevant Agreement need to be submitted.

The technical bids of only those bidders who qualify the above-mentioned eligibility criteria will be evaluated. The Technical Proposal will be evaluated for technical suitability as per Annexure 1.

B. Technical Bid Evaluation

The vendor needs to achieve a cut – off score of 70 marks in this evaluation stage to be qualified for commercial bid opening. Only those vendors who achieve the specified cut – off scores would be short-listed for Commercial Bid opening. The Technical Proposal will be evaluated for technical suitability and the criteria for evaluation of technical bids are as under:

Criteria	Evaluation Parameters	Sub Scores
The number of Implementations carried out in India in Financial Institution / ITeS / BFSI sector in the last 5 years. <i>(Documentary proof: copy of work order/letter of award for each assignment to be furnished by the bidder along with successful implementation confirmation from concerned organization).</i>	For each Implementation 4 marks (Max 5 implementation)	20
Functional & Technical Specifications compliance as part of Scope of Work Annexure 1	As per Functional & Technical specification Requirement Given in Annexure 1.	40
Technical Presentation on Proposed Solution by the Bidder	Technical presentation will be evaluated on the following parameters: 1. Proposed Solution and IT architecture, approach & methodology. 2. Level of compliance, data privacy and Security Features and report generation. 3. Support & Escalation Process. 4. User Interface and Reports generation. 5. Configurable capability.	30

Product Demo Vendor is requested to demonstrate additional unique/ futuristic features, if any, offered by the product.	Demonstration of in-depth understanding of the BSTL's project technical and functional requirements. Major Criteria for demonstration (but not limited to) given in Annexure 1.	10
TOTAL MARKS		100

In case there is only one vendor having technical score of 70 or more, BSTL may, at its sole discretion, also consider the next highest technical score and qualify such vendor. In case, none of the participating vendors qualify on technical criteria and reach or exceed the cut-off score of 70, then BSTL, at its sole discretion, may qualify two vendors on the basis of the top 2 scores. However, BSTL at its discretion may reject the proposal of the Vendor or will not consider vendor below cutoff marks by relaxing as mentioned above, if in BSTL's opinion the Vendor could not present or demonstrate the proposed services/projects as described in the proposal or in case the responses received from the customer contacts / site visited are negative or the proposed solution does not meet BSTL's functional and technical requirement.

C. Commercial Bid Evaluation

The commercial bids of only those bidders who qualify in both eligibility and technical evaluation will be opened. The provision of Make in India preferences would be considered while opening and finalizing of bid as provided in this RFP. The commercial bids submitted by Bidders will be evaluated based on discounted total cost of ownership. The discount rate will be used @ 10%. The key considerations of the TCO would be the total payouts for entire project through the contract period, discounted at 10% to arrive at the present value of the future cash outflows. Accordingly, the L1 (Lowest Bidder) would be arrived at. The calculation performed by BSTL in this regard is as follows:

- The discounted rate will be calculated on yearly basis based on the formula $A/(1+i/100)^n$ where A= Total Value in each Year; i=10% and n =Year.
- The Present Value will be calculated for all components where the payment is recurring year on year. The Present Value for the component will start from the year of purchase of that component / start of the services (AMC) and shall be calculated till the end year of the contract. Further n - number of period will be '0' in the year of purchase of that component / start of the services and subsequently increased by 1 for subsequent years.

Any component / service for which the payment is a One Time Cost the NPV cost of the equipment / service for that year will be considered and the relevant year's NPV cost will be added as part of Present Value calculation for that year. Further the

payment of the OTC component / services is not recurring in nature hence the present value for that component / services will be considered in the year of purchase only and not in subsequent years.

The decision of BSTL shall be final and binding on all the bidders to this document. BSTL reserves the right to accept or reject an offer without assigning any reason whatsoever. The bidder is expected not to add any conditions / deviations in the commercial bid. Any such conditions / deviations may make the bid liable for disqualification.

The proposal of L1 (Lowest quote) bidder shall be recommended for award of contract.

2. Commercial Bids Terms

In the event BSTL has not asked for any quotes for alternative prices, and the bidder furnishes the alternative price in the Bidder's financial bid, the higher of the prices will be taken for calculating and arriving at the Total Cost of Ownership. However, payment by BSTL will be made at the lower price. BSTL in this case may also reject the offer outright.

In the event optional prices are not quoted by the bidder, for items where such prices are a must and required to be quoted for, the highest price quoted by any of the participating Bidder will be taken as the costs, for such alternatives and also for arriving at the Total Cost of Ownership for the purpose of evaluation of the Bidder. The same item has to be supplied by the Bidder free of cost.

The bidder is requested to quote in Indian Rupee (INR). Bids in currencies other than INR would not be considered. The date for opening of price bids would be communicated separately to the successful bidders post the completion of the technical evaluation (If bid opening takes place through BSTL' eProcurement portal).

The prices and other terms offered by bidders must be firm for an acceptance period of 180 days from the opening of the commercial bid.

In case of any variation (upward or down ward) in Government levies / taxes / cess / duties etc. which has been included as part of the price will be borne by the bidder. Variation would also include the introduction of any new tax / cess/ duty, etc., provided that the benefit or burden of other taxes quoted separately as part of the commercial bid like GST and any taxes introduced instead of GST and levies associated to GST or any new taxes introduced after the submission of bidder's proposal shall be passed on or adjusted to BSTL. If the Bidder makes any conditional or vague offers, without conforming to these guidelines, BSTL will treat the prices quoted as in conformity with these guidelines and proceed accordingly. Necessary documentary evidence should be produced for having paid any tax/cess/duty, if applicable, and/or other applicable levies.

If any Tax authorities of any state, including, Local authorities like Corporation, Municipality etc. or any Government authority or Statutory or autonomous or such other authority imposes any tax, charge or levy or any cess / charge other than GST and if BSTL has to pay the same for any of the items or supplies made here under by

the bidder, for any reason including the delay or failure or inability of the bidder to make payment for the same, BSTL has to be reimbursed such amounts paid, on being intimated to the Bidder along with the documentary evidence. If the Bidder does not reimburse the amount within a fortnight, BSTL shall adjust the amount out of the payments due to the Bidder from BSTL along with the interest calculated at commercial rate.

Terms of payment as indicated in the Purchase Contract that will be issued by BSTL to the selected Bidder will be final and binding on the bidder and no interest will be payable by BSTL on outstanding amounts under any circumstances. If there are any clauses in the Invoice contrary to the terms of the Purchase Contract, the bidder should give a declaration on the face of the Invoice or by a separate letter explicitly stating as follows "Clauses, if any contained in the Invoice which are contrary to the terms contained in the Purchase Contract will not hold good against BSTL and that the Invoice would be governed by the terms contained in the Contract concluded between BSTL and the bidder".

BSTL is not responsible for any assumptions or judgments made by the bidder for arriving at any type of costing. BSTL at all times will benchmark the performance of the bidder to the RFP and other documents circulated to the bidder and the expected service levels as mentioned in these documents. In the event of any deviations from the requirements of these documents, the bidder must make good the same at no extra costs to BSTL, in order to achieve the desired service levels as well as meeting the requirements of these documents. BSTL shall not be responsible for any assumptions made by the bidder and BSTL's interpretation will be final.

The Commercial Offer should give all relevant price information and should not contradict the Technical Offer in any manner. There should be no hidden costs for items quoted.

BSTL is not responsible for the arithmetical accuracy of the bid. The bidders will have to ensure all calculations are accurate. BSTL at any point in time for reasons whatsoever is not responsible for any assumptions made by the Bidder. BSTL at a later date will not accept any plea of the bidder or changes in the commercial offer for any such assumptions.

Considering the enormity of the assignment, any service which forms a part of the Project Scope that is not explicitly mentioned in scope of work as excluded would form part of this RFP, and the Bidder is expected to provide the same at no additional cost to BSTL. The Bidder needs to consider and envisage all services that would be required in the Scope and ensure the same is delivered to BSTL. BSTL will not accept any plea of the Bidder at a later date for omission of services on the pretext that the same was not explicitly mentioned in the RFP.

3. Price Comparisons

The successful bidder will be determined on the basis of bid evaluation process as mentioned under Evaluation Criteria in this RFP document.

Normalization of bids: BSTL will go through a process of evaluation and normalization of the bids to the extent possible and feasible to ensure that bidders are more or less on the same ground of evaluation. After the normalization process, if BSTL feels that any of the bids needs to be normalized and that such normalization has a bearing on the price bids; BSTL may at its discretion ask all the shortlisted bidders to resubmit the commercial bids once again for scrutiny. BSTL can repeat this normalization process at every stage of bid submission or till BSTL is satisfied. The bidders agree that they have no reservation or objection to the normalization process and all the bidders will, by responding to this RFP, agree to participate in the normalization process and extend their co-operation to BSTL during this process. The bidders, by submitting the response to this RFP, agree to the process and conditions of the normalization process.

The Price offer shall be on a fixed price basis. Bid submitted with an adjustable price quotation will be treated as non-responsive and will be liable to be rejected. The rate quoted by the bidder should necessarily include the following:

Prices quoted by the Bidder should be inclusive of all taxes, duties, levies, GST etc. The Bidder shall provide the GST amount in the commercial bids (without amounts being submitted in the technical response). There will be no price escalation during the contract period and any extension thereof.

The Bidders are expected to provide details of services which are required to be extended by the Bidder in accordance with the terms and conditions of the contract.

The Bidder must provide and quote for the required product and services as desired by BSTL as mentioned in this RFP. Any product or services not proposed to be provided by the Bidder will result in the proposal being incomplete, which may lead to disqualification of the Bidder.

Annexure 03A – Declaration/ undertaking from bidder regarding applicability of restrictions on procurement from a bidder of a country which shares a land border with India as per the order no. 6/18/2019-PPD dated 23rd July 2020 issued by Ministry of finance department of expenditure

(This letter should be on the letterhead of the Bidder duly signed by an authorized signatory)

To
MD & CEO
BarodaSun Technologies Ltd.
3rd Floor, Bank of Baroda-Bldg II,
Horniman Circle, Fort,
Mumbai – 400 001

Sir,

We, M/s ----- are a private/public limited company/LLP/Firm ~~<strike off whichever is not applicable>~~ incorporated under the provisions of the Companies Act, 1956/2013 Limited Liability Partnership Act 2008/ Indian Partnership Act 1932, having our registered office at ----- (referred to as the “Bidder”) are desirous of participating in the Tender Process in response to your captioned RFP and in this connection we hereby declare, confirm and agree as under:

We, the Bidder have read and understood the contents of the RFP and Office Memorandum & the Order (Public Procurement No.1) both bearing no. F.No.6/18/2019/PPD of 23rd July 2020 issued by Ministry of Finance, Government of India on insertion of Rule 144 (xi) in the General Financial Rules (GFRs) 2017 and the amendments & clarifications thereto, regarding restrictions on availing/procurement of goods and services, of any Bidder from a country which shares a land border with India and / or sub-contracting to contractors from such countries.

In terms of the above and after having gone through the said amendments including in particular the words defined therein (which shall have the same meaning for the purpose of this Declaration cum Undertaking), we the Bidder hereby declare and confirm that:

(Please strike off whichever is not applicable)

1. “I/ we have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India / ToT arrangement in sensitive technologies with an entity having beneficial ownership from a country which shares a land border with India; I/ we certify that _____ is not from such a country.”

OR

2. “I/ we have read the clause regarding restrictions on procurement / ToT

arrangement in sensitive technologies with an entity having beneficial ownership from a country which shares a land border with India from a bidder of a country which shares a land border with India; I/ we certify that _____ is from such a country. I hereby certify that _____ fulfills all requirements in this regard and is eligible to be considered. [Valid registration by the Competent Authority is attached.]”

In case the work awarded to us, I/ we undertake that I/ we shall not subcontract any of assigned work under this engagement without the prior permission of BSTL.

Further we undertake that I/we have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India and on sub-contracting to contractors from such countries; I certify that our subcontractor is not from such a country or, if from such a country, has been registered with the Competent Authority and will not sub-contract any work to a contractor from such countries unless such contractor is registered with the Competent Authority. I hereby certify that our subcontractor fulfills all requirements in this regard and is eligible to be considered. [Valid registration by the Competent Authority is attached herewith.]”

We, hereby confirm that we fulfill all the eligibility criteria as per the office memorandum/ order mentioned above and RFP and we are eligible to participate in the Tender process.

We also agree and accept that if our declaration and confirmation is found to be false at any point of time including after awarding the contract, BSTL shall be within its right to forthwith terminate the contract/ bid without notice to us and initiate such action including legal action in accordance with law. BSTL shall also be within its right to forfeit the security deposits/ earnest money provided by us and also recover from us the loss and damages sustained by BSTL on account of the above.

This declaration cum undertaking is executed by us or through our Authorized person, after having read and understood the terms of RFP and the Office Memorandum and Order.

Dated this.....by20

Yours faithfully,

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone #

List of documents enclosed:

1. Copy of certificate of valid registration with the Competent Authority (strike off if not applicable)

Annexure 04 – Bid Security Letter

To
MD & CEO
BarodaSun Technologies Ltd.
3rd Floor, Bank of Baroda-Bldg II,
Horniman Circle, Fort,
Mumbai – 400 001

Sir,

Sub: RFP for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

We having our registered office at (herein after called the 'BIDDER') are offering Earnest Money Deposit as per details below for consideration of the bid of the above mentioned Bidder.

Amount: Rs. _____ /- (Rupees _____ Only)

Mode: Online Transfer/Bank Guarantee

Payment Type: RTGS (Real Time Gross Settlement) / NEFT (National Electronics Fund Transfer)/ /Bank Guarantee

UTR / Txn ref. No. _____

Txn Date: _____

Remitting Bank: _____

Remitting Bank IFSC Code: _____

Beneficiary Account: BarodaSun Technologies Limited, Bank Account No. 03810200001921

Beneficiary Bank IFSC Code: BARB0FORTAP.

The details of the transaction viz. scanned copy of the receipt of making transaction or Bank Guarantee or Micro & Small Enterprises (MSEs) / Startups Certificate (if EMD not applicable) to be enclosed.

BSTL at its discretion, may reject the bid if the EMD money doesn't reflect in beneficiary account or BG not received as per details furnished above.

Account Details for refund of Bid Security (Earnest Money Deposit) as per terms & conditions mentioned in the Tender document.

We having our registered office at (herein after called the 'BIDDER') are providing our bank account details as per below to be considered as our account for refund of Bid Security (Earnest Money Deposit), wherever applicable as per terms & conditions mentioned in the Tender document.

RFP for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

A/C Name:

A/C No. (Company account details):

IFSC Code:

Bank Name:

Bank Address:

The details mentioned above is treated as final & BSTL shall not be held responsible for any wrong/failed transaction due to any discrepancy in above details.

Dated this.....by20

Yours faithfully,

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone #

Annexure 04A – Bid Security Declaration Form
(For Micro and Small Enterprises (MSE) / Startups)

To
MD & CEO
BarodaSun Technologies Ltd.
3rd Floor, Bank of Baroda-Bldg II,
Horniman Circle, Fort,
Mumbai – 400 001

Sir,

Sub: RFP for selection of Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

1. I/We, the undersigned, declare that M/s.....is a Micro and Small Enterprise and the copy of registration certificate issued by NSIC/DIPP for Micro & Small Enterprises (MSEs) / Startups which are valid on last date of submission of the tender documents are enclosed.
2. I/We understand that, according to your conditions, bids must be supported by a Bid Securing Declaration as per Rule 170 of General Financial Rules (GFRs) 2017 by Micro & Small Enterprises (MSEs).

OR

- 2A. As per the tender / RFP no:floated for at para no: a Bid Declaration Form in lieu of Bid Security is required to be submitted by me/ as per Rule 170 of General Financial Rules (GFRs) 2017 by Micro & Small Enterprises (MSEs).
3. I/We accept that I/We may be disqualified from bidding for any contract with you for a period of 6 months from the date of notification if I am /We are in a breach of any obligation under the bid conditions, because I/We
 - a) have withdrawn/modified/amended, impairs or derogates from the tender, my/our Bid during the period of bid validity specified in the form of Bid; or
 - b) having been notified of the acceptance of our Bid by the purchaser during the period of bid validity (i) fail or reuse to execute the contract, if required, or (ii) fail or refuse to furnish the Performance Security, in accordance with the Instructions to Bidders.
 4. I/We understand this Bid Securing Declaration shall cease to be valid if I am/we are not the successful Bidder, upon the earlier of (i) the receipt of your notification of the name of the successful Bidder; or (ii) thirty days after the expiration of the validity of my/our Bid.

5. I/We declare that I am the authorized person ofto make the declaration for and on behalf of Letter of Authority for executing declaration is enclosed

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone #

Signed: (insert signature of person whose name and capacity are shown)

in the capacity of : (insert legal capacity of person signing the Bid Securing Declaration)

Name: (insert complete name of person signing the Bid Securing Declaration)

Duly authorized to sign the bid for and on behalf of (insert complete name of Bidder)

Dated on _____ day of _____ (insert date of signing)
Corporate Seal (where appropriate)

(Note: in case of a Joint Venture, the Bid Securing Declaration must be in the name of all partners to the Joint Venture that submits the Bid)

Annexure 05 – Bid Security Form (Bank Guarantee)

(Pro forma for Bank Guarantee in lieu of EMD)

To
MD & CEO
BarodaSun Technologies Ltd.
3rd Floor, Bank of Baroda-Bldg II,
Horniman Circle, Fort,
Mumbai – 400 001

Dear Sir,

WHEREAS.....(Company Name) registered under the Indian Companies Act 1956 and having its Registered Office at India (hereinafter referred to as “the VENDOR”) proposes to offer its response to Bid No.. #: (RFP details) (hereinafter called the “RFP”)

AND WHEREAS, in terms of the conditions as stipulated in the RFP, the VENDOR is required to furnish a Bank Guarantee in lieu of the Earnest Money Deposit (EMD), issued by a Scheduled Commercial Bank in India in your favour to secure the order of the RFP in accordance with the RFP Document (which guarantee is hereinafter called as “BANK GUARANTEE”)

AND WHEREAS the VENDOR has approached us, for providing BSTL GUARANTEE.

AND WHEREAS at the request of the VENDOR and in consideration of the proposed RFP response to you, WE,.....having.....
... Office at....., India has agreed to issue Bank GUARANTEE.

THEREFORE, WE,, through our local office at India furnish you Bank GUARANTEE in manner hereinafter contained and agree with you as follows:

1. We....., undertake to pay the amounts due and payable under this Guarantee without any demur, merely on demand from you and undertake to indemnify you and keep you indemnified from time to time to the extent of Rs.....(Rupeesonly) an amount equivalent to the EMD against any loss or damage caused to or suffered by or that may be caused to or suffered by you on account of any breach or breaches on the part of the vender . any of the terms and conditions contained in the RFP and in the event of the VENDOR commits default or defaults in carrying out any of the work or discharging any obligation in relation thereto under the RFP or otherwise in the observance and

performance of any of the terms and conditions relating thereto in accordance with the true intent and meaning thereof, we shall forthwith on demand pay to you such sum or sums not exceeding the sum of Rs.....(Rupees..... only) as may be claimed by you on account of breach on the part of the VENDOR of their obligations in terms of the RFP.

2. Notwithstanding anything to the contrary contained herein or elsewhere, we agree that your decision as to whether the VENDOR has committed any such default or defaults and the amount or amounts to which you are entitled by reasons thereof will be binding on us and we shall not be entitled to ask you to establish your claim or claims under Bank Guarantee but will pay the same forthwith on your demand without any protest or demur.
3. This Bank Guarantee shall continue and hold good until it is released by you on the application by the VENDOR after expiry of the relative guarantee period of the RFP and after the VENDOR had discharged all his obligations under the RFP and produced a certificate of due completion of work under the said RFP and submitted a "No Demand Certificate "provided always that the guarantee shall in no event remain in force after the day of without prejudice to your claim or claims arisen and demanded from or otherwise notified to us in writing before the expiry of the said date which will be enforceable against us notwithstanding that the same is or are enforced after the said date.
4. Should it be necessary to extend Bank Guarantee on account of any reason whatsoever, we undertake to extend the period of Bank Guarantee on your request under intimation to the VENDOR till such time as may be required by you. Your decision in this respect shall be final and binding on us.
5. You will have the fullest liberty without affecting Bank Guarantee from time to time to vary any of the terms and conditions of the RFP or extend the time of performance of the RFP or to postpone any time or from time to time any of your rights or powers against the VENDOR and either to enforce or forbear to enforce any of the terms and conditions of the said RFP and we shall not be released from our liability under Bank Guarantee by exercise of your liberty with reference to matters aforesaid or by reason of any time being given to the VENDOR or any other forbearance, act or omission on your part of or any indulgence by you to the VENDOR or by any variation or modification of the RFP or any other act, matter or things whatsoever which under law relating to sureties, would but for the provisions hereof have the effect of so releasing us from our liability hereunder provided always that nothing herein contained will enlarge our liability hereunder beyond the limit of Rs.....(Rupees.....only) as aforesaid or extend the period of the guarantee beyond the said day of unless expressly agreed to by us in writing.
6. Bank Guarantee shall not in any way be affected by your taking or giving up any securities from the VENDOR or any other person, firm or company on its behalf or by the winding up, dissolution, insolvency or death as the case may be of the VENDOR.

7. In order to give full effect to the guarantee herein contained, you shall be entitled to act as if we were your principal debtors in respect of all your claims against the VENDOR hereby guaranteed by us as aforesaid and we hereby expressly waive all our rights of surety ship and other rights, if any, which are in any way inconsistent with any of the provisions of Bank Guarantee.
8. Subject to the maximum limit of our liability as aforesaid, Bank Guarantee will cover all your claim or claims against the VENDOR from time to time arising out of or in relation to the said RFP and in respect of which your claim in writing is lodged on us before expiry of Bank Guarantee.
9. Any notice by way of demand or otherwise hereunder may be sent by courier, e-mail or registered post to our local address as aforesaid and if sent accordingly it shall be deemed to have been given when the same has been posted.
10. Bank Guarantee and the powers and provisions herein contained are in addition to and not by way of limitation of or substitution for any other guarantee or guarantees here before given to you by us (whether jointly with others or alone) and now existing un-cancelled and that Bank Guarantee is not intended to and shall not revoke or limit such guarantee or guarantees.
11. Bank Guarantee shall not be affected by any change in the constitution of the Vendor or us nor shall it be affected by any change in your constitution or by any amalgamation or absorption thereof or therewith but will ensure to the benefit of and be available to and be enforceable by the absorbing or amalgamated company or concern.
12. Bank Guarantee shall come into force from the date of its execution and shall not be revoked by us any time during its currency without your previous consent in writing.
13. We further agree and undertake to pay you the amount demanded by you in writing irrespective of any dispute or controversy between you and the VENDOR.
14. Notwithstanding anything contained herein above;
 - i) our liability under this Guarantee shall not exceed Rs.....(Rupees.....only) ;
 - ii) This Bank Guarantee shall be valid up to and including the date and
 - iii) We are liable to pay the guaranteed amount or any part thereof under this Bank Guarantee only and only if you serve upon us a written claim or demand on or before the expiry of this guarantee.
15. We have the power to issue this Bank Guarantee in your favour under the Memorandum and Articles of Association of our Bank and the undersigned has full power to execute this Bank Guarantee under the Power of Attorney issued by Bank.

For and on behalf of

Branch Manager

Seal & Address

Annexure 06 – Undertaking from the Bidder

To
MD & CEO
BarodaSun Technologies Ltd.
3rd Floor, Bank of Baroda-Bldg II,
Horniman Circle, Fort,
Mumbai – 400 001

Sir,

Sub: RFP for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

1. Having examined the Tender Documents including all Annexures and Appendices, the receipt of which is hereby duly acknowledged, we, the undersigned offer to deliver all the deliverables mentioned in the 'Request for Proposal' and the other schedules of requirements and services for BSTL in conformity with the said Tender Documents in accordance with the schedule of Prices indicated in the Price Bid and made part of this Tender.
2. If our Bid is accepted, we undertake to comply with the delivery schedule as mentioned in the Tender Document.
3. Masked Commercial Bid (Annexure 11) and Commercial Bid (Annexure 12) both have been submitted as per format mentioned under this RFP document without any deviation.
4. We agree to abide by this Tender Offer for 180 days from date of bid opening and our Offer shall remain binding on us and may be accepted by BSTL any time before expiry of the offer.
5. This Bid, together with your written acceptance thereof and your notification of award, shall constitute a binding Contract between us.
6. a) We undertake that in competing for and if the award is made to us, in executing the subject Contract, we will strictly observe the laws against fraud and corruption in force in India namely "Prevention of Corruption Act 1988".
(b) Commission or gratuities, if any paid or to be paid by us to agents relating to this Bid and to Contract execution, if we are awarded the Contract are listed below.
 - i. Name and Address of the Agent -(please specify NA if not applicable)
 - ii. Amount and Currency in which Commission paid / payable -(please specify NA if not applicable)

- iii. Purpose of payment of Commission (If commission is not paid / not payable indicate the same here) -(please specify NA if not applicable)
7. We agree that BSTL is not bound to accept the lowest or any Bid BSTL may receive.
8. We certify that we have provided all the information requested by BSTL in the format requested for. We also understand that BSTL has the exclusive right to reject this offer in case BSTL is of the opinion that the required information is not provided or is provided in a different format.

Dated this.....by20

Yours faithfully,

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address:

Email and Phone #

Annexure 07 – Pre-Bid Queries Form

(Please note that **all pre-bid queried need to be send by email in excel format only**)

[Please provide your comments on the Terms & conditions in this section. You are requested to categorize your comments under appropriate headings such as those pertaining to the Scope of work, Approach, Work plan, Personnel schedule, Curriculum Vitae, Experience in related projects etc. You are also requested to provide a reference of the page number, state the clarification point and the comment/suggestion/ deviation that you propose as shown below.]

Name of the Respondent:

Contact Person from Respondent in case of need.

Name :

Tel No:

e-Mail ID:

Sr. No.	Page #	Point / Section #	Category (Eligibility/Scope/Commercial/Legal/General)	Clarification point as stated in the tender document	Comment/ Suggestion/ Deviation
1					
2					
3					
4					
5					
6					

Authorized Signatory

Name:

Designation:

Vendor's Corporate Name:

Address:

Email and Phone:

Date:

Annexure 08 – Conformity Letter

(This letter should be on the letterhead of the Bidder duly signed by an authorized signatory)

To
MD & CEO
BarodaSun Technologies Ltd.
3rd Floor, Bank of Baroda-Bldg II,
Horniman Circle, Fort,
Mumbai – 400 001

Sir,

Sub: RFP for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

Further to our proposal dated, in response to the Request for Proposal.....(BSTL's tender No. hereinafter referred to as "RFP") issued by BarodaSun Technologies Limited ("BSTL") we hereby covenant, warrant and confirm as follows:

We hereby agree to comply with all the terms and conditions / stipulations as contained in the RFP and the related addendums and other documents including the changes made to the original tender documents issued by BSTL shall form a valid and binding part of the aforesaid RFP document. BSTL is not bound by any other extraneous matters or deviations, even if mentioned by us elsewhere either in our proposal or any subsequent deviations sought by us, whether orally or in writing, and BSTL's decision not to accept any such extraneous conditions and deviations will be final and binding on us.

Yours faithfully,

Authorized Signatory

Name:

Designation:

Vendor's Corporate Name:

Address:

Email and Phone:

Date:

Annexure 09–Undertaking of Information Security

***(This letter should be on the letterhead of the Bidder as well as the OEM/ OSD
duly signed by an authorized signatory on Information security as per
regulatory requirement***

To

MD & CEO

BarodaSun Technologies Ltd.

3rd Floor, Bank of Baroda-Bldg II,

Horniman Circle, Fort,

Mumbai – 400 001

Sir,

Sub: RFP for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

We hereby undertake that the proposed hardware / software to be supplied will be free of malware, free of any obvious bugs and free of any covert channels in the code (of the version of the application being delivered as well as any subsequent versions/modifications done)

Further we undertake that the Software/ hardware and Services which will be delivered or provided under this Agreement are not infringe any IPR such as patent, utility model, industrial design, copyright, trade secret, mask work or trade mark.

Dated this.....by20

Yours faithfully,

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone

Annexure 10 - Letter of Undertaking from OEM / OSD

(This letter should be on the letterhead of the OEM / Manufacturer duly signed by an authorized signatory)

To

MD & CEO

BarodaSun Technologies Ltd.

3rd Floor, Bank of Baroda-Bldg II,

Horniman Circle, Fort,

Mumbai – 400 001

Dear Sir,

Sub: RFP for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

We (Name of the OSD / OEM) who are established and reputable manufacturers / developers of having factories at, and do hereby authorize M/s (who is the Bidder submitting its bid pursuant to the Request for Proposal issued by BSTL) to submit a Bid and negotiate and conclude a contract with you for supply of which are manufactured / developed by us against the Request for Proposal received from your Company by the Bidder and we have duly authorized the Bidder for this purpose.

We undertake to perform the obligations as set out in the RFP in respect of such services and hereby extend our support and services through M/s..... during the 3 year contract period as per terms and conditions of the RFP.

We assure you that in the event of M/s not being able to fulfill its obligation as M/s Bidder in respect of the terms defined in the RFP, (OEM / OSD Name) would continue to meet these either directly or through alternate arrangements without any additional cost to the BSTL.

Yours faithfully,

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone

Annexure 11 – Masked Commercial Bid

Amount (Rs.)								
Sl. No.	Items	OTC (One Time Cost)	Y1	Y2	Y 3	Total Amount without GST	GST Amount	TOTAL Amount Including GST
			AMT	AMT	AMT	AMT	AMT	AMT
a.	Subscription and Maintenance cost (50 no. of Users licenses) as per Scope of Work.	X	0.00	0.00	0.00	0.00	0.00	0.00
b.	One Time Implementation, Customization & Integration Cost*	0.00	X	X	X	0.00	0.00	0.00
Optional item**								
c.	Additional Licenses subscription cost for 5 block (1 block = 10 users) (including implementation and maintenance cost for further period) *** Note: Bidder need to cost for 5 blocks of "10 user license in each block" for each year.	X	0.00	0.00	0.00	0.00	0.00	0.00
d.	20 Man days per year for additional customization #	X	0.00	0.00	0.00	0.00	0.00	0.00
Total Cost of Ownership (TCO) for the period of 3 years						0.00	0.00	0.00

*One time Charges towards Implementation, Customization & Integration of Solution as per BSTL's and regulatory requirement.

**BSTL has discretion to avail the optional items services against the commercial provided. BSTL has discretion to mark these line items under optional item, if BSTL feels these items are not mandatory for the project. Cost of optional item's services will be consider for TCO calculation purpose however BSTL will place order for these optional items at BSTL's discretion as per requirement.

*** For this line item, bidder has to quote for 5 blocks for each year. 1 block will consist of 10 quantities of user licenses. The amount quoted in every year shall include license Subscription cost + implementation cost + maintenance cost for remaining duration of contract.

BSTL shall have the discretion to avail services for additional customization during the contract period, with payment to be made based on actual usage. The per man-day cost will be determined by dividing the total amount quoted for each year by 20, and this same

calculation method shall apply for any efforts exceeding 20 man-days in a given year throughout the contract period.

The license subscription cost shall be inclusive of carrying out any modifications changes / upgrades to the application and other software or equipment that is required to be made in order to comply with any statutory or regulatory requirements or any industry-wide changes (including any changes suggested in VAPT observations) arising during the subsistence of the contract / agreement, and the BSTL shall not pay any additional cost for the same.

We abide by following terms and conditions:

- a. TCO must be quoted in Indian Rupee (INR) only and should be inclusive of all taxes, duties, levies, GST etc.
- b. All Quoted Commercial Values should comprise of values only up to 2 decimal places. BSTL for evaluation purpose will consider values only up to 2 decimal places for all calculations & ignore all figures beyond 2 decimal places.
- c. If the cost for any line item is indicated as zero then it will be assumed by the Bank that the said item is provided to the Bank without any cost.
- d. All Deliverables to be supplied as per RFP requirements provided in the tender. The Service Charges need to include all services and other requirement as mentioned in the RFP.
- e. The vendor has to make sure all the arithmetical calculations are accurate. Bank will not be held responsible for any incorrect calculations however for the purpose of calculation Bank will take the corrected figures / cost.
- f. Any extra services if required for fulfilling the scope, the bidder is required to factor the same in above mentioned line items only. Vendor to factor all its expenses like travelling, boarding, lodging etc. Apart from amount specified in commercial bid, no other expenses will be paid by BSTL. The Bidder needs to clearly indicate if there are any recurring costs included in the above bid and quantify the same. In the absence of this, the Bidder would need to provide the same without any additional charge.
- g. There shall be no price escalation during the contract period and any extension thereof. Bid submitted with an adjustable price quotation will be treated as non-responsive and will be rejected.
- h. All the payments will be released as per the payment schedule mentioned on submission of invoice along with all supporting documents signed by BSTL Officials. BSTL will deduct applicable TDS, if any, as per the law of the land.
- i. BSTL reserves the right to disqualify the Bidder in case of any deviation observed in the commercial Bid.
- j. Commercial quote signed is final.

We hereby undertake to comply with the secrecy provision pursuant to provision of regulations and acts regarding secrecy and other applicable laws. Further, we confirm that we will abide by all the terms and conditions mentioned above & in the tender document.

Authorized Signatory

Name:

Designation:

Vendor's Corporate Name

Annexure 12 – Commercial Bid
Amount (Rs.)

BarodaSun Technologies Limited								
Commercial Bid - Annexure - 12								
Name of Work		Request for Proposal for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system, BID NO: XXXXXXXXXX Dated xx.04.2026						
Name of Bidder								
Please ensure that Commercial bid is not uploaded with the document of Eligibility cum Technical bid. In case any commercial details are found in the eligibility cum technical bid document set, entire bid is liable to be rejected. Please note, Commercial bid will be opened only during commercial bid evaluation in second stage. The Bidder shall quote the Prices in the format mentioned above. Prices to be filled in yellow colour boxes only (in commercial excel sheet) and nothing to be inserted in boxes where X is mentioned								
Sl. No.	Items	OTC (One Time Cost)	Y1	Y2	Y 3	Total Amount without GST	GST Amount	TOTAL Amount Including GST
			AMT (Rs.)	AMT (Rs.)	AMT (Rs.)	AMT (Rs.)	AMT (Rs.)	AMT (Rs.)
a.	Annual Subscription and Maintenance cost (50 no. of Users licenses) as per Scope of Work.	X	0.00	0.00	0.00	0.00	0.00	0.00
b.	One Time Implementation, Customization & Integration Cost*	0.00	X	X	X	0.00	0.00	0.00
Optional item**								

RFP for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

c.	Additional Licenses subscription cost for 5 block (1 block = 10 users) (including implementation and maintenance cost for further period) *** Note: Bidder need to cost for 5 blocks of "10 user license in each block" for each year.	X	0.00	0.00	0.00	0.00	0.00	0.00
d.	20 Man days per year for additional customization #	X	0.00	0.00	0.00	0.00	0.00	0.00
Total Cost of Ownership (TCO) for the period of 3 years						0.00	0.00	0.00
*One time Charges towards Implementation, Customization & Integration of Solution as per BSTL's and regulatory requirement. **BSTL has discretion to avail the optional items services against the commercial provided. BSTL has discretion to mark these line items under optional item, if BSTL feels these items are not mandatory for the project. Cost of optional item's services will be consider for TCO calculation purpose however BSTL will place order for these optional items at BSTL's discretion as per requirement. *** For this line item, bidder has to quote for 5 blocks for each year. 1 block will consist of 10 quantities of user licenses. The amount quoted in every year shall include license Subscription cost + implementation cost + maintenance cost for remaining duration of contract. # BSTL shall have the discretion to avail services for additional customization during the contract period, with payment to be made based on actual usage. The per man-day cost will be determined by dividing the total amount quoted for each year by 20, and this same calculation method shall apply for any efforts exceeding 20 man-days in a given year throughout the contract period. The license subscription cost shall be inclusive of carrying out any modifications changes / upgrades to the application and other software or equipment that is required to be made in order to comply with any statutory or regulatory requirements or any industry-wide changes (including any changes suggested in VAPT observations) arising during the subsistence of the contract / agreement, and the BSTL shall not pay any additional cost for the same.								

We abide by following terms and conditions

- a. TCO must be quoted in Indian Rupee (INR) only and should be inclusive of all taxes, duties, levies, GST etc.
- b. All Quoted Commercial Values should comprise of values only up to 2 decimal places. BSTL for evaluation purpose will consider values only up to 2 decimal places for all calculations & ignore all figures beyond 2 decimal places.
- c. If the cost for any line item is indicated as zero then it will be assumed by the Bank that the said item is provided to the Bank without any cost.
- d. All Deliverables to be supplied as per RFP requirements provided in the tender. The Service Charges need to include all services and other requirement as mentioned in the RFP.
- e. The vendor has to make sure all the arithmetical calculations are accurate. Bank will not be held responsible for any incorrect calculations however for the purpose of calculation Bank will take the corrected figures / cost.
- f. Any extra services if required for fulfilling the scope, the bidder is required to factor the same in above mentioned line items only. Vendor to factor all its expenses like travelling, boarding, lodging etc. Apart from amount specified in commercial bid, no other expenses will be paid by BSTL. The Bidder needs to clearly indicate if there are any recurring costs included in the above bid and quantify the same. In the absence of this, the Bidder would need to provide the same without any additional charge.
- g. There shall be no price escalation during the contract period and any extension thereof. Bid submitted with an adjustable price quotation will be treated as non-responsive and will be rejected.
- h. All the payments will be released as per the payment schedule mentioned on submission of invoice along with all supporting documents signed by BSTL Officials. BSTL will deduct applicable TDS, if any, as per the law of the land.
- i. BSTL reserves the right to disqualify the Bidder in case of any deviation observed in the commercial Bid.
- j. Commercial quote signed is final.

We hereby undertake to comply with the secrecy provision pursuant to provision of regulations and acts regarding secrecy and other applicable laws. Further, we confirm that we will abide by all the terms and conditions mentioned above & in the tender document.

Authorized Signatory:	
Name:	
Designation:	
Vendor's Corporate Name:	

Annexure 13 – Binding Criteria for Technical Presentation

Re: RFP for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

The following criteria must be adhered to by all bidders, in connection with the technical presentations during the bid selection process:

- At least one senior representative from bidder's organization should be present in the technical presentations
- Complete soft copies of the presentation materials should be shared with BSTL before the presentation.
- BSTL will expect and demand that the key personnel showcased by the vendor in the technical presentation should be the same ones that actively drive the project execution.
- Bidders must strictly adhere to the time slots provided (Approx. 75 Minutes) to them for the technical presentation, allowing ample time and scope for question-answers.
- Focus of the presentation should be on the specifics of the approach / methodology being proposed for BSTL.
- Both technical and administrative aspects of the project should be given suitable coverage.
- All aspects of requirements in the RFP should be covered in the presentation.
- All RFP requirements that are not covered by the proposed plan, or not adhered to, should be clearly brought out in the technical presentation, along with reasons / justification on why they will not be covered.
- Any assumption, if taken in the response to RFP document should be clearly brought out in the technical presentation, along with the justification.
- BSTL's evaluation and scoring on all aspects including technical presentation are final and non-negotiable.

Annexure 14 – Service levels.

The Vendor understands the scale of this Project and that it would require tremendous commitment of financial and technical resources for the same, for the tenure of Contract under this RFP.

BSTL expects that the successful Vendor to adhere to the following minimum Service Levels:

- Any fault/ issue/ defect failure intimated by BSTL through any mode of communication like call/e-mail/sms etc. are to be acted upon, so as to adhere to the service levels. Business/ Service Downtime and Deterioration shall be the key considerations for determining “Penalties” that would be levied on the Successful Vendor.
- The Vendor should have 24X7 Management, escalation and resolution infrastructure.
- Time bound problem addressing team (onsite/offsite) for the complete contract period.
- Vendor to arrange for updation required in the system to meet the changes suggested by RBI/ Govt. of India/ regulatory authorities towards compliance as part of support at no extra cost to BSTL for the entire contract period. Any delay in meeting the timelines would result in penalty.

Vendor will have to guarantee a minimum uptime of 99.9%, calculated on a monthly basis. Application (As a whole / any module of the application) availability will be 99.9% on 24x7x365. The penalty will be calculated as per the details given below:

Uptime percentage - 100% less Downtime Percentage

Downtime percentage - Unavailable Time divided by Total Available Time, calculated on a monthly basis.

Total Available Time – 24 hrs per day for seven days a week excluding planned downtime.

Unavailable Time - Time involved while the solution is inoperative or operates inconsistently or erratically.

Uptime Percentage	Penalty Details
A $\geq$ 99.9%	No Penalty
99.9% > A $\geq$ 99.5%	2% of cost of monthly Subscription charges
99.5% > A $\geq$ 99.0%	5% of cost of monthly Subscription charges
99.0% > A	Penalty at an incremental rate of 1% (in addition to a base of 5%) of cost of monthly Subscription charges for every 0.1% lower than the stipulated uptime.

The uptime percentage would be calculated on monthly basis and the calculated amount would be adjusted from every subsequent quarterly payment. The SLA charges will be subject to an overall cap of 10% of the Yearly subscription Charges and thereafter, Bank has the discretion to cancel the contract. If Vendor materially fails to meet an uptime of 99.9% for three (3) consecutive months, the Bank may have the right to terminate the contract. In case if there is no pending invoices to be paid by the Bank to the vendor, the vendor has to submit a pay order / cheque payable at Mumbai



in favour of Bank of Baroda for the same within 15 days from the notice period from the Bank. Solution downtime occurring due to factors attributable to the Bank and acknowledged by Bank will not impact the SLA.

Annexure 15 – Declaration/ undertaking from bidder to comply with the Information and cyber security controls

(This letter should be on the letterhead of the Bidder duly signed by an authorized signatory)

To
MD & CEO
BarodaSun Technologies Ltd.
3rd Floor, Bank of Baroda-Bldg II,
Horniman Circle, Fort,
Mumbai – 400 001

Sir,

Sub: Request for Proposal for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

Further to our proposal dated, in response to the Request for Proposal..... (BSTL's tender No. hereinafter referred to as "RFP") issued by Baroda Sun Technologies Ltd ("BSTL") we hereby covenant, warrant and confirm as follows:

We hereby agree to comply with the Information and cyber security controls as per BSTL's and Regulatory Authorities IT Security Guidelines on an ongoing basis and regulatory / legal guidelines and directives related to SP / outsourcing issued by regulators / legal entities from time to time. The SP shall provide access to the regulators, legal authorities, BSTL and BSTL appointed auditors for on-site/off-site supervision.

We ensure that outsourced critical IT service are subjected to the annual IT audit / Technology risk assessment process by an independent professional agency as approved by the local government or regulator at no extra cost to the BSTL

We abide with all clauses of applicable Cyber Security Controls which will be part of the NDA/SLA signed with the BSTL at the time of award of contract.

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone

Annexure 16 – Undertaking of Compliance with MeitY Data Localization and Certification Requirements.

(This letter should be on the letterhead of the Bidder duly signed by an authorized signatory)

To
MD & CEO
BarodaSun Technologies Ltd.
3rd Floor, Bank of Baroda-Bldg II,
Horniman Circle,Fort,
Mumbai – 400 001

Sir,

Sub: Request for Proposal for Selection of Service Provider for Supply, Implementation & Maintenance of Human Resource Management system.

We, _____, hereby confirm that all Services provided under this RFP will fully comply with the MeitY guidelines on data localization. We further confirm that all data centres utilized will be within India and will exclusively rely on MeitY's empaneled Cloud Service Providers. We, _____, is committed to ensuring that our services adhere to all relevant legal and regulatory guidelines as stipulated by MeitY, as applicable to data localization requirements for the entire contract duration.

Authorized Signatory

Name:

Designation:

Bidder's Corporate Name

Address

Email and Phone #

Annexure 17 – Performance Guarantee

BANK GUARANTEE

(FORMAT OF PERFORMANCE BANK GUARANTEE)

To
MD & CEO
BarodaSun Technologies Ltd.
3rd Floor, Bank of Baroda-Bldg II,
Horniman Circle, Fort,
Mumbai – 400 001

WHEREAS M/S (Name of Bidder) a Company registered under the Indian Companies Act, 1956 and having its Registered Office at, (Please provide complete address) (hereinafter referred to as "Bidder") was awarded a contract by BarodaSun Technologies Limited (BSTL) vide their Purchase Order no. dated (hereinafter referred to as "PO") for

AND WHEREAS, in terms of the conditions as stipulated in the PO and the Request for Proposal document No. Dated for (hereinafter referred to as "RFP"), the Bidder is required to furnish a Performance Bank Guarantee issued by a Public Sector Bank/ schedule commercial bank in India other than Bank of Baroda in your favour for Rs...../- towards due performance of the contract in accordance with the specifications, terms and conditions of the purchase order and RFP document (which guarantee is hereinafter called as "BANK GUARANTEE").

AND WHEREAS the Bidder has approached us for providing BANK GUARANTEE.

AND WHEREAS at the request of the Bidder, WE,, a body corporate in terms of Banking Companies Acquisition and Transfer of Undertakings Act, 1970/1980 having its Office at and a branch interalia at India have agreed to issue BANK GUARANTEE.

THEREFORE, WE, (name of Bank and its address) through our local office at India furnish you BANK GUARANTEE in manner hereinafter contained and agree with you as follows:

1. We do hereby expressly, irrevocably and unconditionally

undertake to pay the amounts due and payable under this Guarantee without any demur, merely on demand from you and undertake to indemnify you and keep you indemnified from time to time and at all times to the extent of Rs./-(Rupees

.....only) against any loss or damage caused to or suffered by or that may be caused to or suffered by you on account of any breach or breaches on the part of the Bidder of any of the terms and conditions contained in the PO and RFP / SLA and in the event of the Bidder committing default or defaults in carrying out any of the work or discharging any obligation under the PO or RFP document or otherwise in the observance and performance of any of the terms and conditions relating thereto in accordance with the true intent and meaning thereof, we shall forthwith on demand pay to you such sum or sums not exceeding the sum of Rs......./-(Rupees only) as may be claimed by you on account of breach on the part of the Bidder of their obligations or default in terms of the PO and RFP.

2. Notwithstanding anything to the contrary contained herein or elsewhere, we agree that your decision as to whether the Bidder has committed any such breach/default or defaults and the amount or amounts to which you are entitled by reasons thereof will be binding on us and we shall not be entitled to ask you to establish your claim or claims under Bank Guarantee, but will pay the same forthwith on your demand without any protest or demur. Any such demand made by BarodaSun Technologies Limited shall be conclusive as regards the amount due and payable by us to you.
3. This Bank Guarantee shall continue and hold good until it is released by you on the application by the Bidder after expiry of the relative guarantee period provided always that the guarantee shall in no event remain in force after (date) without prejudice to your claim or claims arisen and demanded from or otherwise notified to us in writing before the expiry of the said date which will be enforceable against us notwithstanding that the same is or are enforced after the said date.
4. You will have the fullest liberty without our consent and without affecting our liabilities under this Bank Guarantee from time to time to vary any of the terms and conditions of the PO and RFP or extend the time of performance of the contract or to postpone for any time or from time to time any of your rights or powers against the Bidder and either to enforce or forbear to enforce any of the terms and conditions of the said PO and RFP and we shall not be released from our liability under Bank Guarantee by exercise of your liberty with reference to matters aforesaid or by reason of any time being given to the Bidder or any other forbearance, act or omission on your part or any indulgence by you to the Bidder or any other act, matter or things whatsoever which under law relating to sureties, would but for the provisions hereof have the effect of so releasing us from our liability hereunder provided always that nothing herein contained will enlarge our liability hereunder beyond the limit of Rs./-(Rupees..... only) as aforesaid or extend the period of the guarantee beyond the said (date) unless expressly

agreed to by us in writing.

5. Bank Guarantee shall not in any way be affected by your taking or giving up any securities from the Bidder or any other person, firm or company on its behalf or by the winding up, dissolution, insolvency or death as the case may be of the Bidder.
6. In order to give full effect to the guarantee herein contained, you shall be entitled to act as if we were your principal debtors in respect of all your claims against the Bidder hereby guaranteed by us as aforesaid and we hereby expressly waive all our rights of surety ship and other rights, if any, which are in any way inconsistent with any of the provisions of Bank Guarantee.
7. Subject to the maximum limit of our liability as aforesaid, Bank Guarantee will cover all your claim or claims against the Bidder from time to time arising out of or in relation to the PO and RFP and in respect of which your claim in writing is lodged on us before expiry of Bank Guarantee.
8. Any notice by way of demand or otherwise hereunder may be sent by special courier or registered post to our local address as aforesaid and if sent accordingly it shall be deemed to have been given when the same has been posted.
9. Bank Guarantee and the powers and provisions herein contained are in addition to and not by way of limitation of or substitution for any other guarantee or guarantees hereto before given to you by us (whether jointly with others or alone) and now existing enforce and this Bank Guarantee is not intended to and shall not revoke or limit such guarantee or guarantees.
10. Bank Guarantee shall not be affected by any change in the constitution of the Bidder or us nor shall it be affected by any change in your constitution or by any amalgamation or absorption thereof or therewith but will ensure to the benefit of and be available to and be enforceable by the absorbing or amalgamated company or concern.
11. Bank Guarantee shall come into force from the date of its execution and shall not be revoked by us any time during its currency without your previous consent in writing.
12. We further agree and undertake to pay you the amount demanded by you in writing irrespective of any dispute or controversy between you and the Bidder in any suit or proceeding pending before any court or Tribunal relating thereto, our liability under this present being absolute and unequivocal. The payments so made by us shall be a valid discharge of our liability for payment here under and the Bidder shall have no claim against us for making such payment.
13. Notwithstanding anything contained herein above;
 - a. our liability under this Guarantee shall not exceed Rs./- (Rupeesonly)
 - b. this Bank Guarantee shall be valid and remain in force upto and including the date and
 - c. we are liable to pay the guaranteed amount or any part thereof under this Bank Guarantee only and only if you serve upon us a written claim or demand on or before the expiry of this guarantee.
14. We have the power to issue this Bank Guarantee in your favour under the Memorandum and Articles of Association of our Bank and the undersigned has full power to execute this Bank Guarantee under the Power of Attorney issued by



Bank.

Dated this the day of, 20.....

For and on behalf of
Branch Manager
Seal and Address

Annexure 18 – SERVICE LEVEL AND NON DISCLOSURE AGREEMENT FORMAT

This Agreement is made in Mumbai on this..... Day of 2026 by and between Baroda Sun Technologies Limited, a Public company incorporated as a wholly owned subsidiary of Bank of Baroda on July 5, 2017 classified as Union government company and is registered with the Registrar of Companies, Mumbai, Maharashtra, and having its registered office at BarodaSun Tower, C-34, G-Block, Bandra Kurla Complex, Bandra Mumbai, Maharashtra, India 400051, CIN U74999MH2017GOI296962, (hereinafter referred to as the “BSTL”) which expression unless repugnant to the context or meaning thereof shall mean and include its successors and assigns) of the one Part;

AND

_____ a company incorporated under the....., having its registered office at _____ hereinafter referred to as “the Bidder” (which expression shall, unless repugnant to the context and meaning thereof include its subsidiaries, affiliates, successors and permitted assigns) of the other Part,

(BSTL and the Bidder hereinafter are individually referred to as “Party” and collectively as “Parties”)

WHEREAS

BSTL intent to Select a Service Provider for Supply, Implementation & Maintenance of Human Resource Management system to automates and streamlines HR functions.

For this purpose, BSTL had issued the RFP No._____ Dated _____ and had invited the tenders from the eligible participant.

In response to RFP issued by BSTL, the Bidder also submitted its offer and has represented that it is engaged in the business of services related to it. It further represented to BSTL that it has the requisite skill, knowledge, experiences, experts, staff and capability to provide required service to BSTL. Relying on representations of the Service Provider and other applicable criteria, the Bidder was declared as a successful bidder in the RFP evaluation process. Accordingly BSTL has issued a _____ dated _____ to the Bidder.

It was a condition in the RFP that the Parties would enter into a Service Level and Non Disclosure Agreement which shall include all the services and terms and conditions of the services to be extended as detailed here in.

NOW, THEREFORE, THIS AGREEMENT WITNESSETH AS FOLLOWS

1. Definitions

1. Recipient, Respondent, Bidder, service provider, vendor means the respondent to the RFP document
2. RFP means the Request For Proposal document
3. Proposal, Bid means “Response to the RFP Document”
4. Support means Support & Services to be provided as part of the Scope of Work

5. SLA means Service level Agreement
6. NDA means Non-Disclosure Agreement
7. GeM – Government-e-Marketplace
8. Central Vigilance Commission (CVC)
9. One Time Cost (OTC)
10. Total Cost of Ownership (TCO)
11. EMD – Earnest Money Deposit
12. Support means Support & Services to be provided as part of the Scope of Work
13. PBG -Performance Bank Guarantee
14. NPV mean Net Present Value
15. SP means Service Provider or Vendor
16. BSTL means BARODA SUNTechnologies Limited

2. Term And Renewal

This Agreement shall come into force on (Date) and shall be in force and effect for a period of ____months, unless BSTL terminates the Agreement as per the terms of this Agreement.

Without prejudice to the right of termination, BSTL may renew or extend the term of this Agreement, for the period of ____ Months, on the same or with certain modifications in the terms and conditions of this Agreement, as per its sole discretion.

3. Scope Of Service / Deliverables And Service Levels

As per RFP document.

4. Timeline And Reporting Mechanism

As per RFP document.

5. Deliverables

As per RFP document.

6. Single Point of Contact & Direct Support

(Please incorporate following details - designation, address, email address, telephone /mobile No..

Escalation matrix for support should also be provided with full details.

7 . PAYMENT TERMS:

As per RFP document.

8. Out of pocket expenses :

As per RFP document.

9. Security deposit .

As per RFP document.

10 . Set-off

10.1 Without prejudice to other rights and remedies available to BSTL, BSTL shall be entitled to set-off or adjust any amounts due to BSTL under this agreement from the Service Provider against payments due and payable by BSTL to the Service Provider for the services rendered.

10.2 The provisions of this Clause shall survive the termination of this Agreement.

11. COVENANTS OF THE SERVICE PROVIDER:

11.1 The Service Provider shall deploy and engage suitably experienced and competent personnel as may reasonably be required for the performance of the services. During the currency of this Agreement, the Service Provider shall not substitute the key staff identified for the services mentioned in this Agreement.

11.2 The Service Provider shall forthwith discontinue / withdraw or bar any of its employee/s from the provision of the services if upon being intimated by the authorized person of the BSTL if in the opinion of BSTL:

- (i) The quality of services rendered by the said employee is not in accordance with the quality specifications stipulated by BSTL; or
- (ii) The engagement or provision of the services by any particular employee is prejudicial to the interests of BSTL.

11.3 All employees engaged by the Service Provider shall be in sole employment of the Service Provider and the Service Provider shall be solely responsible for their salaries, wages, statutory payments etc. and under no circumstances shall BSTL be liable for any payment or claim or compensation (including but not limited to compensation on account of injury /death / termination) of any nature to the employees and personnel of the Service Provider.

11.4 The Service Provider:

- shall be responsible for all negotiations with personnel relating to salaries and benefits, and shall be responsible for assessments and monitoring of performance and for all disciplinary matters.
- shall not knowingly engage any person with a criminal record/conviction and shall bar any such person from participating directly or indirectly in the provision of services under this Agreement.

- shall at all times use all reasonable efforts to maintain discipline and good order amongst its personnel.
- shall not exercise any lien on any of the assets, documents, instruments or material belonging to BSTL and in the custody of the Service Provider for any amount due or claimed to be due by the Service Provider from BSTL.
- shall regularly provide updates to BSTL with respect to the provision of the services and shall meet with the personnel designated by BSTL to discuss and review its performance at such intervals as may be agreed between the Parties.
- shall be responsible for compliance of all laws, rules, regulations and ordinances applicable in respect of its employees, sub-contractors and agents (including but not limited to Minimum Wages Act, Provident Fund laws, Workmen's Compensation Act) and shall establish and maintain all proper records including, but not limited to, accounting records required by any law, code, practice or corporate policy applicable to it from time to time, including records and returns as applicable under labour legislations.
- shall not violate any proprietary and intellectual property rights of BSTL or any third party, including without limitation, confidential relationships, patent, trade secrets, copyright and any other proprietary rights in course of providing services hereunder.
- shall ensure that the quality and standards of materials and services to be delivered or rendered hereunder, will be of the kind, quality and timeliness as designated by the BSTL and communicated to the Service Provider from time to time.
- shall not work in a manner which, in the reasonable opinion of BSTL, may be detrimental to the interests of BSTL and which may adversely affect the role, duties, functions and obligations of the Service Provider as contemplated by this Agreement.
- shall comply ESG, BRSR and other related parameters including the Declaration of Human Rights, Inclusive of those in the International Bill of Rights and Declaration of Fundamental Rights at work (1998) as per the International Labour Organization as well as the United Nations Guiding Principles on Business and Human Rights and the National Guidelines on Responsible Business Conduct
- Service Provider shall comply with BOB's / BSTL's Code of Ethics, available on BOB's / BSTL's website>Shareholder's Corner> Policies/Codes> Our Code of Ethics, during the validity period of this agreement/contract.

12. Confidentiality:

12.1 All BSTL's product and process details, documents, data, applications, software, systems, papers, statements and business/customer information which may be communicated to or come to the knowledge of the Service Provider or its employees during the course of discharging their obligations shall be treated as absolutely confidential and the Service Provider irrevocably agrees and undertakes and ensures that the Service Provider and its employees shall keep the same secret and confidential and not disclose the same, in whole or in part to any third party without the prior written permission of BSTL nor shall use or allow to be used any information other than as may be necessary for the due performance by the Service Provider of its obligations hereunder.

12.2 The Service Provider shall not make or retain any copies or record of any Confidential Information submitted by BSTL other than as may be required for the performance of the Service Provider obligation under this Agreement.

12.3 The Service Provider shall notify BSTL promptly of any unauthorized or improper use or disclosure of the Confidential Information.

12.4 The Service Provider shall return all the Confidential Information that is in its custody, upon termination / expiry of this Agreement. Also so far as it is practicable the Service Provider shall immediately expunge any Confidential Information relating to the projects from any computer, word processor or other device in possession or in the custody and control by Service Provider or its affiliates.

12.5 The Service Provider shall to the extent practicable, immediately furnish a certificate signed by its director or other responsible representative confirming that to the best of his/her knowledge, information and belief, having made all proper enquiries the requirements of this paragraph have been fully complied with.

12.6 The Service Provider hereby unconditionally agrees and undertakes that it and its employees shall not disclose the terms and conditions of this Agreement or disclose the information submitted by BSTL under this Agreement to any third party unless such disclosure is required by law or for the purpose of performing its any obligations under this Agreement.

12.7 It shall be the incumbent duty of the Service Provider to undertake not to disclose any business related information of BSTL to any third person and the Service Provider shall keep all knowledge of the business activities and affairs of BSTL strictly confidential and also to ensure that neither the Service Provider nor any of its officers, employees directly or indirectly assist any third person with the promotion of activities which may be prejudicial to the interest or in competition to the activities of BSTL.

12.8 However the confidential information will not be limited to the information mentioned above but not include the following as confidential information:

- i) Without breach of these presents, has already become or becomes and/or hereinafter will become part of the public domain;
- ii) Prior to the disclosure by BSTL was known to or in the possession of the Service Provider at the time of disclosure ;
- iii) Was disclosed or parted with the prior consent of BSTL;
- iv) Was acquired by the Service Provider from any third party under the conditions such that it does not know or have reason to know that such third party acquired directly or indirectly from BSTL.

12.9 The Service Provider agrees to take all necessary action to protect the Confidential Information against misuse, loss, destruction, deletion and/or alteration. It shall neither misuse or permit misuse directly or indirectly, nor commercially exploit the Confidential Information for economic or other benefit.

12.10 Notwithstanding the above, BSTL shall take all the reasonable care to protect all the confidential information of Service Provider delivered to BSTL while performing of the services.

12.11 The provisions of this Clause shall survive the termination of this Agreement.

13. INDEMNITY

13.1 The Service Provider shall, at its own expense, indemnify, defend and hold harmless BSTL and its officers, directors, employees, representatives, agents respective directors, and assigns from and against any and all losses and liability (including but not limited to liabilities, judgments, damages, losses, claims, costs and expenses, including attorneys fees and expenses) that may be occurring due to, arising from or relating to:

- BSTL's authorized / bona fide use of the Deliverables and /or the Services provided by Service Provider under this assignment ; and/or
- Negligence or willful misconduct of the Service Provider and/or its employees, agents, sub-contractors in performance of the obligations under this assignment; and/or
- claims made by employees or subcontractors or subcontractors' employees, who are deployed by the Service Provider, against BSTL; and/or
- claims arising out of employment, non-payment of remuneration and non-provision of statutory benefits by the Service Provider to its employees, its agents, contractors and sub-contractors; and/or
- breach of any terms, representation or false representation or inaccurate statement or assurance or covenant or warranty of the Service Provider under this

assignment; and/or

- breach of confidentiality obligations of the Service Provider; and/or
- any or all Deliverables or Services infringing any patent, trademarks, copyrights or such other Intellectual Property Rights;

BSTL shall notify the Service Provider in writing as soon as practicable when BSTL becomes aware of the claim, and shall co-operate with the Service Provider in the defense and settlement of the claims.

The Service Provider shall have sole control of the defense and all related settlement/ negotiations, and BSTL will provide the Vendor with the assistance, information and authority reasonably necessary to perform the above.

If use of deliverables is prevented by injunction or court order because of which any such claim or deliverables is likely to become subject of any such claim then the Service Provider shall without additional cost to BSTL, shall either:

- 1) replace or modify the deliverables which are functionally equivalent and without affecting the functionality in any manner, so as to avoid the infringement; or
- 2) obtain a license for BSTL to continue the use of the deliverables, as required by BSTL as per the terms and conditions of this assignment or subsequent Agreement and to meet the service levels; or

13.2 If the Service Provider fail to provide the remedy prescribed in para 1 or 2 within specified period to BSTL, in such case the Service Provider shall refund to BSTL the amount paid for the infringing deliverable's and bear the incremental costs of procuring a functionally equivalent deliverables from a third party selected by BSTL,

However, the Service Provider shall not be liable for defects or non-conformance resulting from:

- Software, hardware, interfacing, or supplies for the solution not approved by Vendor; or
- any change, not made by or on behalf of the Vendor, to some or all of the deliverables supplied by the Vendor or modification thereof, provided the infringement is solely on account of that change ;

13.3 In the event of Service Provider not fulfilling its obligations under this clause within the period specified in the notice issued by BSTL, BSTL has the right to recover the amounts by invoking the security or the amount due to it under this provision from any amount payable to the Service Provider under this project.

13.4 The indemnities under this clause are in addition to and without prejudice to the indemnities given elsewhere in this agreement.

14. PROPERTY RIGHTS

1. Each Party owns and retains all rights, title and interests in and to its respective Pre-Existing Intellectual Property and Independent Intellectual Property. Independent Intellectual Property means any Intellectual Property developed

by a Party independently of the applicable statement of work. "Pre-Existing Intellectual Property" means any Intellectual Property owned by a Party, or licensed to such Party (other than by the other Party), as at the commencement date of the applicable statement of work.

2. Whereas title to all inventions and discoveries made jointly by the parties resulting from the Work performed as per this agreement shall reside jointly between the parties. Both the parties shall mutually decide the future course of action to protect/ commercial use of such joint IPR. The Intellectual Property Rights shall be determined in accordance with Indian Laws.
3. Without prejudice to above paras all the interim/ final deliverables shall be property of BSTL. Subject to requisite payments, the service provider shall be deemed to grant exclusive, perpetual rights to use of the deliverables in favor of BSTL.

15. CONTRACT PERFORMANCE GUARANTEE

Service Provider shall provide unconditional and irrevocable Performance Bank Guarantee for Rs -----/- (Rupees _____ Only) in favour of BSTL from any Public Sector Bank other than Bank of Baroda as acceptable to BSTL towards due performance of the contract in accordance of this Agreement. The Performance Guarantee shall be valid for a period of ____ months with additional claim period of three months after expiry of validity period.

16. PENALTIES AND LIQUIDATED DAMAGES:

16.1 Service Provider shall have to pay late delivery charges to BarodaSun Technologies Limited @ 0.1% of the Total cost of the project inclusive of all taxes, duties, levies etc., per week or part thereof, for late delivery beyond due date of delivery, to a maximum of 5% of the total contract value inclusive of all taxes, duties, levies etc. beyond that BarodaSun Technologies Limited reserves the right to cancel the contract.

16.2 Both the above Penalty and Liquidated Damages are independent of each other and leviable/applicable separately and concurrently.

16.3 The Penalty and Liquidated Damages are not applicable in case the delay is for reasons attributable to the BSTL and Force Majeure. However it is the responsibility of the Service Provider to prove that the delay is attributed to BSTL and Force Majeure. The decision taken by BSTL in this regard shall be final and Service Provider shall not dispute the same.

16.4 If the Service Provider fails to perform its obligation as per this Agreement then BSTL reserves the right to get the balance work executed by another Service Provider as per choice of BSTL and Service Provider shall be liable to bear the expenditure which BSTL may incur for the execution of balance work and its completion.

17. TERMINATION

17.1 The BSTL shall have the option to terminate this agreement and/ or any particular order, in whole or in part by giving Service Provider at least 30 days prior notice in writing. In the event of any termination hereof, BSTL's sole responsibility with respect to the Service Provider's professional fees, related expenses and chargeable service tax shall be restricted to the limited extend as incurred upto the effective date of termination as mentioned in the notice of termination.

In the following events, BSTL shall terminate this assignment or cancel any particular services if Service Provider:

- breaches any of its obligations set forth in this assignment or any subsequent agreement and such breach is not cured within thirty (30) Working Days after BSTL gives written notice; or
- Failure by Service Provider to provide BSTL, within thirty (30) Working Days, with a reasonable plan to cure such breach, which is acceptable to BSTL; or
- The progress regarding execution of the contract/ services rendered by the Service Provider is not as per the prescribed time line, and found to be unsatisfactory; or
- The Service Provider commits a breach of any of the terms and conditions of this contract; or
- The Service Provider goes into liquidation voluntarily or otherwise; or
- An attachment is levied or continues to be levied for a period of 7 days upon effects of the contract.

17.2 During the period of the agreement, if the Service Provider does not perform satisfactorily or delays execution of the contract, BSTL reserves the right to cancel the contract and to get the balance contract executed by another party of its choice by giving one month's notice for the same. In this event, the Service Provider is bound to make good the additional expenditure, which the BSTL may have to incur to carry out bidding process for the selection of a new Vendor and for execution of the balance of the contract. This clause is applicable, if for any reason, the contract is terminated on the defaults mentioned above.

17.3 BSTL reserves the right to recover any dues payable by the Service Provider from any amount outstanding to the credit of the Service Provider, including the pending bills and/or invoking Bank Guarantee, if any, under this contract or any other contract/order.

17.4 It is hereby agreed and understood by the Parties that the provisions of this Clause shall not limit or restrict nor shall it preclude any Party from pursuing such further and other legal actions, against the other Party for any breach or non-compliance of the terms of this Agreement.

17.5 In the event if this Agreement is terminated for any reasons, either Party shall forthwith hand over to the other the possession of all documents, material and any other property belonging to the other that may be in the possession of the Party or any of its employees, agents or individuals.

17.6 Upon the termination or expiry of this Agreement the rights granted to the Service Provider shall immediately be terminated.

18. CORPORATE AUTHORITY

The Parties represent that they have taken all necessary corporate action and sanction to authorize the execution and consummation of this Agreement and will furnish satisfactory evidence of same upon request.

19. LAW, JURISDICTION AND DISPUTE RESOLUTION

19.1 The provisions of this Agreement shall be governed by and, construed in accordance with the Indian law and the courts in Mumbai shall have the exclusive jurisdiction to deal with any issue arising out of this Agreement.

- a) BSTL and the Service Provider shall make every effort to resolve amicably, by direct informal negotiation, any disagreement or dispute arising between them under or in connection with the contract. If after 15 days from the commencement of such informal negotiations, BSTL and the Service Provider have been unable to resolve amicably a contract dispute, either party may require that the dispute be referred for resolution by formal Mediation by mutual consent before the provisions proceedings of arbitration are resorted to as provided hereinafter. It is made clear that the said mediation shall be purely optional for both the parties.

- b) **Mediation**

If both parties mutually agree to resort to/adopt the mediation process the request in writing would be made by both the parties to any recognised mediation centre at Mumbai.

- c) **Arbitration**

In the event the dispute between the parties not getting resolved through the process mentioned hereinabove, the dispute, controversy or claims arising out of or in connection with the Agreement shall be referred to sole arbitrator to be appointed by mutual consent OR the number of arbitrators shall be three, with each Party to the dispute being entitled to appoint one arbitrator. The two arbitrators appointed by the Parties shall appoint a third arbitrator who shall act as the chairman of the proceedings.

- a) The place of arbitration shall be at Mumbai
- b) The arbitral procedure shall be conducted in the English language and any award or awards shall be rendered in English. The procedural law of the arbitration shall be the Indian law.

- c) The award of the arbitrator shall be final and conclusive and binding upon the Parties, and the Parties shall be entitled (but not obliged) to enter judgment thereon in any one or more of the highest courts having jurisdiction. The Parties further agree that such enforcement shall be subject to the provisions of the Indian Arbitration and Conciliation Act, 1996 and neither Party shall seek to resist the enforcement of any award in India on the basis that award is not subject to such provisions.
- d) The rights and obligations of the Parties under or pursuant to this Clause, including the arbitration agreement in this Clause, shall be under the exclusive jurisdiction of the courts located at Mumbai.

20. AUDIT:

20.1 BSTL reserves the right to conduct an audit/ ongoing audit of the services provided by the Service Provider.

20.2 The Service Provider should allow the Reserve Bank of India (RBI) or persons authorized by it to access BSTL documents, records or transaction or any other information given to, stored or processed by the Service Provider within a reasonable time; failing which, the Service Provider will be liable to pay any charges/ penalty levied by RBI.

21. LIMITATION OF LIABILITY

21.1 Notwithstanding the contents of para 20.2 of this Agreement, the Service Provider's aggregate liability in connection with obligations undertaken as a part of this Project whether arising under this project regardless of the form or nature of the action giving rise to such liability (whether in contract, tort or otherwise), shall be actual.

21.2 The Service Provider's liability in case of claims against BSTL resulting from its willful misconduct or gross negligence, loss suffered by BSTL due to damage to real or tangible or intangible property by Service Provider, its employees and/ or subcontractors or loss suffered by BSTL due to infringement of patents, trademarks, copyrights or such other Intellectual Property Rights or breach of confidentiality obligations shall be unlimited.

21.3 BSTL can not be held liable for and shall stand absolved of any responsibility or claim/litigation arising out of the use of any third party modules or proprietary information supplied by the Service Provider as part of this Agreement.

21.4 Under no circumstances BSTL shall be liable to the Service Provider for direct, indirect, incidental, consequential, special or exemplary damages arising from termination of this Agreement, even if BSTL has been advised of the possibility of such damages, such as, but not limited to, loss of revenue or anticipated profits or lost business.

21.6 Subject to any law to the contrary, and to the maximum extent permitted by law neither parties shall be liable to other for any consequential/ incidental, or indirect damages arising out of this agreement.

21.7. All employees engaged by the party shall be in sole employment of the party and the party shall be solely responsible for their salaries, wages, statutory payments etc. That under no circumstances shall other party be liable for any payment or claim or compensation (including but not limited to compensation on account of injury/death/termination) of any nature to the employees and personnel of the party .

22. PUBLICITY

The Service Provider shall not use the name and/or trademark/logo of BSTL, its group companies or associates in any sales or marketing publication or advertisement, or in any other manner without prior written consent of BSTL.

23. INDEPENDENT ARRANGEMENT

This Agreement is on a principal-to-principal basis between the Parties hereto. Nothing contained in this Agreement shall be construed or deemed to create any association, partnership or joint venture or employer-employee relationship or principal-agent relationship in any manner whatsoever between the parties. The Service Provider acknowledges that its rendering of services is solely within its own control, subject to the terms and conditions agreed upon and agrees not to hold it out to be an employee, agent or servant of BSTL or Affiliate thereof.

24. SUBCONTRACTING:

The Service Provider shall not subcontract or permit anyone other than its personnel to perform any of the work, service or other performance required by it under the contract without the prior written consent of the BSTL.

25. NON – SOLICITATION

The Service Provider, during the term of the contract shall not without the express written consent of BSTL, directly or indirectly: a) recruit, hire, appoint or engage or attempt to recruit, hire, appoint or engage or discuss employment with or otherwise utilize the services of any person who has been an employee or associate or engaged in any capacity by BSTL in rendering services in relation to the contract; or b) induce any person who shall have been an employee or associate of BSTL at any time to terminate his/ her relationship with the BSTL.

26. VICARIOUS LIABILITY

The Service Provider shall be the principal employer of the employees, agents, contractors, subcontractors, etc., if any, engaged by the Service Provider and shall be vicariously liable for all the acts, deeds, matters or things, whether the same is within the scope of power or outside the scope of power, vested under the contract. No right of any employment in the BSTL shall accrue or arise, by virtue of engagement of employees, agents, contractors, subcontractors etc., by the Service Provider for any assignment under the contract. All remuneration, claims, wages dues etc., of such employees, agents, contractors, subcontractors etc., of the Service Provider shall be paid by the Service Provider alone and the BSTL shall not have any direct or indirect liability or obligation, to pay any charges, claims or wages of any of the Service

Provider's employees, agents, contractors, subcontractors etc. The Service Provider shall agree to hold the BSTL, its successors, assigns and administrators fully indemnified, and harmless against loss or liability, claims, actions or proceedings, if any, of whatsoever nature that may arise or caused to the BSTL through the action of Service Provider's employees, agents, contractors, subcontractors, etc.

27. FORCE MAJEURE

26.1 The Parties shall not be liable for any failure to perform any of its obligations under this Agreement if the performance is prevented, hindered or delayed by a Force Majeure event (defined below) and in such case its obligations shall be suspended for so long as the Force Majeure Event continues (provided that this shall not prevent the accrual of interest on a principal amount which would have been payable but for this provision). Each party shall within a week inform the other of the existence of a Force Majeure Event and shall consult together to find a mutually acceptable solution.

26.2 "Force Majeure Event" means any event due to any cause beyond the reasonable control of the Party, including, without limitation, unavailability of any communication system, sabotage, fire, flood, explosion, acts of God, civil commotion, strikes or industrial action of any kind, riots, insurrection, war or acts of government.

28. NOTICES AND COMMUNICATIONS

28.1 All notices, requests, demands, and other communications to be given under this agreement and the proposals (other than routine operational communications) shall be in writing and shall be delivered either by hand, by overnight mail, by fax, or by e-mail to the address or numbers provided hereunder or such address and numbers as one Party may inform the other in writing.

28.2 Notices sent by e-mail shall also be sent by hand, overnight mail, if not acknowledged by the receiving party within two business days. All notices shall be effective on the date received.

29. MISCELLANEOUS

29.1 Any provision of this Agreement may be amended or waived of only if, such amendment or waiver is in writing and signed, in the case of an amendment by each Party, or in the case of a waiver, it is in writing and signed by the Party against whom the waiver is to be effective.

29.2 No failure or delay by any Party in exercising any right, power or privilege hereunder shall operate as a waiver thereof nor shall any single or partial exercise of any other right, power or privilege. The rights and remedies herein provided shall be cumulative and not exclusive of any rights or remedies provided by law.

29.3 This Agreement constitutes the entire agreement between the Parties with respect to the subject matter hereof and supersedes all prior written agreements, understandings and negotiations, both written and oral, between the Parties with respect to the subject matter of this Agreement. No representation, inducement,

promise, understanding, condition or warranty not set forth herein has been made or relied upon by any Party hereto. In case of any contradiction in the terms of RFP, offer document and Purchase Order etc, this Agreement and the terms hereof shall prevail.

29.4 Neither this Agreement nor any provision hereof is intended to confer upon any Person other than the Parties to this Agreement any rights or remedies hereunder.

29.5 In connection with this Agreement, as well as all transactions contemplated by this Agreement, each Party agrees to execute and deliver such additional documents and to perform such additional actions as may be necessary, appropriate or reasonably requested to carry out or evidence the transactions contemplated hereby.

29.6 The invalidity or unenforceability of any provisions of this Agreement in any jurisdiction shall not affect the validity, legality or enforceability of the remainder of this Agreement in such jurisdiction or the validity, legality or enforceability of this Agreement, including any such provision, in any other jurisdiction, it being intended that all rights and obligations of the Parties hereunder shall be enforceable to the fullest extent permitted by law.

29.7 The captions herein are included for convenience of reference only and shall be ignored in the construction or interpretation hereof.

29.8 The service provider can't assign, in whole or in part, the benefits or obligations of this Agreement to any other person without the prior written consent of BSTL. However, BSTL may assign any of its rights and obligations hereunder to any of its affiliates without the prior consent of Service Provider.

IN WITNESS WHEREOF, this Agreement has been executed by the Parties hereto on the day and year first above written.

Signed and Delivered by the within named

BSTL, by the hand of Sri -----,
Limited

For Baroda Sun Technologies

its authorized official in the presence of:

1.

2.

Signed and Delivered by the within named

_____ by the hand of Sri-----,

For _____ Systems Limited.

its authorized official in the presence of:

1.

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